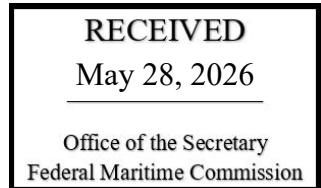


BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.



In the Matter of:
AMAN KAUSHIK,
Complainant,
v.

SFL WORLDWIDE LLC | (OTI License No. 025184),
Respondent.



FMC Docket No.: 26-10

CADRS Case No.: 260159 (Closed March 25, 2026 — Informal Remedies Exhausted)

Shipment Reference: Quote/Shipment ID 28015003 | **Container:** TCLU6938770

**FORMAL COMPLAINT FOR REPARATIONS AND INJUNCTIVE
RELIEF**

Filed Pursuant to 46 C.F.R. § 502.62 and 46 U.S.C. §§ 41102(c), 41305(b), (c), and (e),

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Respondent: SFL Worldwide LLC | (OTI License No. 025184)

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Note on Navigation: For the Commission's convenience, this complaint is fully bookmarked by section and Table of Contents. Bookmarks can be accessed via the navigation pane of any PDF reader to jump directly to any section or exhibit.

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EXECUTIVE SUMMARY — FOR THE COMMISSION’S IMMEDIATE ATTENTION

This Complaint arises from a single international household goods shipment that resulted in thirteen separate, independently documented violations by a licensed Ocean Transportation Intermediary. Every core violation in this Complaint is established not by Complainant’s allegations alone, but by SFL Worldwide’s own written admissions, SFL’s own invoice, and the written statements of SFL’s own sub-vendor — several made in the direct presence of FMC CADRS Investigator Mark Bragança. The following five facts — among thirteen documented violations — define this case:

FACT 1 — Rate Fraud Proven by SFL’s Own Vendor:

SFL’s vendor Chicago Marathon Movers (CMM) owner Danny Rodriguez admitted in writing — CC’d directly to FMC Investigator Mark Bragança — that the entire origin service was a flat-rate arrangement “fixed regardless of time.” In a documented phone call the same day, Rodriguez stated this flat rate was \$2,200.00, pre-agreed with SFL’s Abhay Soni before the job. Complainant immediately memorialized this in a written email CC’d to Rodriguez, SFL’s Naman Mehta, and the FMC Investigator. Neither party denied or disputed the \$2,200.00 figure — *constituting an admission by silence*; the Commission may draw an adverse inference accordingly. This figure reveals SFL’s billing architecture: the \$200/hr per-hour invoice was not based on work performed — it was a fabricated construct reverse-engineered to extract an undisclosed markup over a concealed wholesale flat rate. Should SFL dispute this figure, the Commission is invited to direct SFL to produce its actual written agreement with CMM. In the same call, Rodriguez additionally admitted he instructed his crew to work slowly — the direct and sole cause of the \$220.00 detention charge SFL then billed to Complainant. Furthermore, SFL’s vendor refused to vacate the storage facility until Complainant’s representative signed the job completion documents under facility-closing time pressure — pressure manufactured by the crew’s own deliberate slowdown and SFL’s direct intervention in the coercion chain. This signature cannot constitute voluntary acceptance of the disputed billing or service quality.

FACT 2 — Materials Fraud Proven by SFL’s Own Invoice:

SFL’s own March 10, 2026 invoice states “recycled boxes x67” while charging \$870.00 at new export-grade material rates. SFL refused to provide itemized receipts despite three separate and escalating demands: directly to SFL, via BBB complaint, and via FMC CADRS Mediator Mark Bragança’s specific written request — all ignored.

FACT 3 — Bad Faith CADRS Participation:

During 13 days of active federal mediation, SFL offered zero financial remedy. Within 5 hours of CADRS closure, SFL offered exactly \$750.00 — a figure that corresponds with mathematical precision to the per-hour rate overcharge of \$90.00 (billed \$200 minus contracted \$110) multiplied by the invoiced hours of 8.333, equaling \$750.00 to the exact dollar. The Commission may draw

its own inference from this precision — but the inference does not depend on the settlement offer at all. The calculation $\$90.00 \times 8.333 \text{ hours} = \750.00 arises from SFL's own invoice, which is the only document that contains both the \$200/hr billing rate and the 8.333-hour figure. SFL's internal knowledge of the overcharge is therefore established by SFL's own invoice, not by any settlement discussion. The post-CADRS offer merely confirms that SFL independently arrived at the same number. The offer was conditioned on a global release form to be signed before cargo inspection — designed to extinguish Complainant's cargo damage rights before delivery.

FACT 4 — Cargo Dispatched Unseaworthy After Formal Written Notice:

Complainant put SFL on formal written notice on 5th March (2 days after loading and 11 days before sailing) that the container had zero strapping, that the insurance policy excluded M&E derangement, and that SFL bore the uninsured risk. SFL acknowledged this notice, stalled until the container sailed, and refused both re-work and written liability acceptance. A \$40,820 electronics shipment went to sea in a documented, photographically confirmed unseaworthy condition.

FACT 5 — Financial Entrapment by Deliberate Withholding of Material Information:

Before the \$1,000 non-refundable deposit was collected on February 23, 2026, Complainant specifically discussed with Naman Mehta the Non-ToR (Transfer of Residence) customs classification of this shipment and obtained Mehta's assurance — after Mehta represented that he had consulted SFL's India-based customs professionals — that ToR (Transfer of Residence) condonation was viable and that SFL would manage the Commissioner application as part of the door-to-door contract. Mehta then transmitted the formal written Non-ToR disclosure eight days later — on March 2, 2026 at approximately 9:46 PM India Standard Time, one day before loading — after Complainant's friend had already committed to a 5 to 6-hour round-trip drive, materials had been purchased, storage facility permission had been arranged, and practical cancellation was impossible. Complainant explicitly told Mehta he was not okay with this timing. Mehta confirmed the deposit was non-refundable. Complainant — involuntarily terminated, post-surgical, with zero income — proceeded under financial compulsion, not free choice. SFL then took zero proactive action on customs clearance for the next 43 days. This is Counts X, XI, and XIII.

These thirteen violations did not occur in isolation. They constitute a coordinated pattern of pre-planned billing fraud, documentation suppression, destination service abandonment, and financial coercion by a licensed OTI against a pro se international shipper coordinating remotely under documented medical disability, following involuntary employment termination, with no ability to be physically present to protect his interests. This pattern of deliberate exploitation warrants the Commission's full enforcement attention beyond reparations alone.

Total immediate reparations requested: \$2,930.00 (Table B)

If knowing and willful misconduct found [46 U.S.C. § 41305(c)]: \$5,860.00 (Table D)

Conditional reserves — amount to be determined upon cargo delivery and customs clearance:

- Insurance deductible (cargo damage): \$2,500.00
- Uninsured M&E loss: up to \$19,150.00+
- India customs duty if ToR denied: ~₹7,50,000 (~\$7,800 USD): Reserved
- ICD storage charges accruing at ~₹10,000 (~\$105)/day after free period: Reserved
- Reasonable attorney fees and costs — 46 U.S.C. § 41305(e): Reserved + TBD

Total potential exposure to Respondent: \$8,360.00+ – \$10,860.00+ (prior to M&E supplemental filing and India-side supplemental filing)

TABLE A — EVIDENCE MATRIX: DOCUMENTED VIOLATIONS AND SUPPORTING EXHIBITS

Count	Allegation	Key Exhibits	Proven By
Count I	Labor rate fraud: \$110/hr quoted, \$200/hr billed; 8-hr billing for vendor-confirmed 3-hr job; deliberate slowdown; complimentary hour withheld	C, E, F, G, H, O, P, V, B-2, BE	SFL's own invoice + SFL vendor's written admissions, CC'd to FMC Investigator; CMM's own photograph showing ground-level simple loading configuration
Count II	Recycled materials billed at new rates; receipts refused at 3 escalating levels including FMC mediator request	F, O, T	SFL's own invoice self-incrimination; FMC Investigator's written request ignored; Complainant's formal CADRS submissions documenting receipt demand
Count III	Contracted wooden crate never delivered; fabricated waiver; completion obtained under manufactured duress	H, P, X, G	Written crate requirement accepted without objection; Walmart admission destroys waiver claim; slowdown as duress
Count IV	\$220 detention caused entirely by CMM's deliberate slowdown + coffee stop; Kiswani ticket contradicts SFL's timeline; \$110 Kiswani markup	E, G, O, P, W	CMM owner's written admission; independent third-party carrier document; two-layer wrongfulness; Rodriguez 3-hour job acknowledgment
Count V	Zero container strapping after formal written notice 11 days pre-sailing; CTU Code violation; \$40,820 cargo at risk	B, D, B-2	Photographic evidence + SFL's written non-response to formal notice; CMM's own photograph confirming operational feasibility of re-securing

Count VI	Cargo hostage; Zelle-only mandate post-dispute; FCBA rights eliminated; payments made under documented protest	C, H, U, BE	SFL's own quote (multi-payment) vs. post-dispute conduct; protest notations on payments; full labor dispute chain documenting credit card refusal
Count VII	Bill of Lading withheld from Complainant; trade invoice suppression; B/L withholding foreclosed independent CHA; causal chain to India customs damages	Q, AA-2, AA-14, AA-15B, BB, BC, BD	SFL's own delivery timeline vs. written promise; two-day production to federal investigator vs. withholding from shipper; ICD personal appearance corroboration; statutory pre-arrival filing right
Count VIII	SFL collected \$7,840; had not paid CMM \$2,200 as of March 19 — confirmed to FMC Investigator; Rodriguez “significant loss” contradicts flat rate	O, P, BB	CMM owner's written non-payment admission, CC'd directly to FMC Investigator Bragança; flat-rate admission contradicting "significant loss" claim
Count IX	Destination service abandonment: 43-day non-initiation; false legal representation on 3 occasions (1 audio-recorded); 8+ broken commitments; passport routing error; blank document request; 3 document errors; threatened service abandonment	AA-1 through AA-15C	Contemporaneous records, audio recordings, SFL written admissions, CBIC gazette notification; ICD personal appearance; statutory pre-arrival filing right; Commissioner's condonation power
Count X	Post-deposit retroactive contract modification: March 2 disclaimer sent after irrevocable \$1,000 deposit; expanded exclusions beyond original contract	C, AA-2, BE	Original quote (included vs. excluded); March 2 notice timing vs. deposit date
Count XI	Explicit institutional refusal to maintain written correspondence during active contested customs clearance and pending FMC proceedings	AA-9, AA-11	SFL Viral's own statement documented in real time; adoptive admission by silence; Viral's three admissions including "SFL will not answer emails"
Count XII	Bad faith unified pattern from origin to destination: CADRS stonewalling; \$750 mathematical admission; CMM demand to suppress complaints; unified methodology across two continents	S, P, BB, BC, BD, BE	Mathematical proof; timeline analysis; CMM public admissions binding on SFL as principal; Rodriguez admissions CC'd to FMC Investigator
Count XIII	Financial entrapment: pre-booking ToR assurance induced \$1,000 deposit; midnight disclosure at 9:46 PM deliberately foreclosed exit; five-officer adoptive admission	AA-2, AA-3, AA-4, AA-6, AA-9A	Adoptive admission by five SFL officers; Naman Mehta's March 2 email; booking date = deposit date; formal notice to five officers unanswered establishing adoptive admission
Pattern	\$750 post-CADRS offer = mathematically precise internal admission of rate overcharge ($\$90 \times 8.333$ hrs); zero offer during 13 days of active CADRS mediation	C, F, S	SFL's own post-CADRS number self-incriminates internal knowledge of violation; no coincidence defense available

SECTION I — PARTIES

COMPLAINANT:

Name: Aman Kaushik

Current Address: B221, Sector 35, Suncity Township, Rohtak, Haryana, India — 124001

Email: kaushikaman611@gmail.com

Phone: +91-99969-84450 | +1-352-888-0213

Former US Address: 1139 Windemere Ln, Aurora, Illinois 60504

Representative US Address: 1765 Beech St, Normal, Illinois 61761

Occupation: Embedded Software Engineer (formerly employed at Caterpillar Inc., Peoria, IL; involuntarily terminated January 31, 2026)

RESPONDENT:

Name: SFL Worldwide LLC

OTI License: 025184

Address: 3364 Garden Brook Drive, Farmers Branch, TX 75234

Contact: Naman Mehta, Loken Singh

Phone: 1-973-913-7272, 1-469-708-2229

Email: naman@sflworldwide.com, Loken@sflworldwide.com

OTI Type: NVOCC and Ocean Freight Forwarder

KEY SFL PERSONNEL REFERENCED IN THIS COMPLAINT:

Naman Mehta — Operations/Sales representative, SFL Worldwide LLC, Farmers Branch TX; primary point of contact for this shipment from booking through CADRS.

Viral — identified herself on the April 21, 2026 recorded conference call as CEO/owner of SFL Worldwide India; specific legal name, corporate title, and organizational relationship to SFL Worldwide LLC (OTI #025184) to be confirmed through Respondent's mandatory Answer. Complainant requests that Respondent's Answer confirm this individual's full legal name, title, and whether she is an officer, member, manager, or employee of SFL Worldwide LLC.

Abhay Soni — SFL operations, US-side; referenced in pre-loading CMM communications regarding the flat-rate arrangement.

Mamta Hazarika — SFL India operations; participated in April 21, 2026 conference call.

Afreen Athaniyaa — SFL India operations.

Loken Singh — SFL India operations.

Madhu Sudhan M. — SFL US Sales Head.

Complainant requests that Respondent's Answer confirm the full legal names, titles, and employment status of all individuals identified herein by first name only, to enable proper service of subpoenas and deposition notices in discovery.

SECTION II — JURISDICTION AND STATUTORY BASIS

1. This Complaint is filed pursuant to the Shipping Act of 1984, as amended (46 U.S.C. §§ 40101 et seq.), specifically under 46 C.F.R. § 502.62 (Formal Complaint):

— 46 U.S.C. § 41102(c): Prohibition on unreasonable practices in the handling, custody, and delivery of property;

— 46 U.S.C. § 41305(b), (c), and (e): Reparations for actual injury, double reparations upon knowing and willful violations, and attorney fees.

2. Respondent SFL Worldwide LLC is a licensed Ocean Transportation Intermediary (OTI) registered with this Commission under License No. 025184, operating as both a Non-Vessel Operating Common Carrier (NVOCC) and an Ocean Freight Forwarder. As a licensed OTI, SFL Worldwide LLC is subject to the full requirements and prohibitions of the Shipping Act and all Commission regulations.

2A. OTI CAPACITY APPLICABLE TO EACH PHASE: For the purposes of this Complaint, Respondent operated in the following capacities: (a) **NVOCC capacity** — during the origin service phase, including container booking, labor billing, container loading, and B/L issuance, SFL operated as an NVOCC subject to 46 C.F.R. Part 520 tariff requirements and the non-delegable duty to provide just and reasonable practices under 46 U.S.C. § 41102(c); (b) **Ocean Freight Forwarder capacity** — during the destination customs coordination phase, SFL operated as an OFF subject to 46 C.F.R. Part 515 requirements. SFL's NVOCC surety bond (\$75,000, Bond No. SU48064, United States Fire Insurance Company, effective October 23, 2015) and its OFF surety bond (\$50,000, Bond No. 612405911, United States Fire Insurance Company, effective October 28, 2022) both apply.

2B. SFL WORLDWIDE LLC'S OTI AUTHORITY EXTENDS TO INDIA-SIDE OPERATIONS: SFL Worldwide LLC's OTI authority under License No. 025184 extends to the full door-to-door through-transportation arrangement contracted with Complainant, including destination customs coordination performed by SFL's India-side operations. All India-based SFL personnel referenced in this Complaint — including "Viral" (owner/CEO, SFL India operations), Mamta Hazarika, Afreen Athaniyaa, and Loken Singh — were acting as agents of SFL Worldwide

LLC (OTI #025184) within the scope of the contracted through-transportation service. SFL Worldwide LLC cannot disclaim its US OTI liability by characterizing its India-based coordinators as separate entities — the through-transportation obligation runs to the US licensee, and the licensee bears non-delegable responsibility for the destination side of the contracted service under 46 U.S.C. § 41102(c) and its general duties as a licensed OTI under 46 C.F.R. § 515.31. The door-to-door contract (Exhibit C), booked under SFL Worldwide LLC's OTI authority, is the governing instrument, and all destination performance obligations under it are SFL Worldwide LLC's obligations regardless of which SFL personnel executed them.

2C. TARIFF AND NRA RATE DOCUMENTATION VIOLATIONS — 46 C.F.R. parts 520 and 532; RESPONDENT'S OWN RULE 35 PROHIBITS THE INVOICED RATE:

Respondent's published tariff (FMC Tariff No. 001, Org. No. 025184-001, published by Distribution Publications Inc., accessed May 27, 2026) contains no rate, rule, or provision authorizing any hourly labor charge, origin handling charge, or packing materials charge of any kind (Exhibit BE). The tariff's sole commodity rate is a generic CARGO NOS ocean freight rate of \$500 WM, effective November 4, 2014. Respondent's tariff includes Rule 35 governing Negotiated Rate Arrangements — confirming Respondent's awareness of and registration for NRA compliance. Respondent's written quote of February 12, 2026 (Exhibit C) therefore constitutes the operative NRA or agreed rate document under 46 C.F.R. Part 532, establishing \$110/hr as the binding labor rate. No document in Respondent's tariff or any other rate filing authorizes a \$200/hr labor charge. The \$200/hr billing therefore had no tariff authority, no NRA authority, and no legal basis of any kind under 46 C.F.R. Parts 520 or 532 as of the date it was invoiced.

Furthermore, Respondent's own published tariff Rule 35 governing Negotiated Rate Arrangements expressly provides at Rule 35(e) that an NRA “may not be modified after the time the initial shipment is received by the carrier or its agent.” Under 46 C.F.R. § 532.5, an NRA may be amended after cargo receipt only prospectively — meaning any amendment ‘may only apply prospectively to shipments not yet received by the NVOCC.’ This shipment consisted of a single container of household goods received by Respondent's agent on March 3, 2026. There were no future shipments to which any post-receipt rate change could prospectively apply. Respondent's invoice of March 10, 2026 purporting to charge \$200/hr on cargo already received on March 3, 2026 therefore cannot constitute a valid NRA amendment under § 532.5 — it is a retroactive modification of the agreed rate on cargo already in Respondent's custody, which § 532.5 explicitly prohibits. Respondent's own tariff Rule 35(e) independently confirms this prohibition in language Respondent itself drafted and published.

Respondent's written quote of February 12, 2026 (Exhibit C) constitutes a valid NRA under Rule 35 — it is in writing, identifies both parties by legal name, was agreed prior to cargo receipt on March 3, 2026, and clearly specifies \$110/hr as the applicable labor rate for Shipment #28015003. Respondent's invoice of March 10, 2026 purporting to charge \$200/hr constitutes a post-receipt modification of the agreed NRA rate — a modification that Rule 35(e) of Respondent's own published tariff explicitly prohibits. Respondent therefore violated not only 46 U.S.C. § 41102(c)

but its own governing tariff rule, under a rate-modification prohibition that Respondent itself drafted, published, and was required to follow. No defense of mistake, estimation, or good-faith disagreement is available to a party that violates its own explicitly published tariff rule.

3. The amount of the immediate, documentable origin-side claim is \$2,930.00. An additional claim for customs duties and fees contingently arising as a result of Respondent's documentation failures – amount to be confirmed upon cargo delivery and customs clearance; currently reserved and described in Section VIII. A further reservation for cargo damage and/or M&E derangement, up to \$2,500.00 (insurance deductible) plus any uninsured M&E loss, is reserved and described in Section IX. The immediate claim is well within the range appropriate for formal complaint proceedings under 46 C.F.R. § 502.62, which imposes no upper monetary cap. India-side destination damages — including customs duty, Inland Container Depot (ICD) storage charges, and substitute performance costs — are expressly reserved for supplemental quantification upon customs clearance completion.

4. Complainant is an individual shipper who contracted with Respondent for the international export of household goods valued at approximately \$40,820.00 from Aurora, Illinois, USA, to Rohtak, Haryana, India.

5. All informal remedies have been exhausted. FMC CADRS Case #260159 was formally closed on March 25, 2026, after Respondent refused to engage in good-faith settlement during thirteen days of active federal mediation. This formal Complaint is the direct result of that failure.

5A. REQUEST FOR WRITTEN PROCEEDINGS: Complainant requests that this matter be adjudicated on the written record without an oral hearing. Under 46 C.F.R. § 502.62, the presiding officer determines whether an oral hearing is necessary, and Complainant respectfully submits that the documentary record is sufficient for decision. Should the presiding officer determine an oral hearing is necessary, Complainant requests that it be conducted by remote video conference given Complainant's international residency and documented medical limitations. This matter is capable of complete resolution on the written record as submitted. The Commission evaluates the sufficiency of a Shipping Act complaint under the federal plausibility standard of *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), as applied in *Cornell v. Princess Cruise Lines, Ltd.*, FMC Docket No. 13-02 (FMC 2014): well-pleaded factual allegations are assumed true and all reasonable inferences are drawn in Complainant's favor. Complainant's counts, supported by contemporaneous self-sent email records, multiple audio-recorded telephone calls (including the April 23, 2026 conference call documenting the CHA's false legal representation; the May 1, 2026 call documenting Viral's three institutional admissions; and the May 9, 2026 call capturing the CHA's threat to abandon contracted service) authenticated under 46 C.F.R. § 502.204, and SFL's own written non-denials, satisfy and substantially exceed this standard. Following Complainant's election of formal complaint procedure communicated to the Office of the Secretary on April 23, 2026, this Complaint was prepared in accordance with the FMC Secretary's Office's formatting instructions of May 7, 2026.

STATUTE OF LIMITATIONS: This Complaint is timely under 46 U.S.C. § 41301. The earliest violation (labor billing, Count I) accrued on March 10, 2026 (SFL’s invoice date), and this filing is within the three-year limitations period. All origin-side violations accrued between March 3 and March 26, 2026. The India-side violations (Counts IX–XI, XIII) constitute continuing violations, the last act of which occurred on May 9, 2026 (CHA’s final service abandonment threat, captured on audio recording and documented in Exhibit AA-10). Under the continuing violation doctrine applicable to ongoing unreasonable practices under 46 U.S.C. § 41102(c), the limitations period for the India-side claims runs from the last act of the ongoing violation — May 9, 2026 — and filing is timely within that period. No claim in this Complaint is time-barred under 46 U.S.C. § 41301(a).

5B. FMC JURISDICTION AND SHIPPING ACT NEXUS: Complainant clarifies that Counts I through XIII are not brought as independent common law or state statutory causes of action. They are pled solely as factual components demonstrating a continuous pattern of unjust and unreasonable practices in the receiving, handling, storing, and delivery of property by a licensed OTI, in direct violation of 46 U.S.C. § 41102(c). Every challenged practice occurred in direct connection with international ocean transportation governed by Respondent’s OTI authority under License No. 025184, including container loading, ocean freight billing, detention assessment, Bill of Lading control, customs documentation, and destination delivery coordination. References to state statutes (815 ILCS 505/2; Tex. Bus. & Com. Code § 17.41) are offered solely as illustrative evidence of the character of the conduct — not as independent causes of action before this Commission. Even absent specific proof of subjective intent, each challenged practice was objectively unreasonable under 46 U.S.C. § 41102(c). Additionally, Complainant pleads that Respondent’s inflation of the hourly labor rate from the contracted \$110/hour to \$200/hour, alongside the fabrication of hours and material costs, constitutes an unjust and unreasonable practice in connection with the handling and delivery of property in violation of 46 U.S.C. § 41102(c). Complainant reserves the right to amend and supplement this Complaint following discovery and cargo inspection.

5C. ELEMENTS OF A § 41102(c) CLAIM UNDER 46 C.F.R. § 545.4: The Commission’s interpretive rule at 46 C.F.R. § 545.4 sets the elements of a § 41102(c) reparations claim: (a) the respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) the challenged acts or omissions occur on a normal, customary, and continuous basis; (c) the practice relates to or is connected with receiving, handling, storing, or delivering property; (d) the practice is unjust or unreasonable; and (e) the practice is the proximate cause of the claimed loss. Complainant satisfies each element. (a) SFL is a licensed OTI (License No. 025184) operating as both an NVOCC and an Ocean Freight Forwarder. (b) The challenged conduct is not an isolated act but a single continuous methodology — collect payment for a contracted service, deploy a subcontractor, receive real-time written notice of specific failures, take no corrective action, and force Complainant to self-perform — applied repeatedly and identically at the origin on March 3, 2026 and again at the destination from April 14 through May 9, 2026, and corroborated by SFL’s documented pattern-and-practice conduct in the BBB record.

(c) Every challenged practice — billing, crate non-delivery, stowage, Bill of Lading control, customs documentation, and destination delivery — is directly connected with the receiving, handling, storing, or delivering of property. (d) Each practice was objectively unjust or unreasonable, as set out in Counts I through XIII. (e) Each practice is the proximate cause of a specific, described category of loss, as set out in the causation paragraph of each Count. Because all five § 545.4 elements are met, the conduct is actionable under § 41102(c) regardless of which reading of the “continuous” element the Commission applies.

5D. ELECTION OF PROCEDURE, BIFURCATION, DISCOVERY, AND RIPENESS:

Complainant elects to proceed under the formal complaint procedure of 46 C.F.R. § 502.62, which imposes no upper monetary cap on formal complaints. The immediate documented origin-side claim of \$2,930.00 (or \$5,860.00 upon finding of willfulness) is presented as the liquidated, immediately recoverable component; reserved India-side claims will be quantified by supplemental filing. Complainant is aware of the informal Small Claims procedure under Subpart S of the Commission's Rules (46 C.F.R. §§ 502.301–502.305), which is limited to claims of \$50,000 or less and requires the consent of both parties to proceed informally, and affirmatively declines to elect it for four reasons: (a) the reserved India-side claims, when quantified, are likely to exceed the \$50,000 small-claims range; (b) the complexity of thirteen counts across two continents, with audio recordings, adoptive admissions, and supplemental filings, is not suited to the abbreviated informal record; (c) the Bureau of Enforcement referral request and the specific documentary direction requested in the Prayer for Relief are more appropriately resolved in a full formal proceeding under 46 C.F.R. § 502.62; and (d) had Complainant elected Subpart S, Respondent could have refused consent and converted the proceeding to Subpart T formal small-claims adjudication regardless — making the formal complaint path under § 502.62 the only route guaranteeing access to the full evidentiary and discovery mechanisms this case requires.

Complainant requests bifurcation of this proceeding: the Commission is respectfully requested to proceed immediately on the liquidated, fully documented origin-side overcharges in Table B, while staying or deferring adjudication of the contingent India-side destination damages under Counts IX, X, XI, and XIII pending final customs clearance of Container TCLU6938770. Should the reserved India-side claims, when quantified, cause the total claim to exceed \$50,000, Complainant requests conversion to full formal hearing procedure at that time. Any reparations order issued in Phase I shall not constitute a finding that Respondent's OTI liability has been fully adjudicated. The Phase I order shall expressly preserve all reserved India-side claims and shall not be construed as a final resolution of Respondent's liability under 46 U.S.C. § 41102(c) for the conduct described in Counts IX, X, XI, and XIII. Complainant expressly opposes any res judicata or collateral estoppel application of a Phase I order to Phase II claims.

RIPENESS OF INDIA-SIDE COUNTS: Counts IX, X, XI, and XIII are fully ripe and justiciable notwithstanding the unliquidated status of the resulting damages. These counts establish completed statutory violations under 46 U.S.C. § 41102(c) based on SFL's actual destination-side abandonment, document withholding, and false legal representations occurring between March

and May 2026. The statutory infractions are complete and cognizable now. The precise quantum of the resulting financial injury (customs duties, storage fees) continues to accrue and will be fully liquidated by a supplemental statement of damages, which Complainant will file with supporting receipts as each cost is incurred and confirmed, consistent with the phased adjudication requested in this Complaint. The Commission is not being asked to adjudicate speculative future injury — it is being asked to find that completed violations occurred, with damages to be supplemented upon quantification.

In the alternative, if the Commission declines bifurcation, Complainant requests that the initial scheduling order provide for a phased discovery and briefing schedule: Phase I covering the origin-side liquidated claims (Counts I–VIII) with a 90-day completion target; Phase II covering the India-side contingent claims (Counts IX, X, XI, XIII) with commencement triggered upon completion of customs clearance of Container TCLU6938770. This alternative phasing achieves the same result as bifurcation without requiring two separate docket entries.

Complainant requests that the initial scheduling order provide for a 60-day discovery period during which Complainant may serve requests for production pursuant to 46 C.F.R. § 502.146 (Subpart J — Disclosures and Discovery), specifically including the SFL-CMM vendor agreement, payment records, internal communications regarding Shipment #28015003, SFL’s customer complaint logs for the preceding 36 months, SFL’s Kiswani carrier agreement and actual Kiswani invoice for this shipment, and all detention-related carrier invoices. Respondent is further requested to preserve all electronic communications including email, WhatsApp, SMS, CRM notes, call logs, and accounting records relating to this shipment. Pursuant to 46 C.F.R. § 502.62(b)(1), Respondent is required to file an Answer within 25 days after the date of service of this Complaint. Should Respondent fail to file a timely Answer, the well-pleaded factual allegations of this Complaint will be deemed admitted under 46 C.F.R. § 502.62(b)(6), and Complainant will move for an initial decision on default pursuant to 46 C.F.R. § 502.65.

5E. RESERVATION REGARDING PARALLEL PROCEEDINGS: Nothing in this Complaint, and no proceeding before any Indian customs authority, shall constitute a waiver of Complainant’s rights before this Commission. No determination by any Indian authority shall be offered as preclusive in these proceedings, which arise exclusively under the Shipping Act of 1984 and are subject to the adjudicative authority of this Commission. Additionally, nothing in any proceeding before any state Attorney General (including but not limited to the Illinois AG, Case #54715, and the Texas AG, Case #TCP-034455, referenced in Exhibits M and N), any consumer protection agency, or any other administrative body shall be offered as preclusive in these proceedings. FMC reparations jurisdiction under 46 U.S.C. § 41305 is exclusive to this Commission for claims arising under the Shipping Act. State AG proceedings, if resolved, may be offered as evidence of the character and pattern of Respondent’s conduct but shall not constitute findings of fact binding on this Commission. Complainant notes for the record that the factual descriptions in this Complaint represent the most complete and carefully documented account of the relevant events across all pending proceedings, prepared with the benefit of a full documentary

record review. Any prior complaint filings with consumer protection agencies were necessarily prepared without the benefit of that full review, and Complainant expressly reserves the right to clarify, supplement, or correct any prior consumer complaint filing to align with the documented facts as established in this proceeding. Certain factual conclusions stated herein are based on the documentary record presently available to Complainant and are pled subject to amendment or supplement following compelled discovery production by Respondent.

5F. EVIDENTIARY NOTE ON ADOPTIVE ADMISSIONS AND AUTHENTICATION:

The adoptive admission doctrine is invoked in this complaint where: (a) a specific, detailed factual assertion was transmitted in writing to the party with personal knowledge; (b) the assertion, if false, would be immediately and obviously deniable; (c) the receiving party had every practical opportunity and professional incentive to respond; and (d) the receiving party in fact made no denial across multiple subsequent communications. Each invocation meets all four criteria. Adoptive admissions are presented as corroborative evidence alongside independent documentary proof — not as primary evidence standing alone for any count. The contemporaneous self-sent email records are offered not only under FRE 803(6) but also as present-sense impressions (FRE 803(1)) and past recollection recorded (FRE 803(5)), all admissible under 46 C.F.R. § 502.204. The audio recordings referenced in this Complaint — including but not limited to the April 23, 2026 conference call with Viral and CHA Minesh Shah, the May 1, 2026 call with Viral, and the May 9, 2026 call with CHA Minesh Shah — are true, unedited recordings preserved in original format on Complainant's device with cloud backup, and are available for immediate production upon the ALJ's request. Each recording was made while Complainant was physically located in Rohtak, Haryana, India, under one-party consent rules applicable in that jurisdiction. Complainant can provide MD5 hash values, device metadata, and cloud backup confirmation upon request.

SECTION III — BACKGROUND AND SHIPMENT DETAILS

Shipment Reference ID: 28015003

Container Number: TCLU6938770

Container Type: 20-foot ocean container

Shipping Line: Ocean Network Express (ONE Line)

Origin: Aurora, Illinois, USA

Destination: Rohtak, Haryana, India

Loading Date: March 3, 2026

Vessel Load Date: March 16, 2026 (Norfolk, VA)

Container Arrival: Nhava Sheva, Mumbai, India — May 12, 2026

Insurance Provider: Lakeland Insurance Services

Policy Number: 7661288000185

Declared Cargo Value: \$40,820.00 (approx.)

Insurance Deductible: \$2,500.00

M&E Derangement Rider: NOT purchased (expressly excluded from policy)

Origin Vendor: Chicago Marathon Movers (Chicago, IL), selected and dispatched by SFL Worldwide

India CHA: Minesh Shah / LAC Relocations, appointed by SFL Worldwide (not by Complainant)

6. Complainant did not contract directly with Chicago Marathon Movers (CMM). SFL Worldwide selected, engaged, and dispatched CMM as its sub-vendor. SFL therefore bears full principal liability for CMM's conduct, billing, and representations on the day of loading.

7. LEGAL STANDING OF OTI LIABILITY & REBUTTAL OF "INTERMEDIARY IRRELEVANCE": As a licensed OTI, Respondent SFL Worldwide bears full, non-delegable responsibility for the acts, omissions, and billing practices of the vendors it selects and deploys. The duty to provide just and reasonable practices under 46 U.S.C. § 41102(c) cannot be outsourced or delegated to a subcontractor.

During CADRS, a suggestion was made that SFL's internal financial arrangement with CMM might be "irrelevant." Complainant respectfully submits this is legally incorrect for three reasons:

Billing Fabrication: On information and belief, and as corroborated by CMM's owner Danny Rodriguez — who admitted by telephone that SFL engaged CMM under a fixed wholesale flat-rate arrangement of approximately \$2,200.00, described as "fixed regardless of time," and whose admission Complainant immediately memorialized in writing CC'd directly to FMC Investigator Mark Bragança, left uncontested by both CMM and SFL — this is not a private business matter. It is the primary evidence that SFL's per-hour billing construct was fabricated. Should SFL dispute this, the Commission is invited to direct SFL to produce its actual written agreement with CMM.

Motive: By converting a concealed \$2,200.00 fixed vendor cost into a variable \$200/hr consumer-facing bill, SFL extracted an undisclosed markup through a billing construct reverse-engineered to conceal its actual vendor cost — never disclosed to Complainant.

Non-Delegable Duty: SFL cannot use its subcontractor as a liability shield. The Commission's jurisdiction and SFL's obligations run directly to Complainant as Shipper of Record. *See Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010) (OTI bears non-delegable liability for subcontractor conduct).

AGENCY PREDICATE — CMM AS SFL'S AUTHORIZED AGENT: The agency relationship between SFL and Chicago Marathon Movers for this shipment is established by five independently sufficient facts, each documented in the record: (a) SFL's selection and engagement of CMM as origin vendor — confirmed in Exhibit C and SFL's own communications, with CMM

dispatched exclusively on SFL's direction; (b) SFL's contractual obligation to pay CMM for the work — admitted by CMM's owner Rodriguez in writing CC'd to FMC Investigator Bragança (Exhibit P) and confirmed in Count VIII; (c) CMM's owner Danny Rodriguez's own written confirmation that SFL Worldwide LLC was the "third-party broker" who coordinated services for this shipment — a formal public admission in CMM's May 12, 2026 BBB response (Exhibit BB); (d) SFL's active real-time direction of CMM's work during loading — SFL's Naman Mehta communicated with Complainant by phone at least three to four times during the loading day per Mehta's own written admission (Exhibit H), and Complainant relayed crew failures to SFL in real time, establishing SFL's supervisory role; and (e) SFL's billing of Complainant for CMM's services as if they were SFL's own — the SFL invoice (Exhibit F) lists CMM's labor charges and materials as SFL's direct billings to Complainant. Each of these five facts independently establishes the agency relationship under FRE 801(d)(2)(D), making all of CMM's admissions — including the flat-rate disclosure, the deliberate slowdown admission, and the BBB non-denials — binding on SFL as principal. SFL cannot characterize CMM as an independent contractor to evade liability for CMM's acts when SFL selected CMM, directed CMM's work in real time, billed Complainant for CMM's services, and was identified as CMM's principal by CMM's own owner on the public record.

8. REMOTE COORDINATION AND ON-SITE REPRESENTATION: Complainant was not physically present on March 3, 2026, coordinating remotely from out of state. A trusted representative ("Arun") was present on-site at Complainant's direction. As detailed in Counts I and VI, Respondent exploited Complainant's absence and the facility's closing time to engineer a coerced signature on job completion documents through a two-step pressure chain involving SFL's Naman Mehta. That signature does not reflect voluntary acceptance of the disputed charges or service quality.

SECTION IV — STATEMENT OF FACTS

A. PRE-MOVE REPRESENTATIONS AND CONTRACTUAL COMMITMENTS:

9. Prior to booking, SFL Worldwide made the following specific representations to Complainant, which formed the basis of Complainant's decision to engage SFL:

(a) LABOR RATE: The labor rate for the origin service was \$110.00 per hour for a 3-person crew, with the first hour free. This rate was expressly stated in SFL's written quote and formed the basis of the \$5,150.00 total contract price (Exhibit C). Prior to executing the contract and paying the \$1,000 non-refundable deposit, Complainant asked SFL's Naman Mehta specifically and repeatedly how the moving crew's labor charges would be calculated. Mehta represented verbally, on multiple occasions, that Complainant would pay actual labor costs only — nothing more. This verbal representation was consistent with and corroborated by the February 12, 2026 written quote, which established \$110/hour as the contracted labor rate. Complainant relied on these

representations — both written and verbal — in deciding to proceed with SFL. SFL’s final invoice charged \$200/hour, 82% above the quoted rate, while simultaneously concealing a flat-rate subcontractor arrangement with CMM that rendered the per-hour billing structure fictional from the start. Mehta’s verbal “actuals” representation was therefore false at the time it was made.

(b) STRAPPING AND SECURING: SFL represented that the contents of the container would be strapped, leashed, and secured inside the container to withstand ocean transit. Complainant specifically inquired about securing before booking, given the nature of the cargo (LG C1 65” OLED TV, engineering workstation, floor-standing tower speakers, subwoofers, telescope, and other high-value precision electronics).

(c) WOODEN CRATE: SFL confirmed, prior to loading, that a mandatory wooden crate would be provided for the LG C1 65-inch OLED television, consistent with Complainant’s written Packing Protocol provided and acknowledged before move day.

(d) PAYMENT OPTIONS: SFL’s written quote listed Check, Wire Transfer, or Zelle as accepted payment methods. No restriction on credit card payments was disclosed at booking. No condition was disclosed that payment methods would be restricted post-loading or post-dispute.

(e) MATERIALS: SFL represented that packing materials used would be professional, export-grade materials appropriate for international ocean freight of high-value electronics.

(f) PACKING PROTOCOL & MOISTURE CONTROL PROTOCOL ACKNOWLEDGMENT: Complainant — drawing on his background as a professional Electrical and Embedded Software Engineer — provided a detailed written Packing Protocol to SFL’s representative Naman Mehta before move day. SFL similarly received and acknowledged the Moisture Control Protocol specifying silica gel desiccant placement inside all electronics cartons. Compliance with this protocol cannot be verified until cargo delivery and inspection. Complainant’s rights with respect to any breach are expressly reserved in Section IX. Complainant specifically reviewed both the Packing Protocol and the Moisture Control Protocol with SFL on a phone call to confirm there were no obstacles to following them; only after receiving SFL’s assurance did he proceed. The loading crew signed this protocol as well. The Protocol specified industrial lashing requirements, double-wall carton standards, silica gel placement, CP-status requirements, and a mandatory wooden crate for the OLED television. SFL received this document in writing before the move, raised no objection, and dispatched its vendor the following morning. SFL’s failure to follow this protocol was not a misunderstanding — it was a willful breach of a technically explicit contractual commitment.

(g) PRE-BOOKING ToR (Transfer of Residence) CONDONATION ASSURANCE: In early February 2026, over the course of approximately two weeks of pre-booking discussions, Complainant specifically raised with SFL’s Naman Mehta that his shipment would fall outside the 180-day Transfer of Residence window under the Indian Baggage Rules 2016, and that a ToR (Transfer of Residence) condonation application to the Commissioner of Customs would be required. Complainant was explicit: he would not contract with SFL and would not make any

payment unless SFL could confirm — after consulting its India-based customs professionals — that (a) ToR condonation was viable for Complainant’s specific circumstances (involuntary H-1B termination, three surgeries, documented medical compulsion to relocate), and (b) SFL would manage and file that application on Complainant’s behalf before vessel arrival as part of the contracted door-to-door customs clearance service. Naman Mehta represented that he had consulted SFL’s India-based customs professionals on Complainant’s behalf. After those consultations, Mehta confirmed both elements: the case was strong given Complainant’s medical documentation, condonation would be easily obtained, and SFL would file the application weeks before vessel arrival. It was in specific and exclusive reliance on this two-part assurance that Complainant executed the contract and paid the \$1,000 non-refundable advance deposit on February 23, 2026.

(g-1) THE MIDNIGHT DISCLOSURE — DELIBERATE FORECLOSURE OF EXIT:

Despite possessing full knowledge of the Non-ToR (Non – Transfer of Residence) customs classification before Complainant paid a single dollar, SFL’s Naman Mehta did not transmit any formal written Non-ToR customs disclosure until March 2, 2026 — eight days after collecting the non-refundable deposit and at approximately 9:46 PM India Standard Time, one day before the scheduled loading date of March 3, 2026. At the moment this disclosure arrived: (a) the \$1,000 deposit was non-refundable; (b) Complainant’s friend had already committed to a 5-6 hour round-trip drive from Bloomington, Illinois to Aurora, Illinois the following morning; (c) silica gel desiccants had been purchased per SFL’s instructions; (d) special permission had been obtained from the storage facility to allow a 20-foot ocean container on premises — a permission that storage facilities rarely grant and that required advance arrangement; (e) over one month of remote coordination and preparation had been invested. Complainant had no practical ability to cancel. When Complainant called Naman Mehta and explicitly objected — stating that SFL should have disclosed this earlier and that he was being put in an impossible position — Mehta confirmed the deposit was non-refundable and would be forfeited if Complainant did not proceed as SFL had booked the container already. No refund, cooling-off period, or accommodation of any kind was offered. Complainant proceeded under economic compulsion, not free choice. The selection of 9:46 PM IST — close to midnight in India, on the eve of a committed loading day, eight days after a non-refundable deposit was collected — is not an accident of administrative scheduling. Naman Mehta had booked the container with ONE Line on or around February 23, 2026 — the same day the deposit was collected. SFL therefore knew, from the moment of booking, that the container was sailing. The March 2 disclosure could have been sent on February 24, February 25, or any of the seven subsequent days. SFL chose March 2 at 9:46 PM. This is Count XIII.

10. Each of these six representations was breached. Each breach is documented with written evidence from SFL’s own correspondence and its sub-vendor’s own admissions. Additionally, SFL’s deliberate withholding of the Non-ToR customs disclosure until economic exit was impossible, despite full prior knowledge of the material information, constitutes an independent deceptive act established in sub-paragraph (g) above and addressed in Count XIII. Every material representation Complainant attributes to SFL’s representatives in this complaint is corroborated

by contemporaneous written records, SFL's own documents, or admissions made by SFL's agents to federal investigators.

SECTION IV (CONTINUED) — COUNTS I THROUGH VIII: ORIGIN-SIDE CONDUCT, BILLING FRAUD, UNAUTHORIZED CHARGES, CARGO HOSTAGE, AND STOWAGE NEGLIGENCE

B. COUNT I — BILLING FRAUD: LABOR RATE DECEPTION, FLAT-RATE CONCEALMENT, ADVANCE PREPARATION IGNORED, AND SYSTEMATIC TIME PADDING

[46 U.S.C. § 41102(c)]

11. RATE FRAUD — FROM \$110/HR TO \$200/HR WITH ZERO DISCLOSURE:

The original SFL quote (Exhibit C) was based on a labor rate of \$110.00 per hour, with the first hour free. SFL's final invoice dated March 10, 2026 (Exhibit F) charged \$200.00 per hour — an 82% rate increase that was never disclosed to Complainant, never agreed to by Complainant, and never reflected in any written amendment to the contract. The specific invoice line reads: "Labor: 8 hours × \$200/hr (3-man crew) = \$1,600.00." SFL charged a rate that was 82% higher than the contracted rate, for a duration nearly three times the reasonable baseline, with no prior disclosure of either change. In addition to the 82% rate increase, SFL's final invoice failed to apply the "first hour complimentary" provision explicitly stated in the February 12, 2026 written quote. Even at SFL's fraudulently inflated \$200/hour rate, SFL owed Complainant a \$200 credit for the first complimentary hour of labor. This credit was never applied. The total labor overcharge therefore includes not only the rate differential of \$90/hour × 8.333 hours = \$750, but also the unilateral removal of the complimentary hour benefit that formed part of the original contractual terms, representing an additional \$200 overcharge that SFL pocketed without disclosure or justification. Combined minimum labor overcharge: \$950, before accounting for hour inflation. SFL simultaneously raised the rate by 82% AND removed the contractual complimentary hour — two unilateral modifications to the written contract, neither disclosed, neither agreed to, both in SFL's financial favor. The complimentary first hour provision is denominated in hours, not dollars: it reduces billable labor by one crew-hour regardless of the applicable rate. Whether calculated at the contracted \$110/hr or the fraudulently billed \$200/hr, SFL owed Complainant a \$110–\$200 credit. SFL's voluntary absorption of the 20-minute overage does not constitute application of this credit — the quote provides for a complimentary full hour, not a complimentary 20 minutes. Respondent never issued any revised written estimate, change order, or written customer approval reflecting the post-loading increase from the quoted pricing structure to the invoiced pricing structure.

12. FLAT-RATE CONCEALMENT — VENDOR’S WRITTEN DISCLOSURE:

On March 19, 2026, Complainant spoke with CMM’s owner Danny Rodriguez by telephone. During that call, Danny Rodriguez disclosed that CMM’s compensation from SFL for this job was a flat rate of \$2,200.00, described as “fixed regardless of time (30 minutes or 8 hours),” and that SFL’s representative Abhay had been informed of this flat-rate arrangement prior to the job being performed.

Upon information and belief, this arrangement was documented in internal communications between CMM’s Danny Rodriguez and SFL’s Abhay Soni prior to the loading date of March 3, 2026. This belief is corroborated by independent mathematical evidence: SFL’s post-CADRS settlement offer of exactly \$750.00 corresponds with mathematical precision to the per-hour rate overcharge ($\$90.00 \times 8.333$ hours) — a figure that only makes sense if SFL was internally reconciling the difference between what it billed Complainant and what it actually owed its vendor under the flat-rate arrangement.

Following the call, Complainant sent a written summary memorializing these disclosures to Danny Rodriguez — CC’d directly to FMC CADRS Investigator Mark Bragança and SFL’s Naman Mehta. Neither Danny Rodriguez nor Naman Mehta replied to deny, correct, or dispute any portion of this written summary. Under the doctrine of adoptive admission (FRE Rule 801(d)(2)(B)), this uncontested written record constitutes acknowledgment of its accuracy by both parties.

This admission reveals the following:

(a) SFL’s internal cost for the entire origin service was a fixed \$2,200 flat rate. SFL then billed Complainant \$1,600 in fabricated “8h20m $\times$ \$200/hr” labor charges — a construct that does not reflect any actual per-hour arrangement between SFL and CMM. SFL invented a per-hour billing structure for the consumer while paying a flat rate to the vendor.

(b) The per-hour billing construct allowed SFL to present a fabricated time $\times$ rate calculation to Complainant that had no relationship to SFL’s actual underlying cost — enabling SFL to extract an undisclosed markup from the shipper.

(c) VICARIOUS ADMISSION BY AGENT: Danny Rodriguez’s disclosures constitute admissions by SFL’s authorized agent on a matter within the scope of the agency relationship — the moving services contracted by SFL for this specific shipment. Under Federal Rules of Evidence Rule 801(d)(2)(D), these statements are not hearsay — they are SFL’s own admissions made through its authorized subcontractor. SFL cannot distance itself from the flat-rate disclosure by characterizing Danny Rodriguez as an independent third party. He was acting as SFL’s agent for this job, and his admissions bind SFL.

(c-1) SECOND-LAYER ADOPTIVE ADMISSIONS — BBB REBUTTAL AND INSTITUTIONAL NON-RESPONSE RECORD: On March 20, 2026, Complainant filed a detailed written rebuttal to CMM’s initial BBB response (Exhibit BC), making seven specific factual allegations: (1) Rodriguez’s admission of the slow-walk instruction; (2) the \$2,200 flat-

rate arrangement and billing fabrication; (3) Complainant's representative being forced to perform 4 hours of unpaid physical labor; (4) the wooden crate failure and deliberate non-delivery; (5) zero You container strapping constituting intentional safety negligence; (6) CMM's demand that Complainant "put the complaints away" in exchange for a private deal to suppress federal complaints; and (7) CMM's attempt to defame Complainant before the FMC investigator. CMM did not respond to any of these seven allegations during the active complaint period. On April 12, 2026, after multiple contact attempts by BBB, the complaint was formally closed as "Unresolved" with a negative disposition (Exhibit BD), with BBB noting that CMM had declined to participate in mediation or arbitration. On May 12, 2026 — 30 days after the formal negative disposition, with no intervening contact with Complainant, and while Complainant was actively preparing this formal FMC complaint — CMM's owner Danny Rodriguez submitted an unsolicited response to the closed BBB complaint (Exhibit BB). That response addressed none of the seven specific factual allegations. Rodriguez did not deny the slow-walk instruction. Did not deny the flat-rate arrangement. Did not deny the 3-hour admission. Did not deny the zero strapping. Did not deny the "put the complaints away" demand. Did not deny the wooden crate failure. Did not deny the unauthorized labor exploitation. Under FRE Rule 801(d)(2)(B), CMM's total failure to deny any of the seven specific allegations across two separate response opportunities constitutes an adoptive admission of all seven on a permanent public consumer record. As CMM is SFL's authorized agent whose admissions bind SFL under FRE Rule 801(d)(2)(D), these seven adoptive admissions are attributable to SFL as the responsible principal.

(d) Additionally, SFL collected \$7,840.00 from Complainant by March 15, 2026 and, as of March 19, 2026, had NOT yet paid CMM the agreed \$2,200 flat-rate fee. Danny Rodriguez confirmed this non-payment in the March 19, 2026 email CC'd to FMC Investigator Mark Bragança. SFL held Complainant's full payment while simultaneously withholding payment from its own subcontractor — constituting unjust enrichment at the expense of both the consumer and the vendor. (See also Count VIII.)

(e) PRESERVATION NOTICE — INTERNAL COMMUNICATIONS: Respondent is hereby on notice that any and all internal and external communications between SFL Worldwide LLC and Chicago Marathon Movers — including but not limited to emails, text messages, phone records, notes, invoices, payment records, or any other written or electronic records — relating to Shipment #28015003, the loading date of March 3, 2026, or the compensation arrangement between SFL and CMM for this shipment, are discoverable documents in these proceedings. This preservation obligation applies to all SFL personnel including but not limited to Naman Mehta, Abhay Soni, and any other SFL representative who communicated with CMM or Danny Rodriguez in connection with this shipment. Respondent has a legal duty to preserve all such communications from the date of booking through the date of final resolution of this matter. Destruction or alteration of any such communication after receipt of this Complaint constitutes spoliation of evidence, for which the Commission may impose sanctions including adverse inference against Respondent on all disputed billing issues. Complainant specifically requests that this Commission order Respondent to preserve and produce all internal financial records, vendor payment records, and

communications with Chicago Marathon Movers Inc. relating to Shipment 28015003, including but not limited to: (i) the vendor agreement or rate arrangement between SFL and CMM for this shipment; (ii) all payment records showing amounts paid by SFL to CMM; (iii) all communications between SFL's Abhay Soni, Naman Mehta and CMM's Danny Rodriguez relating to this shipment; and (iv) all internal SFL invoicing or billing records for this shipment. Respondent is further specifically directed to preserve all electronic communications in their original native format, including all metadata, timestamps, read receipts, and delivery confirmations. Printed copies or screenshots do not satisfy this preservation obligation. The native-format preservation obligation applies to all email, WhatsApp, SMS, CRM, and internal messaging platforms without exception.

This preservation obligation extends beyond origin-side communications and applies with equal force to all internal and external SFL communications relating to the India-side destination service performance under this shipment — including but not limited to: all internal communications between SFL US personnel (including Naman Mehta, Abhay Soni, Loken Singh, and Madhu Sudhan M.) and SFL India personnel (including Viral, Mamta Hazarika, and Afreen Athaniyaa) regarding customs clearance strategy, ToR condonation filing decisions, CHA appointment and instruction, B/L release decisions, and any decision to limit, delay, or withhold written correspondence with Complainant; all communications between SFL and its appointed CHA (Minesh Shah / LAC Relocations) from March 2, 2026 through the date of final delivery of Container TCLU6938770 cargo to Complainant's residence; all internal SFL communications reflecting any instruction, policy, or decision regarding written communication with Complainant during any period covered by active CADRS or formal FMC proceedings; and all communications between any SFL personnel regarding this shipment created after the date of receipt of this Complaint, which are equally subject to this preservation obligation. Destruction, alteration, or failure to preserve any such communication after receipt of this Complaint constitutes spoliation of evidence, for which the Commission may impose sanctions including adverse inference against Respondent on all disputed destination-service and customs clearance issues.

12A. COMPLAINANT'S ADVANCE PREPARATION — RENDERING THE 8-HOUR CLAIM INDEFENSIBLE:

Prior to the crew's arrival on March 3, 2026, Complainant had pre-dismantled ALL major items and pre-packed a significant portion of the shipment. The crew arrived to a job that had already been substantially prepared — with no furniture assembly, no major item dismantling, and no complex packaging work remaining for them to perform. CMM's own Danny Rodriguez, in writing, characterized this as a “simple transfer from an organized storage locker directly into the container” — estimating the baseline at approximately 3 hours. That 3-hour estimate was not made in advance — it was made by CMM's owner Danny Rodriguez after the loading was complete, based on his crew's firsthand account of exactly what the job had entailed. This is not a prospective guess; it is a retrospective assessment by the owner of the company that performed the work, informed directly by the crew who performed it. The actual job was easier than even

that post-hoc 3-hour baseline. An 8-hour 20-minute billing for a pre-dismantled, pre-packed “simple transfer” — assessed by SFL’s own vendor’s owner as a 3-hour job after his crew completed it — is not a billing discrepancy. It is mathematical impossibility masquerading as a labor invoice.

12B. SFL’S QUOTE PRICED WITH FULL DOCUMENTED KNOWLEDGE OF COMPLETE PRE-DISASSEMBLY — MAKING 8-HOUR BILLING INDEFENSIBLE FROM THE QUOTING STAGE:

On February 10, 2026 — during the quoting stage and 13 days before booking and ~21 days before loading — Complainant sent SFL’s representative Naman Mehta a detailed written table (Exhibit V) identifying each major furniture item by name, disassembly status, and exact post-disassembly dimensions. The following items were explicitly labeled “Disassembled” with dimensional calculations:

- Standing Desk (Disassembled)
- Queen Size Bed Frame (Disassembled)
- Wooden Desk ×3 (Disassembled)
- Sofa (Disassembled)
- Queen Size Mattress (Folded)

Complainant also attached five photographs to this email showing the actual disassembled condition of these items — including the bed frame, wooden desk, standing desk, and folded mattress.

Critically, SFL’s Naman Mehta did not merely receive this information — he replied to this email directly, engaged with the dimensional data, and reproduced Complainant’s exact disassembly table in SFL’s own subsequent quote documents. SFL’s \$5,150.00 quote (Exhibit C) was therefore prepared and issued with full, active, documented knowledge that every major furniture item requiring disassembly had already been pre-disassembled by Complainant.

This has two direct consequences for the labor billing dispute:

(a) SFL cannot claim the 8-hour estimate was justified by anticipated disassembly work. Naman Mehta personally reviewed photographs and dimensions of pre-disassembled items on February 10, 2026 — three weeks before the job. There was no disassembly labor to estimate.

(b) Any portion of the 8-hour billing attributable to disassembly, setup, or furniture preparation constitutes charges for work that both parties documented — in writing, with photographs — would not be required. This is not a billing discrepancy. It is fabrication of labor scope that was contractually excluded before the job was ever booked.

(c) Ground-Level Single-Unit Configuration — Photographically Documented Operational Simplicity: The photograph comprising Exhibit B-2, taken on March 3, 2026 by the CMM crew

themselves during the loading operation, independently establishes the operational simplicity of this job beyond what the pre-disassembly disclosure alone conveys. The image shows the complete working configuration: a single ground-level storage unit, with the 20-foot ocean container parked directly adjacent in the same parking lot, creating a zero-stair, zero-elevator, single-floor horizontal transfer with full open-air working space. This configuration represents the minimum possible labor requirement for a loading job of this size — there were no multiple rooms to collect from, no residential floors to navigate, no stairwells, no elevator queuing, no doorway clearance challenges, and no uncertainty about total cargo volume since everything was consolidated in a single enclosed space.

This stands in stark contrast to the operational complexity of a standard residential move — which typically involves room-to-room collection across multiple floors, stair carries, hallway and doorway navigation, and the inherent unpredictability of a fully furnished home. None of those time factors existed here. The crew arrived at one door, at ground level, with a container parked directly in front of it. The entire job was a ground-level transfer from a single consolidated space.

The photograph further confirms what CMM owner Danny Rodriguez himself acknowledged in his post-completion written assessment — that this was "a simple transfer from an organized storage locker." Viewed against this photographic record taken by his own crew and sent by himself, Rodriguez's subsequent characterization of the unit as "disorganized" — made weeks later in the context of a billing dispute — is not only contradicted by his own prior statement but is operationally irrelevant: the internal organization of a single ground-level storage unit does not generate the multi-room, multi-floor complexity that justifies extended crew hours in a standard residential move. Even accepting Rodriguez's "disorganized" characterization at face value, a disorganized ground-level storage unit with a container parked at the door is structurally simpler than any multi-floor residential loading job. Rodriguez cannot rehabilitate an 8-hour claim by retroactively calling the unit disorganized when the photographic record shows exactly how straightforward the operational configuration was.

This conclusion is further compounded by the undisputed fact that Complainant's representative Arun provided approximately 4 hours of unpaid physical labor alongside the paid three-person crew — as documented in paragraph 16. A three-person professional crew, working in the simplest possible loading configuration, with a free fourth person contributing 4 hours of physical labor, billing 8 hours and 20 minutes for a job their own owner assessed as a 3-hour baseline, is not a billing discrepancy. It is mathematical impossibility compounded by photographic evidence.

Respondent cannot now claim ignorance of the job's reduced scope. SFL's own representative engaged with photographic evidence of the pre-work condition and used that information to generate the quote. The 8-hour billing was issued against a documented background of full advance knowledge that the labor scope had been materially reduced before the contract was signed.

(d) RODRIGUEZ'S MARCH 19, 2026 EMAIL TO FMC INVESTIGATOR — PREEMPTIVE DEFAMATION AND SELF-DEFEATING VALUATION ADMISSION:

On March 19, 2026, CMM owner Danny Rodriguez transmitted a written communication directly to FMC CADRS Investigator Mark Bragança — CC'd to Complainant and SFL's Naman Mehta — making three assertions: (a) that Complainant's job loss was relevant to the legitimacy of his complaint; (b) that Complainant intended to pursue a fraudulent insurance claim; and (c) that the declared cargo value of approximately \$42,000 was "materially overstated" based on what the crew "observed at the time of service."

Each of these assertions fails and each creates an independent evidentiary problem for Respondent.

First, Complainant's employment status is legally irrelevant to whether SFL billed \$200/hr against a \$110/hr contract, whether CMM's owner instructed a deliberate slowdown, or whether the container was dispatched without strapping. Rodriguez's decision to lead with Complainant's job loss — rather than addressing any of the specific factual allegations — is itself evidence that no factual rebuttal to those allegations was available. Critically, this defamatory email was transmitted at 4:27 AM — 40 mins after Rodriguez had already admitted the flat-rate arrangement at 3:47 AM in the same email thread CC'd to the same federal investigator. The character assassination attempt came after the confession, not before.

Second, the insurance fraud insinuation is factually false and reckless. Complainant had not filed any insurance claim as of March 19, 2026. Complainant had flagged a specific insurance coverage gap — the M&E derangement exclusion — in formal written notice to SFL on March 5, 2026 (Exhibit D), because SFL's failure to strap the container created an uninsured risk. Identifying a coverage gap created by the OTI's own negligence is not evidence of fraudulent intent — it is the conduct of a responsible shipper protecting his interests. Rodriguez's characterization of this legitimate risk identification as evidence of a fraud scheme, transmitted in writing to a federal investigator, constitutes an independent act of defamation against Complainant in a federal proceeding. Complainant's March 19, 2026 5:13 AM written rebuttal — transmitted in the same thread CC'd to FMC Investigator Bragança — further documented that CMM's own Origin Inventory, prepared by CMM's crew on March 3, 2026, recorded virtually all items as "Pristine/Good Condition." Rodriguez's claim that items "were not in a pristine state" is directly and contemporaneously contradicted by his own crew's documentation, on the same day it was made, in the same federal record.

Third, and most consequentially for the billing dispute, Rodriguez's assertion that the declared valuation was overstated based on what the crew "observed at the time of service" constitutes an admission that CMM's crew conducted a cargo assessment during the loading operation. A crew that assessed the cargo thoroughly enough to form an opinion about its aggregate value had sufficient information to estimate loading time accurately — directly undermining any claim that the 8-hour billing target, announced before the storage unit was even opened, was a good-faith professional estimate rather than a predetermined figure. Rodriguez cannot simultaneously claim the crew knew the cargo well enough to opine on its total value while claiming they could not have known the job scope well enough to estimate time accurately before beginning. These two positions are mutually exclusive. The Commission is invited to apply Rodriguez's own valuation

assessment as evidence that the crew's predetermined 8-hour billing announcement was not an estimate — it was a target. Rodriguez's March 19, 2026 email chain, comprising his flat-rate admission at 3:47 AM, his defamatory 4:27 AM response, and Complainant's documented rebuttal at 5:13 AM, is preserved in its entirety as Exhibit P. As CMM's admissions are attributable to SFL as principal under FRE 801(d)(2)(D), Rodriguez's defamatory characterizations of Complainant's legitimate conduct — transmitted directly to a federal investigator — are SFL's own conduct before this Commission.

12C. THE 3-HOUR BASELINE IS INDEPENDENTLY CORROBORATED — NOT DEPENDENT ON RODRIGUEZ CREDIBILITY ALONE:

The 3-hour baseline for this job is not dependent on Rodriguez's credibility alone. It is established by three independent sources, each sufficient on its own:

(1) **SFL's own pre-booking records:** Naman Mehta personally reviewed Complainant's February 10, 2026 table (Exhibit V) documenting the pre-disassembly of every major furniture item with dimensions and photographs, and reproduced that table in the written quote. SFL therefore priced the job with full documented knowledge that no assembly, dismantling, or complex packaging work remained.

(2) **Photographic record:** The photographs attached to Exhibit V show the actual pre-dismantled condition of the furniture, independently establishing that the job scope SFL priced was a simple, pre-organized container transfer.

(3) **Industry standard:** The professional standard for a 3-person crew loading a pre-dismantled, pre-packed 20-foot container from an organized storage unit — with no assembly work, no packaging of loose items, and no stair-carry — is 2.5 to 3.5 hours. This range is confirmed by the convergence of three independent documentary sources already in the record: (1) the first point described above about detailed disassembly knowledge; (2) Rodriguez's post-completion assessment in Exhibit E ("simple transfer from an organized storage locker", 3-hour baseline) — made by the performing vendor's owner based on his crew's firsthand account after completion; and (3) the mathematical reconciliation of SFL's post-CADRS \$750 offer ($\90×8.333 hours) with the contracted rate, which independently confirms SFL's internal recognition of a 3-hour reasonable baseline. No external authority is required because the evidence internal to this case establishes the baseline with precision — three independent sources all converge on the same figure. Should SFL contest this benchmark, Complainant requests that the ALJ direct SFL to produce the job-scope estimation methodology CMM used to justify its pre-site-inspection 8-hour billing declaration — which will either confirm the fabricated target or confirm that no methodology was applied before the figure was announced.

12D. THE COLLUSION THEORY — PRE-PLANNED BILLING SCHEME BETWEEN SFL AND CMM, CONFIRMED BY RODRIGUEZ'S INADVERTENT CONFESSION UNDER FEDERAL INVESTIGATOR PRESSURE:

The evidence established across paragraphs 12 through 12C, read as a unified whole, supports a conclusion more damaging than billing negligence: a pre-arranged, coordinated scheme between SFL Worldwide and Chicago Marathon Movers to extract maximum revenue from Complainant through a fabricated hourly billing construct concealing a fixed wholesale arrangement. This theory is not speculative — it is established by the convergence of five independently documented facts, none of which depends on Complainant's characterization.

Fact 1 — The 8-Hour Target Was Pre-Communicated Before the Unit Was Seen: CMM's crew announced "8 hours" upon arrival, before the storage unit door was opened. Complainant documented in writing on March 4 and March 6, 2026 that the crew stated this figure "had been pre-communicated" to SFL. Neither SFL nor CMM denied this in any subsequent correspondence — constituting an adoptive admission under FRE 801(d)(2)(B) that SFL accepted a predetermined billing target from its vendor before a single item had been seen or handled.

Fact 2 — The Flat Rate Made the Hours Irrelevant to CMM: Rodriguez confirmed in writing, CC'd to FMC Investigator Bragança, on March 19, 2026 at 3:47 AM, that CMM's compensation was "fixed regardless of the time required — whether it took 30 minutes or 8 hours." CMM therefore had zero financial incentive to work efficiently or to accurately estimate hours. The hours were irrelevant to CMM's compensation. They were only relevant to what SFL could bill Complainant.

Fact 3 — The Slowdown Was Owner-Directed: Rodriguez admitted in the same March 19, 2026 call — memorialized in writing CC'd to FMC Investigator Bragança and never denied by Rodriguez or SFL — that he instructed his crew to work slowly. This instruction came from the owner of CMM. It was not a crew initiative. An owner-directed slowdown on an hourly-billed job, where the owner's own compensation is fixed regardless of hours, has only one beneficiary: the party billing the customer by the hour. That party was SFL.

Fact 4 — The Confession Was Involuntary and Came Only Under Federal Pressure: Rodriguez never disclosed the flat-rate arrangement, the slowdown instruction, or the 3-hour baseline to Complainant during the billing dispute, during SFL's invoice period, or during the early days of active CADRS mediation. The disclosure occurred only after Complainant filed formal FMCSA and BBB complaints and engaged FMC CADRS — placing Rodriguez in direct written communication with a federal investigator for the first time. Rodriguez's March 19, 3:47 AM written admission was not a voluntary disclosure of a neutral business fact. It was a strategic miscalculation: Rodriguez believed admitting the flat rate would distance CMM from SFL's billing dispute with Complainant, without realizing he was simultaneously confessing to the mechanism of the fraud. The concealment held until federal pressure broke it open. A billing arrangement that requires federal investigator involvement to surface is not a good-faith commercial practice — it is a deliberately maintained concealment.

Fact 5 — SFL's Post-CADRS \$750 Offer Confirms Internal Pre-Knowledge: SFL's offer of exactly \$750.00 — mathematically equal to $\$90/\text{hr} \times 8.333 \text{ hours}$, derived entirely from SFL's own invoice — within 5 hours of CADRS closure demonstrates that SFL was internally calculating the

minimum rate-overcharge liability during the mediation period while offering nothing to the federal mediator. SFL knew the overcharge figure. SFL knew it during CADRS. SFL chose to withhold it until the federal oversight process closed. This is not the behavior of a party that made an honest billing mistake — it is the behavior of a party that knew precisely what it had done and calculated the minimum cost of concealing it through the federal mediation process.

The Legal Consequence: The convergence of these five facts establishes that the billing fraud in Count I was not a series of independent errors by SFL and CMM operating separately. It was a coordinated pre-planned scheme in which SFL established a predetermined revenue target of 8 hours at \$200/hr, communicated that target to CMM before the job, CMM executed the target through an owner-directed slowdown while being compensated on a fixed basis that made actual hours irrelevant, and SFL billed Complainant for the fabricated hours at the undisclosed rate. The scheme was designed to be invisible — and remained invisible until Complainant's persistence through multiple regulatory channels compelled Rodriguez's inadvertent written confession to a federal investigator. Under 46 U.S.C. § 41305(c), pre-planned coordinated billing fraud — concealed through active regulatory proceedings and only surfaced through federal pressure — represents the most willful category of OTI misconduct and warrants the maximum double reparations available under the statute. The Commission is respectfully invited to treat ¶12D not merely as additional support for Count I, but as the framework through which all thirteen counts in this complaint should be understood: a single continuous methodology of pre-planned extraction, coordinated concealment, and regulatory evasion applied by SFL across the full arc of this shipper's engagement.

13. PREDETERMINED 8-HOUR BILLING TARGET:

Upon arrival at the storage unit on March 3, 2026, and before the storage unit door had even been opened or the contents inspected, CMM's crew declared the job would take "8 hours." No professional labor estimate can be made before a unit is seen — particularly before observing that the client had pre-dismantled and pre-packed the contents. This statement alone establishes that the 8-hour figure was predetermined, not an assessment of actual labor.

CMM's crew further stated on-site that this figure had already been communicated to SFL prior to their arrival. Complainant documented this in writing on two separate dates — March 4, 2026 and March 6, 2026 (Exhibit H) — stating respectively that the crew claimed "an 8-hour window had been pre-communicated" and that they "had let the shipper know about this in advance." Neither SFL nor CMM denied or disputed either statement in any subsequent correspondence. Under FRE Rule 801(d)(2)(B), this constitutes adoptive admission by both parties that SFL accepted a predetermined billing target from its vendor before a single item had been seen or handled — and passed it to Complainant without disclosure. Should SFL dispute this, the Commission is invited to direct production of all pre-job communications between CMM and SFL for Shipment #28015003.

CMM's owner Danny Rodriguez confirmed in writing (Exhibit E) that this type of job — a simple transfer from an organized storage locker — had a 3-hour baseline. Given Complainant's documented pre-work, actual required time was less. An 8-hour 20-minute bill for a pre-packed, pre-dismantled job with a vendor-confirmed 3-hour baseline is not a billing discrepancy — it is a predetermined billing target supported by two independent layers of documentary evidence.

14. TIME THEFT — WORK ORDER FRAUD:

CMM's own work order records the crew start time as 9:40 AM (Exhibit G). However, CMM's own email to SFL (Exhibit E) admits: "they made a stop for fuel and coffee in the morning... and also ran into some traffic coming from the city of Chicago" and acknowledges actual on-site arrival at 9:55 AM. Billing for 9:40 AM when the crew did not arrive until 9:55 AM constitutes fraudulent time theft. Fifteen minutes of time was billed for which no services were rendered. This is also a direct violation of the Illinois Consumer Fraud and Deceptive Business Practices Act (815 ILCS 505/2). The calculable financial harm of this specific time theft is \$50.00: fifteen minutes of a 3-person crew billed at \$200.00 per hour, for time during which no services were rendered at the job site — a standalone, documentable consumer fraud violation under 815 ILCS 505/2, independent of the broader labor billing dispute, and constituting a documentable component of the total labor overcharge quantified in Count I. The same personal fuel and coffee stop — taken during the contracted 8:30–9:00 AM arrival window — is the direct and sole cause of the late container departure that generated the \$220.00 container detention charge billed to Complainant (addressed further in Count IV).

15. MOVER ALLOCATED TO INVENTORY WRITING — NOT LABOR:

Of the three-person crew dispatched by CMM, one crew member spent approximately 2.5 hours exclusively writing the cargo inventory list. This person performed no physical packing or loading labor during most of the 8 hr period. Complainant was billed at \$200.00/hr for all three crew members for the full duration — meaning Complainant was charged approximately \$533.33 (\$1600 total bill / 3 guys = \$533.33/person) for a person who spent 2.5 hours writing an inventory list rather than performing any labor.

16. COMPLAINANT'S REPRESENTATIVE PROVIDED 4 HOURS OF UNPAID LABOR, REPORTED SERVICE FAILURES IN REAL TIME, AND WAS SUBJECTED TO JOB-SHEET SIGNATURE COERCION AT FACILITY CLOSING TIME:

Arun acted as Complainant's authorized representative at the origin site on March 3, 2026, with express actual authority to supervise the loading, verify execution of the Packing Protocol, and report failures to Complainant in real time — authority communicated to SFL's Naman Mehta before move day and confirmed in writing by Mehta on March 10, 2026 (Exhibit H), in which Mehta acknowledged that Complainant and he had spoken by phone at least three to four times on that day, confirming that SFL knew Arun was acting as Complainant's agent on-site. Complainant's contemporaneous written account of Arun's on-site observations was transmitted

to SFL and left undisputed; SFL's failure to dispute that account constitutes an adoptive admission under FRE 801(d)(2)(B). Complainant's representative Arun, present on-site in a supervisory capacity only, was compelled by the inadequacy and incompetence of the crew to physically perform labor alongside the paid movers for approximately 4 hours. He initiated tasks, directed the crew, and performed physical packing and loading work that the crew failed to initiate on their own.

At an industry-standard rate of \$110/hr (the contracted rate), 4 hours of Complainant's representative's labor = \$440.00 of services Complainant provided to himself and was charged for by SFL's vendor. This contribution is established without third-party declaration: Complainant's March 6, 2026 formal dispute email (Exhibit H) explicitly documented Arun's 4-hour physical labor contribution to SFL's Naman Mehta — CC'd to Arun himself — and neither SFL in its March 10, 2026 formal billing response nor CMM in its contemporaneous response to SFL denied, disputed, or addressed this allegation in any respect, constituting adoptive admission by both parties under FRE 801(d)(2)(B). The \$440 is presented as substitute-performance damages recoverable under § 41102(c) where Complainant was compelled to self-supply services SFL was contracted and paid to provide. Independently of this authority, substitute-performance damages are recoverable as a straightforward consequential damages theory under § 41305(a): Complainant was compelled to self-perform a service SFL was contracted and paid to provide, creating a direct causal link between SFL's vendor's deliberate slowdown — admitted in writing by Danny Rodriguez, CC'd to FMC Investigator Bragança (Exhibit P) — and Arun's forced 4-hour labor contribution. No special precedent is required for this theory beyond the causal chain established in the record. Alternatively, Complainant requests the ALJ treat this amount as mitigation credit reducing SFL's labor overcharge rather than as an independent item, should the ALJ find substitute-performance damages require a separate evidentiary foundation.

Critically, these failures were not raised retroactively after the invoice arrived — they were reported in real time, while the labor clock was running. Complainant contacted SFL's Naman Mehta by telephone on 4–5 separate occasions during the loading day to report the crew's late arrival, the missing materials, and the crew's deliberately slow work pace. SFL's own Naman Mehta confirmed this in writing on March 10, 2026: “On that day, you and I spoke at least three to four times by phone.” (Exhibit H.) Complainant subsequently formalized these real-time grievances in writing on March 4, 2026, and again on March 6, 2026. Respondent's consistent failure to deny these documented reports in any subsequent correspondence constitutes an Adoptive Admission under FRE 801(d)(2)(B). On information and belief, SFL relayed at least one of these real-time complaints to CMM's Danny Rodriguez in writing during the job. Should SFL deny this, the Commission is respectfully invited to direct production of all internal SFL-to-CMM communications on March 3, 2026, relating to Shipment #28015003. CMM's crew received actual or constructive notice of the pace complaint and continued the deliberate slowdown regardless — as Danny Rodriguez later admitted in writing on March 19, 2026, CC'd to FMC Investigator Mark Bragança (Exhibit P). Despite actual, confirmed, real-time knowledge of ongoing service failures,

SFL dispatched no supervisor, sent no replacement crew, and took no corrective action. SFL was not uninformed — it was informed repeatedly, in real time, and chose not to act.

At the conclusion of the loading day, with the storage facility closing at approximately 6:00 PM, Marathon Movers' crew refused to vacate until Complainant's representative signed the job completion documents. SFL's Naman Mehta instructed Complainant's representative to sign. Complainant was not physically present and could not conduct any meaningful inspection. The time pressure compelling this signature was created entirely by the crew's own tardiness and deliberate slowdown — admitted in writing by Danny Rodriguez, CC'd to FMC Investigator Mark Bragança on March 19, 2026. The crew manufactured the time crisis, then used it to compel sign-off. Respondent may not rely on this job-sheet signature as evidence of service acceptance. It was obtained under duress and does not constitute voluntary acceptance of the disputed billing, missing crate, or quality of work. Any such attempt would constitute an independent act of bad faith under 46 U.S.C. § 41102(c).

17. DANNY RODRIGUEZ ADMITTED DELIBERATE SLOWDOWN:

During the March 19, 2026 telephone call, Danny Rodriguez admitted to Complainant that he had instructed his crew to work slowly on this job. Following the call, Complainant's written summary memorializing this admission was sent to Danny Rodriguez — CC'd directly to FMC CADRS Investigator Mark Bragança and SFL's Naman Mehta. Neither Danny Rodriguez nor Naman Mehta replied to deny, correct, or dispute this portion of the written summary. Under the doctrine of adoptive admission (FRE Rule 801(d)(2)(B)), this uncontested written record constitutes acknowledgment of its accuracy by both parties.

This admission is not Complainant's allegation — it is SFL's own vendor's statement, made during a call that was contemporaneously documented in writing and transmitted to a federal investigator without denial or correction. Upon information and belief, this deliberate slowdown was not a spontaneous crew decision but a pre-arranged instruction communicated before or during the job — corroborated by the fact that the crew announced "8 hours" before the storage unit door was even opened, a figure that only makes sense if the duration was predetermined.

This admission establishes three direct consequences:

- (a)** The extended on-site time was not caused by job complexity — it was caused by owner-directed deliberate slowdown. The same person who admitted instructing the slowdown is the same person whose company billed the extended hours.
- (b)** The \$220.00 container detention charge billed to Complainant was the direct and sole consequence of this deliberate slowdown. The crew's late start — compounded by owner-directed slow pace — caused the container to remain on-site beyond the free time window. SFL billed the victim of that manufactured delay for the cost it generated. This charge is not recoverable by Respondent — it is a fabricated cost created by SFL's own vendor and passed to Complainant as if it were a legitimate third-party expense.

(c) A deliberate owner-directed slowdown on a job billed at an hourly rate constitutes fraud. It is not a performance dispute — it is the intentional inflation of billable hours through manufactured inefficiency, for the direct financial benefit of the billing party. The deliberate-slowdown finding is independently corroborated by four sources, none of which depends on Rodriguez’s credibility alone: (a) the predetermined 8-hour billing target announced before the storage unit was inspected (¶13) — a professional labor estimate cannot be made before a unit is seen; (b) the 9:55 AM actual arrival versus 9:40 AM billed start time established by CMM’s own work order and admission (¶14) — demonstrating a pre-existing pattern of time fabrication; (c) CMM’s owner’s complete silence across two BBB response opportunities on the specific slow-walk allegation (¶12(c-1), Exhibits BC and BB) — constituting adoptive admission under FRE 801(d)(2)(B); and (d) the mathematical impossibility of 8h20m of labor on a pre-disassembled, pre-packed transfer assessed by the performing vendor’s owner as a 3-hour job (¶12A and ¶12B). The deliberate-slowdown conclusion is established by the convergence of these four independent facts, with Rodriguez’s written admission as the fifth and most direct corroboration. Respondent may attempt to use CMM’s May 12, 2026 BBB response (Exhibit BB) to retroactively characterize the slowdown as “changing scope requests.” This characterization fails for three independent reasons. First, “changing scope requests” is not a denial of the slowdown instruction — it is a different and inconsistent explanation. Rodriguez cannot simultaneously have instructed deliberate slowdown AND been responding to changing scope requests; these are mutually exclusive explanations for the same time period. A factual correction available since March 19 that is not offered until May 12 — after a negative consumer disposition, during active federal proceedings — carries no rehabilitative weight. The passage of time does not improve the reliability of a denial that was available immediately and not made. Third, the written summary of the March 19 call (Exhibit P) was transmitted on March 19 — 54 days before Rodriguez’s BBB response — directly to FMC Investigator Bragança, in a context where Rodriguez had every professional incentive to deny immediately if the characterization was inaccurate. Rodriguez did not deny it then, and he cannot rehabilitate that failure with a retroactive characterization 54 days later. The March 19 adoptive admission is irreversible.

17A. SFL’S FOUR-LAYER PROFIT STRUCTURE — COORDINATED SCHEME, NOT COINCIDENCE:

SFL’s billing fraud operated on four simultaneous profit layers, each independently documented, and together constituting a coordinated scheme.

Profit Layer 1 — Rate Markup: SFL quoted Complainant \$110/hour and billed \$200/hour — an 82% undisclosed rate increase. The \$90/hour spread across 8.333 invoiced hours = \$750 extracted above the contracted rate.

Profit Layer 2 — Hours Inflation: CMM’s crew, under Danny Rodriguez’s admitted instruction to work slowly, inflated a 3-hour job to 8.333 hours. SFL’s invoice billed \$1,600.00 in labor charges (8 hours × \$200/hr crew-hour rate, voluntarily absorbing the final 20-minute overage). At the full 8.333-hour claimed duration, the mathematically correct charge at \$200/hr would be

\$1,666 — SFL's actual invoice of \$1,600 reflects a voluntary 20-minute reduction. The \$200/hr rate throughout this Complaint refers to the all-in crew-hour rate for the 3-person crew as a unit, consistent with SFL's own invoice line showing 8 hours × \$200/hr = \$1,600 total. SFL collected 8 crew-hours at \$200/crew-hour = \$1,600 in labor charges while paying CMM a flat \$2,200 for the entire job regardless of hours.

Profit Layer 3 — Detention Free-Time Fabrication (\$55 documented; \$220 wrongful in full):

SFL billed Complainant \$220.00 for two hours of container detention at \$110 per hour. The Kiswani Container Trucking delivery ticket (Exhibit W) — a third-party carrier document created by Kiswani, not by Complainant and not by Respondent — states in the carrier's own handwriting that free time ran from 1:00 PM to 3:00 PM: two hours. Respondent's Naman Mehta, in his March 10, 2026 written explanation to Complainant (Exhibit H), states that free time ran until 2:30 PM: one hour. These two statements cannot both be true. The only document establishing the carrier's actual free-time terms is Kiswani's own ticket. Respondent's application of a one-hour free period against Kiswani's documented two-hour free period — a thirty-minute reduction in the billable start time — generated \$55 in additional detention charges at the invoiced rate of \$110 per hour that have no carrier support, no contractual basis, and were never disclosed to Complainant. This was not an arithmetic error. Applying a one-hour free period instead of Kiswani's documented two hours required an affirmative decision to use a different free-time window than the one the carrier established in the document Respondent held in its possession. That decision generated revenue. The \$220 total detention charge is wrongful in full on the independent and primary causation ground: the entire detention event was caused by Chicago Marathon Movers' admitted deliberate slowdown — a vendor-caused delay for which Complainant bears zero liability. The \$55 free-time fabrication is the secondary ground, self-proving from documents already in evidence without requiring any further production. The combination of all three layers — rate overcharge, hour inflation, and detention free-time fabrication — means Respondent was simultaneously overcharging Complainant per hour, collecting more hours than the job required, and applying a fabricated free-time window on the detention pass-through. All three deviations run in the same direction. All three underlying documents exist. All three were in Respondent's possession when the invoice was constructed.

Profit Layer 4 — Materials Substitution Fraud (estimated \$600 overcharge — fully documented in Count II): SFL billed \$870 for packing materials its own invoice confirms were overwhelmingly recycled/used goods, with receipts refused across three escalating demand channels including a federal mediator's direct request. The full analysis appears in Count II. Its inclusion here is limited to one observation:

The Commission is invited to note the following: across all four profit layers, every single deviation on every line item of SFL's invoice runs in the same direction —

Rate charged: above contract. Hours billed: above vendor's own post-completion assessment. Detention: above carrier's documented free-time window. Materials: above

documented market value. Four independent billing components. Four deviations. All in SFL's favor.

No coincidence defense is available to a party that controlled all four variables and set all four against the consumer.

18. SUMMARY OF COUNT I — LABOR BILLING OVERCHARGES:

CMM's own written admission: 3-hour baseline for this job (and Complainant's pre-work made the job easier than that baseline).

Contracted rate per SFL quote: \$110.00/hr, first hour free.

Reasonable billable labor: 3 hrs × \$110/hr = \$330.00

SFL invoiced: 8h20m × \$200/hr × 3 crew = \$1,600.00

Overcharge on labor alone: \$1,600.00 – \$330.00 = \$1,270.00 minimum, plus the \$200.00 unilateral removal of the contractual complimentary hour = \$1,470.00 minimum overcharge.

CMM claimed 8h20m. At least 15 minutes constitutes documented time theft — billing from 9:40 AM when actual arrival was 9:55 AM (¶14). SFL absorbed the final 20 minutes, invoicing 8 hours flat — burying the fabricated pre-arrival time while leaving the rate fraud and hour inflation intact. This voluntary reduction does not affect the overcharge calculation above.

Respondent's conduct in charging an undisclosed rate of \$200/hr, fabricating a per-hour billing structure over a pre-known flat-rate vendor arrangement, and accepting inflated time records for a pre-dismantled, pre-packed job constitutes an unreasonable practice in connection with the handling of ocean cargo under 46 U.S.C. § 41102(c).

18A. NRA RATE MODIFICATION PROHIBITION — RULE 35(e) AND 46 C.F.R. § 532.5:

Independent of the factual evidence establishing billing fraud, Respondent's own published tariff Rule 35(e) — a document Respondent drafted, published, and was required to follow, (produced herein as Exhibit BE)— provides that an NRA 'may not be modified after the time the initial shipment is received by the carrier or its agent.' Under current federal law at 46 C.F.R. § 532.5, even where a post-receipt NRA amendment is permitted, such amendment 'may only apply prospectively to shipments not yet received by the NVOCC.' Respondent's written quote of February 12, 2026 (Exhibit C) constitutes a valid NRA under Rule 35 and § 532.5 — it is in writing, identifies both parties by legal name, was agreed prior to cargo receipt on March 3, 2026, and clearly specifies \$110/hr as the applicable labor rate for Shipment #28015003. This was a single container shipment. There were no future shipments to which any prospective amendment could apply. Respondent's invoice of \$200/hr issued March 10, 2026 is therefore an impermissible retroactive rate modification on cargo already in Respondent's custody — prohibited simultaneously by Respondent's own tariff Rule 35(e) (Exhibit BE) and by 46 C.F.R. § 532.5. The Count I rate overcharge is therefore not merely an unreasonable practice under § 41102(c) — it is

a violation of Respondent's own governing regulatory instrument and the controlling federal regulation, under a prohibition that admits no good faith defense.

PREEMPTIVE REBUTTAL — JOB-SHEET SIGNATURE DEFENSE: SFL will argue that the job completion documents signed by Complainant's representative at the close of March 3, 2026 constitute voluntary acceptance of SFL's billing and service quality. This argument fails as a matter of law for two independent reasons. First, a signature obtained through manufactured time pressure — where the pressure was created entirely by the demanding party's own misconduct — cannot constitute voluntary consent. *See Restatement (Second) of Contracts § 175* (a party's manifestation of assent induced by an improper threat by the other party that leaves the victim no reasonable alternative is voidable). Here, the “no reasonable alternative” was manufactured by CMM's own deliberate slowdown, and SFL's own Naman Mehta directed the signature. The instrument creating the emergency was the same party seeking to benefit from the resulting document — that is the textbook improper threat. Second, under the Shipping Act, the Commission independently evaluates whether the underlying practices were reasonable — a job-sheet signature cannot waive the Commission's jurisdiction over whether the billing and service practices that preceded the signature violated 46 U.S.C. § 41102(c). Respondent is specifically estopped from asserting the signature as a defense.

PREEMPTIVE REBUTTAL — ACCORD AND SATISFACTION DEFENSE: SFL will argue that Complainant's payment of the full \$7,840.00 constitutes accord and satisfaction extinguishing all reparations claims. This defense fails under both federal maritime law and general contract principles. Under the Shipping Act, the Commission's reparations remedy would be rendered completely meaningless if an OTI could extinguish it by holding cargo hostage until the shipper pays under duress. *Petra Pet, Inc. v. Panda Logistics Ltd.*, 32 S.R.R. 787 (ALJ 2012), 2013 WL 9808694 (FMC Oct. 31, 2013) (shipper's payment of disputed charges under threat of cargo loss does not constitute accord and satisfaction and does not extinguish the right to reparations before the Commission). The doctrine of accord and satisfaction requires (1) a bona fide dispute, (2) a new agreement in satisfaction, and (3) voluntary acceptance of consideration. Element (3) is absent here. Every post-dispute payment was made via Zelle under Complainant's documented written protest, marked “PAID UNDER PROTEST — FMC CADRS #260159.” A payment made under documented written protest — with explicit reservation of all rights preserved contemporaneously in writing — is not voluntary acceptance and cannot constitute accord and satisfaction as a matter of law.

C. COUNT II — MATERIALS FRAUD: RECYCLED GOODS BILLED AS NEW, RECEIPTS DEMANDED AND REFUSED AT THREE SEPARATE LEVELS

[46 U.S.C. § 41102(c)]

19. SFL's own March 10, 2026 invoice (Exhibit F) itemizes the materials charge as follows:

“TV/monitor boxes x7, recycled boxes x67, moving blankets x14, shrink wrap x7, corrugated rolls x5, bubble wrap x3 — \$870.00”

This invoice was written by SFL itself. SFL’s own document confirms that 67 of the cartons provided were recycled/used cartons — not new export-grade cartons. SFL self-incriminated in its own billing document.

20. Despite labeling 67 out of 74 total cartons as “recycled,” SFL charged \$870.00 — a price consistent with all-new, export-grade professional packing materials. No price differentiation was applied between the 7 TV/monitor boxes and the 67 recycled cartons. Complainant was charged new-material rates for used materials. Additionally, on information and belief, the 14 moving blankets referenced in the invoice were also used/recycled rather than new professional-grade materials — a characterization consistent with CMM's documented practice of supplying recycled cartons for this job and subject to confirmation upon cargo inspection and delivery.

21. The SFL quote (Exhibit C) specified that materials would be charged “at actuals” — meaning at the actual documented cost to SFL. Without itemized receipts, there is no basis to verify that \$870.00 reflects any actual cost. SFL has never produced a single receipt, purchase order, or supplier invoice to substantiate any portion of the \$870.00 charge.

22. THREE-STAGE DOCUMENTED DEMAND FOR RECEIPTS — ALL IGNORED:

STAGE 1 — Direct demand to SFL (Naman Mehta): On or about March 4–5, 2026, Complainant specifically stated that “the materials provided appeared to be used, which is a blatant violation of professional moving standards” and demanded documentation. SFL’s response: No receipts provided.

STAGE 2 — BBB Complaint (March 13, 2026): Complainant’s BBB complaint stated: “I request itemized receipts for all new materials — otherwise, the charge must be reduced to documented actuals.” SFL didn’t respond.

STAGE 3 — FMC CADRS Mediator Request: During active federal mediation, Complainant formally requested of FMC CADRS Investigator Mark Bragança itemized third-party receipts supporting the \$870 charge. Investigator Bragança responded: “Acknowledged. I will approach SFL and keep you updated.” SFL did not provide receipts to the federal mediator either.

An \$870.00 charge that SFL’s own invoice confirms was overwhelmingly composed of recycled materials, for which SFL refused to provide receipts to a direct consumer request, a BBB complaint, AND a federal mediator’s specific written request, cannot be considered a legitimate, documented “at actuals” charge. Complainant is prepared to pay fair market value of approximately \$270.00 for the basic materials actually used.

ADVERSE INFERENCE: The Commission may draw an adverse inference from SFL’s systematic and unbroken refusal to produce a single receipt across three escalating demand channels. A party that possesses documentation supporting a charge it defends as legitimate would produce that documentation when a federal investigator requests it. SFL did not. The inference

available to the Commission is that the receipts do not exist, or that the actual documented cost of materials is materially less than \$870.00, and that SFL's refusal to disclose is deliberate concealment of a fraudulent charge — consistent with, and corroborated by, SFL's own invoice language: "recycled boxes x67" charged at new-material rates.

D. COUNT III — WOODEN CRATE FRAUD AND FABRICATED WAIVER

[46 U.S.C. § 41102(c)]

23. Prior to the move, the written Packing Protocol provided by Complainant and acknowledged by SFL specifically required a mandatory wooden crate for the LG C1 65-inch OLED television (replacement value approximately \$2,800.00). This requirement was in writing, was acknowledged by SFL before move day, and was signed by the loading crew on move day.

24. CMM's crew arrived on March 3, 2026 without the wooden crate. When Complainant's representative asked about the crate, the crew told him they did not have the materials and would need to "go to Walmart" to find them. This conclusively proves: (a) The crew arrived unprepared, without materials explicitly required in the signed Packing Protocol; and (b) The crew never had any intention of building a proper wooden crate — the suggestion to use Walmart materials for a custom protective crate for a \$2,800 OLED television is itself evidence of gross negligence.

25. SFL subsequently communicated to Complainant that the wooden crate had been "waived" by Complainant's representative. This statement is false. Complainant's representative never waived the crate requirement. The fabricated waiver narrative was constructed by CMM after the fact to cover their failure to bring the required material, and SFL passed this fabricated narrative to Complainant without questioning it, without investigating it, and without providing any evidence that a waiver conversation occurred.

The documented sequence, stated explicitly in Complainant's March 6, 2026 formal email to SFL (Exhibit H), is: the crew arrived without the crate; SFL communicated to Complainant that crate material "will be sent to the site" — an acknowledgment of the failure and a promise to remedy it; no material was ever sent; CMM's crew then told Complainant's representative they would need to go to Walmart themselves. CMM thereafter fabricated a waiver claim to shift responsibility. Complainant rejected this in writing as "false" on March 6, 2026 (Exhibit H). Neither SFL nor CMM disputed or denied this sequence at any point in the subsequent correspondence record. That silence constitutes an Adoptive Admission under FRE 801(d)(2)(B). SFL's conduct — first promising to send the crate, then relaying CMM's fabricated waiver without investigation — constitutes independent bad faith under 46 U.S.C. § 41102(c).

26. When Complainant confronted SFL and CMM with the Walmart statement — which directly contradicts the "waiver" claim — neither SFL nor CMM provided any explanation reconciling these two contradictory positions. The Walmart statement proves the crew arrived with nothing; the waiver claim is therefore factually impossible.

27. SFL subsequently claimed in correspondence that the wooden crate would have cost \$400 — specifically \$200 for materials and \$200 for one hour of labor — a breakdown SFL and CMM repeated across multiple communications to deter Complainant from insisting on performance of a contracted obligation. Complainant, understanding the financial stakes for a \$2,800 OLED television, explicitly agreed to absorb this \$400 cost. SFL and CMM nonetheless failed to deliver. This \$400 figure is itself a material misrepresentation. Pre-cut wooden crate kits for large-format televisions (like 65”) are commercially available for approximately \$50-\$150 and can be assembled in under 10 minutes with basic hand tools requiring no power tools and no professional assembly. Professional moving companies routinely carry and deploy these kits as standard equipment. SFL's \$400 deterrent was not a good-faith cost estimate — it was a fabricated cost justification deployed repeatedly to avoid fulfilling a contracted obligation that Complainant had already agreed to pay for.

28. Complainant was denied a contracted wooden crate service that SFL had specifically committed to in writing in the Packing Protocol (Exhibit X), acknowledged by SFL before move day and signed by the loading crew on move day. No wooden crate was provided. No legitimate waiver was obtained. SFL's subsequent claim that the crate was “waived” is a fabricated narrative constructed after the fact to conceal the crew's failure to arrive with required materials — a failure that directly exposed a \$2,800.00 LG C1 65-inch OLED television to unprotected ocean transit.

When Complainant provided SFL with photographic proof of the container's dangerous condition — including visible voids and complete absence of internal strapping — and made multiple urgent written requests for remediation before the vessel sailed, Respondent categorically refused to take any corrective action and explicitly refused to accept any liability. The container was still accessible. Correction was still possible. Respondent chose not to act.

This refusal to mitigate a documented, self-caused hazard — with full knowledge that the cargo would be subjected to oceanic forces for 45–50 days without adequate protection — constitutes gross negligence and an unreasonable practice under 46 U.S.C. § 41102(c). It also defeats any future attempt by Respondent to characterize cargo damage as an unforeseeable event: SFL was warned in writing, shown photographic evidence, and given the opportunity to remedy the situation before departure. Respondent's explicit refusal to act converts what might otherwise be characterized as negligence into willful exposure of cargo to known, documented, foreseeable risk.

(For full documentation of the container's unseaworthy condition and SFL's post-loading refusal to remediate, see Count V — Negligent Stowage and CTU Code Violation.)

E. COUNT IV — CONTAINER DETENTION (\$220): CAUSED ENTIRELY BY SFL'S OWN VENDOR'S MISCONDUCT

[46 U.S.C. § 41102(c)]

29. SFL's March 10, 2026 invoice charged Complainant \$220.00 for container detention: "Container on-site 1:30 PM to 6:00 PM — first hour free, SFL absorbing 1.5 hrs — customer responsible for 2 hours at \$110/hr = \$220.00."

30. The container detention time was generated entirely by the following conduct of SFL's own vendor:

(a) LATE ARRIVAL: The confirmed crew arrival window was 8:30–9:00 AM. CMM's crew did not arrive until 9:55 AM due to a personal fuel and coffee stop taken during the contracted arrival window.

(b) DELIBERATE SLOWDOWN: During the March 19, 2026 telephone call, Danny Rodriguez admitted to Complainant that he had instructed his crew to work slowly on this specific job. Complainant's written summary of this call was sent to Danny Rodriguez — CC'd directly to FMC CADRS Investigator Mark Bragança and SFL's Naman Mehta. Neither party replied to deny or dispute this admission. Under the doctrine of adoptive admission (FRE Rule 801(d)(2)(B)), this uncontested written record constitutes acknowledgment of its accuracy.

These two facts — both admitted by SFL's own vendor in documented communications — are the complete and sole cause of the \$220.00 detention charge.

The broader pattern of vendor unpreparedness reinforces this conclusion. Despite Complainant's February 10, 2026 written disclosure of inventory and crating requirements (Exhibit V), the crew arrived without required materials, without the contracted wooden crate, and without a work plan suited to a pre-dismantled shipment. A crew that arrives late, without required tools, and under owner-directed instructions to work slowly is not a crew experiencing an unforeseen delay — it is a crew executing a predetermined outcome. SFL cannot now bill Complainant for the cost of that outcome.

31. SFL cannot legally bill Complainant for costs generated entirely by SFL's own vendor's tardiness and deliberate inefficiency. Charging a shipper for container detention that results directly from the OTI's own selected vendor's misconduct is an unreasonable practice under 46 U.S.C. § 41102(c). The \$220.00 container detention charge must be refunded in full.

31A. KISWANI FREE-TIME FABRICATION — SELF-PROVING FROM DOCUMENTS IN EVIDENCE — INDEPENDENT BILLING FRAUD WITHIN COUNT IV:

The Kiswani Container Trucking delivery ticket (Exhibit W) is a third-party carrier document created by Kiswani, not by Complainant and not by Respondent. It states, in the carrier's own handwriting, that free time ran from 1:00 PM to 3:00 PM — two hours. Respondent's Naman Mehta, in his March 10, 2026 written explanation to Complainant (Exhibit H), states that free time ran until 2:30 PM — one hour. These two statements cannot both be true. The only document in existence establishing the carrier's actual free-time terms is Kiswani's own ticket. Respondent's application of a one-hour free period against Kiswani's documented two-hour free period — a thirty-minute reduction generating \$55 in additional detention charges at the invoiced rate of \$110

per hour — has no carrier support, no contractual basis, and was never disclosed to Complainant. This was not an arithmetic error. Applying a one-hour free period instead of Kiswani's documented two hours required an affirmative decision to use a different free-time window than the one the carrier established in the document Respondent held in its possession. That decision generated revenue. Every deviation from an underlying document on this invoice generated revenue for Respondent. The Commission is respectfully invited to consider this pattern across the full invoice. The detention free-time window was shortened against Kiswani's own ticket — generating \$55. The labor hours were extended to 8.333 despite Rodriguez's own written assessment of a 3-hour job scope and his admitted written instruction to work slowly — generating \$1,270 in excess labor charges. The hourly labor rate was set at \$200 against a written quote of \$110 — generating \$750 in rate overcharge at minimum. The packing materials were billed at \$870 with receipts refused across three separate written demands — generating an estimated unverifiable \$600 overcharge against documented fair market value. In each instance, the invoice deviates from the underlying document — the carrier's own ticket, the vendor's own written admission, the written quote, the marketplace evidence — in the same direction: upward, and in Respondent's favor.

Respondent held Kiswani's delivery ticket for approximately one week before issuing the March 10, 2026 invoice and written explanation to Complainant. The one-hour free-time window Respondent applied was not a hasty error — it was a considered decision made after seven days in possession of a document stating two hours. Seven days to read one number and write a different one is not a mistake. It is a choice.

The detention free-time fabrication is the smallest of these deviations in dollar terms. It is the most important in evidentiary terms, because it is the only one where Complainant possesses the third-party carrier document that Respondent held when it wrote a different number.

That document makes the fabrication methodology visible in a way that Respondent cannot explain away as estimation, discretion, or good-faith disagreement. An OTI that shortens a carrier's documented free-time window while holding the carrier's ticket — in a written explanation to the shipper — has not made a mistake. It has demonstrated, on the smallest line item of the invoice, the same methodology that produced the largest ones.

**F. COUNT V — NEGLIGENT STOWAGE AND CTU CODE VIOLATION:
UNSEAWORTHY CONTAINER DISPATCHED AFTER FORMAL WRITTEN NOTICE**

[46 U.S.C. § 41102(c); IMO/ILO/UNECE CTU Code, Annex 7]

32. The 20-foot ocean container TCLU6938770, loaded by SFL's vendor CMM on March 3, 2026, was sealed and dispatched to Norfolk, VA for ocean loading on March 16, 2026, without any industrial lashing, strapping, load bars, blocking, or bracing of any kind.

33. PHOTOGRAPHIC EVIDENCE (Exhibit B): The photograph taken by Complainant's representative immediately before the container doors were sealed on March 3, 2026 provides irrefutable evidence of an unseaworthy load. The image clearly shows:

- (a) Significant void space at the top, side, and front of the container load;
- (b) A complete and total absence of any straps, load bars, bracing timber, or lashing devices of any kind;
- (c) High-value, heavy electronics stacked without restraint. SFL's written defense — that strapping was unnecessary because the container was "nearly full" — is directly and visually contradicted by the photograph. SFL also tried to downplay the seriousness of the situation by stating that if a container is more than 70% full, then SFL doesn't use straps, braces or leashes. This was evident from multiple phone calls before and after the loading along with Naman's email on 6th March.
- (d) The cargo at immediate and foreseeable risk of damage includes a \$2,800.00 LG C1 65-inch OLED television, multiple high-value monitors, speakers, and sensitive electronics — collectively representing a significant portion of the \$40,820.00 declared cargo value. These items are currently in ocean transit for approximately 45–50 days, subjected to vessel motion, port handling impacts, and oceanic forces, without any securing mechanism of any kind. Complainant formally notified SFL of this risk in writing before the vessel sailed — with photographic evidence attached — and made multiple explicit requests for remediation while the container was still accessible. SFL refused to act and refused to accept liability — a failure SFL was warned about, shown proof of, and chose to ignore.

34. BREACH OF SAFETY REPRESENTATIONS: Before booking, SFL's representative explicitly stated by telephone that the container contents would be strapped, lashed, and secured for ocean movement — and represented strapping as a standard component of SFL's origin service. Prior to move day, SFL's crew acknowledged Complainant's written Packing Protocol (Exhibit X), which specifically required industrial lashing and securing of all cargo for ocean transit.

On move day, no strapping was performed. No lashing devices, load bars, or bracing of any kind were deployed. When Complainant raised the strapping failure in post-move communications, SFL's written response did not deny the absence of strapping — instead, SFL's Naman Mehta stated in writing on March 6 and March 10, 2026: *"the container was loaded tightly and was almost completely filled from the opening side, leaving very minimal open space"* and that *"the (CMM) crew determined that additional strapping was not necessary."* Complainant transmitted Exhibit B — the pre-sealing photograph — directly to Naman Mehta in reply. That photograph shows significant void space at the top and front of the load and zero securing devices of any kind. Naman Mehta did not respond to the photograph. SFL's written factual premise — "almost completely filled, very minimal open space" — is directly and permanently falsified by Exhibit B. This justification is addressed and further refuted in Para 35 below.

35. CTU CODE VIOLATION: The IMO/ILO/UNECE Code of Practice for Packing of Cargo Transport Units (CTU Code), Annex 7, mandates that cargo must be secured to prevent shifting,

toppling, and movement during normal transport forces encountered in ocean transit. Complainant cites the CTU Code not as independently enforceable law, but as persuasive evidence of recognized international cargo-securing standards relevant to the reasonableness inquiry under 46 U.S.C. § 41102(c). SFL's arbitrary "70% full" or "minimal open space" threshold is a gross misrepresentation of CTU Code standards and does not constitute a legitimate safety methodology. SFL's internal policy was never disclosed to Complainant prior to the move, nor is it a recognized standard in the maritime shipping industry. A container with significant voids and un-crated electronics is, by definition, improperly packed under international maritime standards.

36. FORMAL WRITTEN NOTICE BEFORE SAILING — IGNORED:

On March 5, 2026 — 11 days before the container was loaded onto a vessel — Complainant sent SFL a detailed written notice (Exhibit D) specifically: (a) Documenting the absence of strapping; (b) Explaining that Complainant's marine insurance policy expressly excluded mechanical and electrical derangement; (c) Requesting that SFL either re-open and re-work the container with proper strapping, OR provide written confirmation that SFL would accept financial liability for any M&E-class damage. SFL did not re-open the container. SFL did not provide written liability acceptance. SFL's supervisor was described as "traveling" for multiple days, causing deliberate delay until the container sailed and the corrective window closed permanently. This "supervisor is traveling" delay was not an administrative inconvenience — it was a deliberate strategy to prevent remediation while the container was still accessible. This transforms negligent stowage into knowing and willful conduct under 46 U.S.C. § 41305(c).

37. By dispatching an unsecured container after receiving formal written notice of the stowage deficiency and the specific insurance coverage gap, SFL knowingly created an uninsured risk to a \$40,820 cargo. The failure to provide industrial lashing and strapping, despite a pre-booking written commitment, a signed packing protocol, and formal written notice before sailing, constitutes a per se unreasonable practice under 46 U.S.C. § 41102(c) in the stowage of ocean cargo, deviating from industry-standard duty of care established by the IMO/ILO/UNECE CTU Code, Annex 7.

38. STAY OF PROCEEDINGS ON THIS COUNT: Because the container arrived at Nhava Sheva, Mumbai on May 12, 2026 and is in the process of customs clearance and delivery, Complainant respectfully requests that Count V remain open pending cargo inspection in India. Upon cargo arrival, Complainant will file a supplemental submission documenting all damage, insurance claim outcomes, and M&E derangement findings. (See also Section IX.)

G. COUNT VI — CARGO HOSTAGE, FINANCIAL COERCION, ZELLE-ONLY PAYMENT MANDATE, AND MULTI-VECTOR FINANCIAL THREATS

[46 U.S.C. § 41102(c)]

39. INVOICE INFLATION — 52.2% ABOVE AGREED QUOTE:

The written Quote (Exhibit C) confirmed a Door-to-Door price of \$5,150.00 for Shipment #28015003. SFL's final invoice dated March 10, 2026 (Exhibit F) demanded \$7,840.00 — a total increase of \$2,690.00, representing a 52.2% deviation above the agreed-upon price. This deviation was imposed post-loading, after Complainant's cargo was in SFL's physical custody and after Complainant had no practical ability to refuse. No written amendment to the contract was ever provided. No advance notice of any increase was ever given. Charging materially more than the agreed rate in connection with ocean transportation constitutes an unreasonable practice under 46 U.S.C. § 41102(c).

This 52.2% invoice inflation is incorporated into and supports Count I (Billing Fraud) as direct evidence of the systematic overbilling pattern — and is independently relevant to the Commission's assessment of double reparations under § 41305(c).

39A. Following Complainant's formal dispute of the inflated invoice on March 4–5, 2026, SFL engaged in a systematic pattern of financial coercion designed to force Complainant to pay the full disputed amount under duress, using the sailing deadline and physical possession of Complainant's \$40,820 cargo as leverage. At the time of payment, Respondent maintained exclusive practical control over Complainant's containerized international shipment and associated shipping documents. Payment was made solely to avoid jeopardizing shipment continuity and does not constitute voluntary acceptance of disputed charges.

39B. CARGO HOSTAGE EXECUTED USING A RATE RESPONDENT WAS PROHIBITED FROM CHARGING — RULE 35(e) AND 46 C.F.R. § 532.5:

The financial coercion documented in this Count was executed using an invoice amount that Respondent was legally prohibited from charging under both its own published tariff Rule 35(e) (Exhibit BE) and 46 C.F.R. § 532.5. The agreed NRA rate of \$110/hr established in the February 12, 2026 written quote (Exhibit C) could not be retroactively modified on cargo already received March 3, 2026 — yet the entire \$7,840 payment demand, the Zelle-only mandate, the sailing deadline coercion, and the multi-vector demurrage threats documented in this Count were all built around an invoice premised on exactly that prohibited modification. Respondent did not merely hold cargo hostage to collect a disputed amount — it held cargo hostage to collect an amount it had no legal authority to charge under its own published tariff or the governing federal regulation. The cargo hostage conduct therefore operated in direct service of an underlying regulatory violation, compounding the unreasonable practice under § 41102(c) with knowing exploitation of a rate Respondent was explicitly prohibited from invoicing. The Commission is respectfully invited to treat this as an independent aggravating factor in assessing the scope of any remedial order.

40. PAYMENT METHOD RESTRICTION POST-DISPUTE:

SFL's original written quote listed Check, Wire, and Zelle as accepted payment methods. After Complainant disputed the invoice, SFL retroactively and unilaterally restricted payment to Zelle

only — refusing credit card, partial payment, or any protected payment method. This restriction was not a pre-existing disclosed policy. It was a targeted post-dispute restriction designed to strip Complainant of bank-mediated dispute rights under the Fair Credit Billing Act (FCBA). Zelle transfers are cash-equivalent and irreversible. Mandating Zelle specifically after a billing dispute — while holding \$40,820 of cargo — is a deliberately engineered payment trap that eliminates every avenue of bank-mediated chargeback protection.

41. REJECTION OF GOOD-FAITH PARTIAL PAYMENT:

On March 11, 2026, Complainant made a good-faith offer to pay \$4,000.00 of the \$6,840.00 outstanding balance via Zelle immediately, with the remaining \$2,840.00 to be paid by month-end or via credit card immediately. SFL refused this offer entirely, demanding 100% full Zelle payment by the March 16 sailing deadline. SFL's refusal of \$4,000 — which covered the undisputed portion of the invoice — proves that SFL's intent was not to secure legitimate freight costs, but to coerce Complainant into paying the full disputed amount by leveraging the sailing deadline and cargo possession.

42. SAILING DEADLINE AND MULTI-VECTOR FINANCIAL THREATS AS COERCIVE WEAPONS:

In multiple communications, SFL repeatedly referenced the March 16, 2026 vessel loading date as the reason Complainant must pay the full amount immediately. Beyond the sailing deadline alone, SFL also threatened Complainant with demurrage charges, container yard storage fees (at \$60/day as listed in SFL's own quote), cargo rollover to a subsequent vessel, and ongoing storage costs — creating a multi-vector financial pressure campaign. Using a time-sensitive sailing deadline, coupled with explicit threats of escalating storage and demurrage costs, to compel payment of a disputed invoice while holding physical possession of a \$40,820 cargo, is a textbook cargo-hostage scenario constituting an unjust and unreasonable practice in the handling and delivery of property under 46 U.S.C. § 41102(c). *See *Petra Pet, Inc. v. Panda Logistics Ltd.**, 32 S.R.R. 787 (ALJ 2012), 2013 WL 9808694 (FMC Oct. 31, 2013) (withholding cargo to coerce payment of disputed charges is an unreasonable practice); *Houben v. World Moving Services, Inc.**, 31 S.R.R. 1400 (FMC 2010) (discrete conduct in the handling of a single shipment can violate § 41102(c)).

43. PAYMENT UNDER DURESS — PROTEST PRESERVED:

Faced with the imminent loss of his \$40,820 cargo — including home goods and extremely valuable professional equipment — Complainant was compelled to pay in three installments under explicit written protest: an initial deposit of \$1,000 on February 23, 2026 (prior to the dispute), a second payment of \$3,500 on March 14, 2026, and a third and final payment of \$3,340 on March 15, 2026 — totaling \$7,840.00. All post-dispute payments were made via Zelle under Complainant's documented written protest, marked "PAID UNDER PROTEST — FMC CADRS #260159." A payment made under documented economic duress, with explicit written

protest preserved, does not constitute voluntary acceptance of the underlying charges. Complainant's right to reparations is fully preserved.

Under federal maritime law and the Shipping Act of 1984, as reinforced by Illinois contract law principles applicable to disputes of this nature, a payment made under documented economic duress — with explicit written protest preserved contemporaneously in writing — does not constitute an accord and satisfaction of the disputed amounts and cannot extinguish Complainant's right to reparations. Respondent is specifically precluded from asserting that Complainant's full payment of \$7,840.00 constitutes acceptance of the disputed invoice as legitimate, a settlement of the billing dispute, or a waiver of any claim asserted in this Complaint. Any such argument by Respondent would itself constitute bad faith litigation conduct that the Commission may find warrants adverse consideration in assessing the full scope of any remedial order.

The post-dispute Zelle-only mandate, rejection of good-faith partial payment, multi-vector demurrage and rollover threats, and use of a sailing deadline to compel full payment of a disputed invoice while holding Complainant's cargo constitute coercive withholding of property and unjust and unreasonable practices by a licensed OTI in the handling and delivery of property under 46 U.S.C. § 41102(c).

H. COUNT VII — BILL OF LADING WITHHOLDING AND TRADE INVOICE SUPPRESSION

[46 U.S.C. § 41102(c)]

44. BILL OF LADING WITHHELD FROM COMPLAINANT — DELIBERATE OBSTRUCTION PROVEN:

The Bill of Lading (B/L) for Container TCLU6938770 is the primary title document for Complainant's cargo and is legally required for customs clearance in India. SFL withheld the B/L from Complainant throughout the billing dispute. In written communications, SFL represented to Complainant that issuance of the B/L would take approximately one week. However, SFL produced a draft copy of the B/L to FMC CADRS Investigator Mark Bragança within approximately two days of his request. The fact that SFL produced the B/L to the federal investigator in two days while claiming to Complainant that it would take a week conclusively proves the document existed, was immediately accessible to SFL, and was deliberately withheld from Complainant as a means of leverage during the billing dispute. This two-day vs. one-week discrepancy is documented in SFL's own written correspondence.

The Commission may draw an adverse inference from this documented selective disclosure. A party that possesses a title document and produces it to a federal investigator within two business days while simultaneously representing to the Shipper of Record that production will take one week has demonstrated not administrative delay but deliberate withholding. The inference available to the Commission is that the Bill of Lading was withheld from Complainant specifically

to maintain post-payment financial leverage — a purpose that has no legitimate place in an OTI's handling of ocean cargo documentation under 46 U.S.C. § 41102(c). *See Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010) (discrete conduct in the handling of a single shipment, including failure to release documents the OTI controls, can constitute an unreasonable practice under § 41102(c)); *Petra Pet, Inc. v. Panda Logistics Ltd.*, 32 S.R.R. 787 (ALJ 2012), 2013 WL 9808694 (FMC Oct. 31, 2013).

44A. LATE PROVISION VIA SFL'S OWN CHA DOES NOT CURE THE VIOLATION:

Complainant acknowledges that SFL's India customs agent (CHA) eventually transmitted the House Bill of Lading. However, this does not cure Count VII. In an NVOCC transaction, the House B/L is a document that SFL Worldwide — as the issuing NVOCC — is obligated to deliver directly to its shipper of record (Complainant) promptly following vessel departure. This obligation runs from SFL to Complainant. It cannot be delegated, and its satisfaction cannot be measured by when SFL's own subagent chose to transmit it. SFL's India CHA is SFL's own agent — not Complainant's. When SFL's CHA transmitted the B/L, that was SFL completing its own overdue obligation through its own representative.

44B. THE B/L WITHHOLDING DIRECTLY CAUSED COMPLAINANT'S INABILITY TO APPOINT AN INDEPENDENT CHA:

A House B/L is the primary title document for international cargo in India. No licensed Customs House Agent (CHA) can file a Bill of Entry, access the Import General Manifest (IGM), or initiate any formal customs procedure without the B/L in hand. Throughout the period in which SFL withheld the House B/L from Complainant, Complainant was actively seeking to retain an independent CHA of his own choosing. Complainant could not do so because the B/L was not in his possession. This was not a passive inconvenience. It caused a specific, irreversible harm: no independent CHA could be engaged; no condonation application was prepared or filed during the critical pre-arrival window; SFL's own India CHA — appointed and controlled by SFL, not Complainant — took no proactive action on customs strategy despite SFL having documented knowledge of the Non-ToR status since March 2, 2026 — over ten weeks before the container's arrival at Nhava Sheva on May 12, 2026. The causal chain is direct and unbroken: SFL withheld the B/L → Complainant could not appoint independent CHA → no condonation application was filed in the pre-arrival window → Complainant now faces full Non-ToR customs duty assessment with diminished ability to seek condonation relief. Any customs duty Complainant is now required to pay — which would have been mitigable or eliminable through a timely condonation application — is a direct consequential damage of SFL's B/L withholding, recoverable in full under 46 U.S.C. § 41305(a).

44C. THE CAUSAL CHAIN FROM B/L WITHHOLDING TO INDIA CUSTOMS DAMAGES IS ESTABLISHED AND RESERVED:

Container TCLU6938770 arrived at Nhava Sheva, India, on May 12, 2026, and has been moved to ICD Tughlakabad, New Delhi. Indian customs cannot be cleared without resolution of: (a) the Non-ToR duty classification; (b) the absence of any HS code classifications on the cargo inventory; and (c) SFL's failure to proactively initiate any pre-arrival customs planning. All customs duties, ICD storage charges, demurrage, and

related expenses paid by Complainant as a direct consequence of SFL's documentation failures and B/L withholding are reserved as supplemental damages. Complainant will file a Supplemental Statement of Damages with receipts as each cost is incurred and confirmed.

44D. THE B/L WITHHOLDING DID NOT END UPON CHA DOCUMENT TRANSMISSION: SFL will likely argue that the B/L was eventually provided to Complainant through the customs clearance process via SFL's appointed CHA. This argument is legally and factually incorrect. The House B/L was never delivered to Complainant as Shipper of Record in a form that allowed Complainant to exercise his independent right to engage a CHA of his own choosing. The B/L passed from SFL's possession to SFL's appointed agent (Minesh Shah / LAC Relocations) to SFL's customs clearance file. Complainant never held the B/L as an independent instrument. The violation is not cured by the document reaching the file of SFL's own subcontractor.

44E. DIRECT CONSEQUENTIAL DAMAGE — COMPLAINANT'S FORCED ICD VISIT: SFL's withholding of the Bill of Lading produced one directly quantifiable consequential harm independent of the customs clearance outcome. On April 22, 2026, Complainant personally traveled 200 kilometers round-trip to ICD Tughlakabad — despite documented post-surgical medical disability— and successfully presented the ToR condonation application to the Deputy Commissioner of Customs, who indicated necessary action would be taken upon receipt of the Bill of Lading. That processing was blocked solely by SFL's withholding of the B/L. Had SFL provided the Bill of Lading as contractually obligated, the Deputy Commissioner's office could have processed the condonation application on April 22 — weeks before container arrival — eliminating the entire category of storage charge risk that subsequently materialized. The 200-kilometer journey, the 7-to-8-hour transit in post-surgical condition where the patient is unable to sit/stand/walk or travel for more than 1-2 hours, and the substitute-performance costs associated with this visit are directly and causally attributable to SFL's B/L withholding and are recoverable as consequential damages under 46 U.S.C. § 41305(a). See paragraph 75A and Exhibit AA-14.

45. As of the date of this filing, Complainant has received only a draft B/L that too through CADRS investigator (not directly by SFL), not a final original B/L. SFL has failed to provide the actual B/L to the Complainant after 16th March (container loading) till the date of filing this complaint. Complainant cannot clear customs in India without the final original B/L. SFL's continued failure to issue the final B/L constitutes an ongoing, active harm that requires immediate Commission attention and remedial direction.

46. FAILURE TO PROVIDE COMPLIANT TRADE DOCUMENTATION — SERVICE INVOICE MISREPRESENTED AS COMMERCIAL INVOICE; CARGO INVENTORY CONTAINS ZERO HS CLASSIFICATIONS:

Throughout the dispute, Complainant and FMC CADRS Investigator Mark Bragança requested a formal trade invoice for Shipment 28015003. On March 18, 2026, Investigator Bragança forwarded to Complainant a document SFL had labeled a "Trade Invoice" (Exhibit F / Invoice No.

241344279976). Upon review, this document is not a Commercial Invoice or Trade Invoice in any recognized sense under international trade practice. It is a Service Invoice — containing four line items consisting exclusively of SFL’s own charges: Shipping Charges (\$5,150.00), Packing & Loading Charges (\$1,600.00), Detention & Demurrage (\$220.00), and Packing Material (\$870.00). It contains no description of the cargo being shipped, no declared valuation of any item, and no Harmonized Tariff Schedule (HTS) commodity codes — the three elements that define a Commercial Invoice for international shipment purposes.

Separately, the Household Goods Descriptive Inventory (Ref. 241344279976, 11 pages, 201 line items) prepared by SFL’s vendor on March 3, 2026 does list cargo contents but contains the notation “NA” in the HS Code field for every single one of the 201 line items without exception. Accordingly, SFL dispatched a 20-foot ocean container carrying declared cargo of approximately \$40,820.00 in value to India with no HTS commodity classifications on any item and no itemized cargo valuation document — creating a material customs compliance deficiency that Complainant will be required to resolve at his own expense at the destination port.

On April 14, 2026, Complainant executed the Household Goods Descriptive Inventory submitted by SFL for Indian customs clearance purposes with explicit written reservation language: “This signature is provided strictly for Indian customs clearance purposes and does not constitute acceptance of origin condition notations, settlement of any billing or handling disputes, or waiver of any rights under any pending regulatory review. All rights reserved.” Additionally, Item 188 is absent from this Inventory — the numbered list jumps from Item 187 directly to Item 189 with no explanation. Complainant raised this discrepancy with SFL in writing on April 14, 2026 and received no response or correction.

By presenting a Service Invoice as a “Trade Invoice” in response to a federal mediator’s specific request, SFL either demonstrated a fundamental misunderstanding of basic international shipping documentation requirements — casting serious doubt on its competence as a licensed Ocean Transportation Intermediary — or deliberately provided a non-responsive document to satisfy the appearance of compliance while withholding the actual commercial documentation. Either characterization constitutes an unreasonable practice in connection with the handling of ocean cargo under 46 U.S.C. § 41102(c). This documentation failure is the fourth in a consistent pattern: SFL withheld the Bill of Lading from Complainant while producing it to the federal investigator within two days; refused to produce materials receipts across three escalating demand channels including a federal mediator’s direct request; and has now provided a mislabeled Service Invoice in place of a proper Commercial Invoice for an international shipment of \$40,820.00 in cargo. The Commission is respectfully invited to consider whether this pattern reflects systemic documentation non-compliance by a licensed OTI.

ADVERSE INFERENCE — TRADE INVOICE SUPPRESSION: The Commission may draw an adverse inference from SFL’s deliberate failure to produce a compliant Commercial Invoice despite a specific written request by the assigned FMC Investigator. Under established evidentiary principles applicable to federal proceedings, a party that possesses documentation supporting a

billing position it actively defends would produce that documentation when a federal mediator requests it. SFL did not. The inference available to the Commission is that no compliant trade invoice exists — and that a compliant trade invoice, if produced, would confirm that the charges billed to Complainant have no legitimate documented basis, consistent with Respondent's refusal to produce materials receipts across three escalating demand channels as documented in Count II.

I. COUNT VIII — SFL'S COLLECTION OF FULL PAYMENT WHILE WITHHOLDING VENDOR PAYMENT: EVIDENCE OF KNOWING BILLING SCHEME UNDER § 41305(c)

[46 U.S.C. § 41102(c)]

Count VIII is not pled as a standalone equitable unjust enrichment claim. It is pled as an independent unreasonable practice under 46 U.S.C. § 41102(c): SFL collected \$7,840 from Complainant for contracted services and, as of March 19, 2026 — sixteen days after the loading date — had not paid its own sub-vendor the agreed service fee. The harm to Complainant arises directly from this conduct: SFL held full payment for origin services while simultaneously refusing to issue a Bill of Lading (Count VII), leaving Complainant with no cargo documentation and no evidence that SFL had fulfilled its financial obligations to the party that physically loaded the cargo. The causal chain runs from non-payment to B/L withholding to customs documentation failure to India-side exposure — making SFL's unjust financial position directly connected to Complainant's Shipping Act injury, not merely a side dispute between SFL and CMM. The Commission need not adjudicate this as an independent equitable cause of action to give it full weight as evidence of willfulness under 46 U.S.C. § 41305(c) and as a component of the coordinated billing scheme documented across Counts I through VIII.

47. ADOPTIVE ADMISSION OF NON-PAYMENT: On March 19, 2026, CMM's owner Danny Rodriguez sent an email to SFL's Abhay Soni — CC'd directly to FMC Investigator Mark Bragança — stating that as of that date, SFL had not paid CMM for the March 3, 2026 origin service. SFL's failure to dispute this statement in the presence of a federal investigator constitutes an adoptive admission of non-payment.

48. UNJUST RETENTION OF CONSUMER FUNDS: By March 15, 2026, Complainant had paid SFL \$7,840.00 in full. On information and belief, and as corroborated by CMM's owner's verbal disclosure and Respondent's subsequent silence, SFL's internal wholesale cost for the entire origin service was approximately \$2,200.00. SFL therefore retained Complainant's full payment — including a substantial undisclosed markup — while having not paid the vendor that physically performed the contracted service.

49. THE DOUBLE-DIP: This creates a compounded unjust enrichment in which: (a) Complainant paid \$7,840.00 in full; (b) Respondent concealed a pre-agreed flat-rate wholesale arrangement of \$2,200.00 with its subcontractor CMM while simultaneously billing Complainant

\$1,600.00 under a fabricated per-hour construct at \$200/hr — an 82% markup over the contracted rate of \$110/hr that was never disclosed to Complainant. By inventing an hourly billing model to conceal its actual vendor cost, Respondent engaged in a deceptive scheme to extract an undisclosed markup in direct violation of the just and reasonable standards of 46 U.S.C. § 41102(c); (c) SFL simultaneously charged Complainant \$220.00 in container detention fees caused entirely by CMM’s deliberate slowdown — billing the victim of its own vendor’s misconduct for costs that misconduct created; (d) SFL retained Complainant’s full payment including all charges independently disputed in Counts I through IV;

(e) QUANTIFICATION OF UNDISCLOSED MARKUP: On information and belief, as corroborated by CMM owner Danny Rodriguez’s admission, SFL’s actual cost for the entire origin handling service was a flat \$2,200.00. SFL billed Complainant \$1,600.00 in fabricated per-hour labor charges plus \$870.00 in packing materials — a combined origin billing of \$2,470.00 against a vendor cost of \$2,200.00. The \$270.00 difference represents undisclosed markup extracted through billing fabrication, not legitimate freight margin, and constitutes a documentable minimum pending production of SFL’s internal CMM payment records. The Commission is respectfully invited to direct that production and consider the totality of SFL’s revenue extraction in assessing the appropriate scope of any remedial order.

49A. POST-COMPLAINT PUBLIC ADMISSIONS BY CMM — EXHIBIT BB: On May 12, 2026, CMM owner Danny Rodriguez submitted a formal public response to the Better Business Bureau (Exhibit BB) containing several statements that constitute admissions against interest binding on SFL as CMM’s principal under FRE Rule 801(d)(2)(D): (a) Rodriguez publicly characterizes SFL Worldwide LLC as the “third-party broker” who coordinated the services for this shipment — a formal, written, public confirmation that SFL was the coordinating principal, not a passive intermediary; (b) Rodriguez admits “changing scope requests” and “operational limitations outside our direct control” — a public written admission of service deficiency directly contradicted by Complainant’s February 10, 2026 pre-disassembly disclosure table (Exhibit V), which SFL’s Naman Mehta received, engaged with, and incorporated into the quote. There were no scope changes. (c) Rodriguez states that “a financial settlement and adjustment were ultimately accepted.” This statement is demonstrably false. Complainant’s last communication with Danny Rodriguez was March 19, 2026. After March 19, 2026, there was no phone call, no email, no written communication, no settlement offer, no settlement agreement, no financial adjustment, and no payment of any kind from Rodriguez or CMM to Complainant. Rodriguez made a materially false statement on a public consumer record during active regulatory proceedings. (d) Rodriguez claims CMM “absorbed a significant loss on the project” — directly and irreconcilably inconsistent with Rodriguez’s March 19, 2026 admission that CMM’s arrangement with SFL was a flat rate of \$2,200 “fixed regardless of time.” This contradiction creates a specific, documentable factual predicate for production of SFL’s actual CMM payment records.

50. An OTI that collects full consumer payment, retains an undisclosed markup over its actual vendor cost, fails to pay its own vendor, and then charges the consumer for delays caused by that

same unpaid vendor's misconduct has engaged in unjust enrichment and an unreasonable commercial practice under 46 U.S.C. § 41102(c).

Count VIII does not seek standalone reparations beyond those quantified in Counts I–IV. It establishes SFL's undisclosed markup as direct evidence of willfulness for § 41305(c) purposes. The mechanism — collecting \$7,840 while owing CMM \$2,200 as a concealed flat rate and simultaneously billing Complainant at a fabricated \$200/hr construct — confirms that SFL's billing structure was designed to extract undisclosed revenue and that SFL possessed internal knowledge of the rate overcharge. The Commission need not adjudicate unjust enrichment as an independent cause of action to give this evidence its full weight in the § 41305(c) analysis. The undisclosed markup — minimum \$270.00 on information currently available without production (SFL's actual CMM payment records) — is incorporated into the overcharge calculation under Count I and is separately available for upward revision upon production of SFL's actual CMM payment records as requested in paragraph 12(e). Independently of the \$750 settlement offer, SFL's willfulness is established without reference to that figure by: (a) Danny Rodriguez's written admission of deliberate slowdown instruction, CC'd to FMC Investigator Bragança, never denied (Exhibit P); (b) SFL's dispatch of the container after formal written notice of unsecured stowage and specific M&E insurance gap (Exhibits B, D); and (c) SFL's CHA's false legal representation on one audio-recorded call, admitted by silence across three direct citation requests. These three facts each independently establish willfulness; the \$750 analysis is additional corroboration only.

50A. CMM'S "SIGNIFICANT LOSS" CLAIM CONTRADICTS FLAT-RATE ADMISSION AND CREATES DISCOVERY PREDICATE:

Rodriguez's "significant loss" claim in Exhibit BB creates a specific, documentable factual predicate for production of SFL's actual CMM payment records. If CMM lost money, SFL's records will show what SFL actually paid CMM — and that figure will establish with mathematical certainty the full scope of SFL's undisclosed extraction from Complainant's \$7,840 payment. The Commission is respectfully invited to direct production of all payment records from SFL to CMM for Shipment 28015003. Rodriguez's own BBB statement makes that production both necessary and appropriate.

PREEMPTIVE REBUTTAL — HEARSAY OBJECTION TO RODRIGUEZ SUMMARY:

Respondent may argue that Complainant's written summary of the March 19, 2026 Rodriguez call is inadmissible hearsay. This objection fails on multiple independent grounds. First, 46 C.F.R. § 502.204 provides that all evidence which is relevant, material, reliable, and probative — and not unduly repetitious or cumulative — is admissible in Commission proceedings, and that the presiding officer may consider the Federal Rules of Evidence for guidance. The ALJ therefore has discretion to admit reliable hearsay and is not bound by the FRE's exclusionary hearsay rules. Second, the summary is independently admissible as a business record under FRE 803(6) — prepared in the regular course of Complainant's practice of contemporaneously documenting disputed communications, at or near the time of the events described, and transmitted to FMC

Investigator Bragança the same day it was written. Third, Rodriguez's statements about the flat-rate arrangement and the slow-walk instruction are admissions by a party's agent under FRE 801(d)(2)(D) — not hearsay at all. Fourth, neither Rodriguez nor Naman Mehta denied any element of the summary after receiving it in writing — making the summary independently admissible as an adoptive admission under FRE 801(d)(2)(B). Any one of these four independent grounds is sufficient to admit the summary. All four apply simultaneously.

SECTION IV (CONTINUED) — COUNTS IX THROUGH XIII: DESTINATION SIDE SERVICE FAILURES, RETROACTIVE CONTRACT MODIFICATION, COMMUNICATION ABANDONMENT, BAD FAITH PATTERN, AND FINANCIAL ENTRAPMENT

PREEMPTIVE REBUTTAL — RIPENESS OF INDIA-SIDE DAMAGES: Respondent will argue that India-side damages under Counts IX, X, XI, and XIII are too speculative or not yet ripe for adjudication because the customs clearance process is incomplete and damages are not yet quantified. This objection fails for two reasons. First, this Complaint fully pleads the causal chain establishing SFL's liability for India-side damages now, even though the precise dollar amounts will be confirmed by supplemental filing upon clearance completion. The Commission has inherent authority to retain jurisdiction over consequential damages where the liability theory is established in the initial proceeding and the inability to quantify damages with precision is itself a direct consequence of Respondent's ongoing conduct — specifically SFL's B/L withholding, which has prevented Complainant from completing customs clearance and therefore from quantifying the precise financial harm. A complainant should not be required to await the full materialization of damages caused by a defendant's continuing violation before establishing that defendant's liability. Second, the causal chain is not speculative — it is documented: SFL's 43-day inaction on a known customs problem, SFL's false legal representations about pre-arrival filing prohibitions, and SFL's B/L withholding have each produced specific, described, foreseeable categories of loss. Complainant respectfully requests that the Commission's initial order expressly preserve Complainant's right to file a Supplemental Statement of Damages within 60 days of final customs clearance completion.

(a-1) CONTEXT: THE FINANCIAL STAKES OF TRANSFER OF RESIDENCE (ToR) STATUS: Under Indian customs law, a returning resident who has lived abroad for at least two years and is permanently relocating to India is entitled to import used personal household effects duty-free under the Transfer of Residence (ToR) exemption, subject to the Commissioner of Customs' approval. For Complainant's shipment — a 20-foot container of used household goods and electronics with a declared value of approximately \$40,820.00 — ToR approval eliminates customs duty entirely on all items except televisions in excess of one unit, which remain dutiable at 38.5% regardless of ToR status. Without ToR approval, full customs duty applies to the entire shipment at rates between 35% and 38.5% — **representing a potential duty liability of**

approximately ₹7,50,000 (~ \$7,800 USD) on Complainant's shipment — a sum equivalent to SFL's entire origin-side invoice and one that Complainant — simultaneously unemployed, on medical disability, and without income at the time of container arrival — had no practical ability to absorb. Additionally, once a container arrives at Inland Container Depot (ICD) Tughlakabad, a free storage period of approximately 14 days applies. After that period expires, storage charges accrue at approximately ₹10,000 per day (~ \$105 USD/day). Every day of delay in customs clearance — whether caused by a missing ToR approval, deficient documentation, or CHA non-performance — directly costs Complainant money he does not have. SFL was contracted and paid to manage this entire destination process. The counts that follow document SFL's systematic failure to do so.

(a-2) ALTERNATIVE DAMAGES IF ToR (Transfer of Residence) CONDONATION IS GRANTED: In the event the ToR condonation application is approved by the Commissioner of Customs and customs duty is waived, the damages under Count IX will not disappear but will consist of: (i) ICD storage charges accrued during the period of SFL's 25-day inaction and delayed application filing, which would have been materially lower or entirely avoided had SFL filed before vessel arrival as contracted — reserved for supplemental quantification with receipts; (ii) Complainant's substitute-performance costs for preparing the complete 14-document condonation application, correcting SFL's deficient documents, traveling to New Delhi on May 7, 2026, and conducting independent Indian customs legal research in the informational vacuum created by SFL's email blackout — Complainant reserves the right to quantify substitute-performance costs in the supplemental filing, based on documented time, travel expenses, and prevailing Delhi CHA market rates for equivalent professional services. These categories of loss exist regardless of the ToR condonation outcome and are recoverable under 46 U.S.C. § 41305(a) as direct consequential damages of SFL's non-performance of the contracted customs clearance service.

SECTION IV (CONTINUED) — COUNTS IX THROUGH XIII: DESTINATION SIDE SERVICE FAILURES, RETROACTIVE CONTRACT MODIFICATION, COMMUNICATION ABANDONMENT, BAD FAITH PATTERN, AND FINANCIAL ENTRAPMENT

J. COUNT IX — DESTINATION SERVICE ABANDONMENT: PRE-BOOKING FRAUDULENT INDUCEMENT, SYSTEMATIC NON-INITIATION OF CONTRACTED CUSTOMS CLEARANCE, FALSE LEGAL REPRESENTATION, AND NEAR-CATASTROPHIC DOCUMENTATION NEGLIGENCE

[46 U.S.C. § 41102(c)]

IX-A. STATUTORY BASIS AND NON-DELEGABLE DUTY

NOTE ON INDIAN LAW CITATIONS IN COUNT IX: Throughout Count IX, Complainant references provisions of Indian customs law — specifically the Customs Act, 1962; the Baggage Rules 2016; the Customs Brokers Licensing Regulations (CBLR), 2018; and CBIC Notification

No. 14/2026-Customs. These provisions are cited not as independently enforceable causes of action before this Commission, but exclusively as evidence of the professional standard of care that any competent customs agent operating in India is required to meet. SFL's liability before this Commission arises solely from 46 U.S.C. § 41102(c) — its non-delegable OTI obligation to ensure just and reasonable destination service performance. The Indian law citations establish the benchmark against which SFL's sub-delegated CHA's conduct is measured; they do not create independent causes of action outside the Shipping Act. The Commission need not apply or interpret Indian law — it need only find that SFL's CHA's documented failures fell below the professional standard applicable in the jurisdiction where the contracted service was to be performed, and that those failures constitute unreasonable destination service practices under 46 U.S.C. § 41102(c) for which SFL bears non-delegable OTI liability.

51A. SFL Worldwide LLC's written quote for Shipment #28015003, issued on February 12, 2026 (Exhibit C), expressly lists the following under a dedicated "Destination Services — Included" section: "Customs clearance at port; Trucking to residence within city limits; Unloading up to 2nd floor without elevator; Inside delivery." Customs clearance is not a discretionary or courtesy element of SFL's door-to-door contract. It is a specifically enumerated, included service for which Complainant paid the full \$5,150.00 door-to-door price. The same quote separately enumerates, in a distinct "Excluded" section: customs duty, DTHC, CFS, Port Charges, GST, Storage, demurrage, and detention. The customs clearance *SERVICE* appears unambiguously in the INCLUDED section. It does not appear in any form in the EXCLUDED section. This contractual distinction is dispositive.

51B. As a licensed OTI operating as both an NVOCC and an Ocean Freight Forwarder under License No. 025184, SFL Worldwide LLC bears a statutory, non-delegable obligation under 46 U.S.C. § 41102(c) to ensure just and reasonable practices in the handling, custody, and delivery of property across the entire duration of the door-to-door contract — including at the destination. That obligation does not diminish upon subcontracting. SFL selected, appointed, and instructed CHA Minesh Shah as its customs clearance agent. SFL further permitted Complainant's customs file to be handled by LAC Relocations, Mumbai — an entity never disclosed to Complainant at any point prior to or during the engagement — without Complainant's knowledge, prior disclosure, or consent, and without any notification that a Mumbai-based entity would be handling documentation for a clearance occurring at ICD Tughlakabad, New Delhi. The practical consequence of this undisclosed sub-delegation was immediate and documented: LAC Relocations initially directed Complainant to courier his original passports to a Mumbai office address (~850 miles away) for a customs clearance taking place in Delhi — a geographic error Complainant personally identified and corrected. The failures documented in Count IX are SFL's failures. The governing law for SFL's liability to Complainant is the Shipping Act of 1984, as amended, regardless of the domestic Indian legal framework under which SFL's subcontracted CHA operated.

IX-B. PRE-BOOKING ASSURANCE AND BASIS FOR COMPLAINANT’S RELIANCE

52. In early February 2026, prior to any payment or contractual commitment, Complainant specifically raised it multiple times with SFL’s Naman Mehta - the customs complexity arising from his personal circumstances — specifically, that his household goods shipment would fall outside the 180-day Transfer of Residence window under the Indian Baggage Rules 2016, and that a ToR (Transfer of Residence) condonation application to the Commissioner of Customs would be required. Complainant was explicit: he would not contract with SFL and would not make any payment unless SFL could confirm — after consulting its India-based customs professionals — that (a) the ToR condonation application was viable for Complainant’s circumstances, and (b) SFL would manage and file that application on Complainant’s behalf as part of the contracted door-to-door service. On April 20, 2026, Complainant sent a formal written email to SFL’s Viral, Naman Mehta, Mamta Hazarika, Afreen Athaniyaa, and Loken Singh — all officers of SFL — explicitly stating: “SFL has known about my customs situation since February 2026, when this shipment was being planned.” This specific, detailed assertion of the pre-booking assurance was transmitted simultaneously to five SFL personnel. Not one of them — including Naman Mehta, who has direct personal knowledge of the pre-booking conversation — denied, qualified, or corrected this statement in any response. Under FRE Rule 801(d)(2)(B), the failure of five SFL officers — including the officer who made the original representation — to deny or contradict a specific, directly-stated assertion of that representation, in a written communication they unquestionably received, constitutes an adoptive admission binding on SFL Worldwide LLC.

53. On February 23, 2026, Complainant made the initial advance payment of \$1,000.00 to SFL Worldwide — a payment explicitly designated in SFL’s own quote as “Non-refundable.” Complainant was therefore in a position of irrevocable financial commitment to SFL at the time of any subsequent contract modification, disclaimer, or departure from the scope represented at booking. The non-refundable nature of this payment is material to Count X.

54. SFL has known of its ToR filing obligation since February 2026 — when Naman Mehta confirmed, after consulting with a CHA in India, that SFL would file the ToR application proactively on Complainant’s behalf — an assurance on which Complainant made his first payment on February 23, 2026 (Exhibit A). Between April 14 and April 21, 2026, Complainant demanded pre-arrival ToR filing in writing on five separate occasions (Exhibits AA, BB). SFL deflected each demand without ever denying the pre-arrival obligation. Under FRE 801(d)(2)(B), SFL’s failure to deny a specific, repeated, written pre-arrival filing commitment across five documented communications constitutes an adoptive admission of that obligation.

IX-C. SFL’S DOCUMENTED PRIOR KNOWLEDGE AND THE 43-DAY GAP

55. On March 2, 2026 — fourteen days before the container sailed, and forty-three days before Complainant first contacted SFL India on April 14, 2026 — SFL’s Naman Mehta sent Complainant a formal written notice titled “Important Notice – Shipment from Chicago to India” (Exhibit AA-2) stating: “Based on your case, the shipment falls under Non-Transfer of Residence.”

This email constitutes SFL’s own formal, written, irrevocable acknowledgment that the customs complexity in this case was known to SFL before the container sailed.

56. Despite this formal documented knowledge as of March 2, 2026, SFL took zero proactive steps to initiate the ToR condonation process, appoint a CHA, or contact Complainant about pre-arrival customs preparation during the period from March 2 through April 14, 2026 — a period of 43 days during which the container sailed from Norfolk, Virginia and was in ocean transit. No communication was received from SFL India during this period. No CHA was introduced. No document checklist was provided. No preliminary assessment of Complainant’s ToR eligibility was conducted or communicated. SFL’s India team was aware of the customs problem from at least March 2 and made no contact of any kind until Complainant initiated outreach on April 14.

57. On April 14, 2026 — the first date Complainant proactively contacted SFL’s Naman Mehta regarding customs clearance — Complainant simultaneously flagged that Item 188 appeared missing from the Household Goods Descriptive Inventory prepared by SFL’s vendor on March 3, 2026, as the inventory list jumps from Item 187 to Item 189. This documentation gap in SFL’s own inventory, submitted to Complainant for signature for Indian customs clearance purposes, has never been acknowledged or corrected by SFL in any written communication despite specific written notice on April 14, 2026.

58. On April 15, 2026, Complainant sent a follow-up email to Naman Mehta requesting ToR process initiation and explicitly stating: “The ToR approval for my case is slightly complicated and I would request you to start this process as soon as possible to avoid any container storage issues and charges at the ICD yard or something.” Naman Mehta’s response was limited to forwarding Complainant’s message to SFL India’s Mamta Hazarika with the instruction: “Could you please provide your support and take this forward?” Naman Mehta provided no substantive response to the ToR urgency, no acknowledgment of the Item 188 gap, and no personal follow-up of any kind. He forwarded the problem and withdrew entirely from the India-side engagement for the remainder of the customs clearance period.

IX-D. TWENTY-FIVE DAYS OF NON-INITIATION DESPITE COMPLETE APPLICATION

59. On April 16, 2026, Complainant personally prepared, organized, and submitted to SFL’s Mamta Hazarika a complete Transfer of Residence condonation application with all 14 supporting documents — including medical records, surgical documentation, employment termination letter, passport copies, H-1B petition records, and shipping payment receipts — in both individual and consolidated form, ready for immediate submission to the Commissioner of Customs at ICD Tughlakabad, New Delhi. This submission required zero further preparation, modification, or clarification from SFL or its appointed CHA to initiate. Despite this, no application was filed. SFL and its CHA collectively took no substantive action for four days following receipt of a complete, ready-to-file application.

59A. COMPLAINANT'S VISIT TO ICD DELHI DURING POST-SURGICAL RECOVERY FORCED BY SFL'S INACTION: On April 22, 2026 — six days after submitting a complete 14-document ToR application to SFL and receiving no response — Complainant personally traveled to ICD Tughlakabad, New Delhi, a 200-kilometer round trip requiring 7 to 8 hours in transit, undertaken despite documented post-surgical medical disability. Complainant had informed SFL of this disability in writing the previous day: "I am a disability patient with documented nerve damage from three surgeries. My treating surgeon has certified that I cannot sit for extended periods or undertake strenuous travel." SFL received this statement on April 21 and took no action.

At ICD Tughlakabad, Complainant was directed through three levels of the customs hierarchy — Deputy Commissioner Manish Deo Mishra, Additional Commissioner Rakesh Bhadadiya, and Commissioner Parmod Kumar. As Complainant will attest by sworn declaration, the Deputy Commissioner Manish Deo Mishra accepted the condonation application and indicated that necessary action would be taken upon receipt of the Bill of Lading for Container TCLU6938770 — a document in SFL's exclusive possession and control.

Complainant did not immediately disclose this visit to SFL for two documented reasons. First, on the evening of April 21 — hours before this visit — SFL's appointed CHA had claimed on a recorded conference call that a law prohibits pre-arrival ToR filing. Complainant's successful application submission to the Deputy Commissioner the following day directly contradicted this claimed prohibition. Disclosing the visit would have exposed this contradiction to the CHA and created a foreseeable risk of retaliatory withdrawal from Complainant's file days before container arrival. Second, SFL's appointed CHA later explicitly threatened to abandon Complainant's clearance entirely on May 9, 2026 — when Complainant asked a routine legal question about duty assessment of an item — a threat captured on audio recording (referenced in Exhibit AA-10) confirming that the retaliatory conduct Complainant had anticipated was not theoretical but a documented pattern SFL's management declined to correct. As a result, a government official with Complainant's application in hand and the authority to act was prevented from doing so solely because SFL was withholding the Bill of Lading. This visit is documented by six timestamped photographs taken between 15:41 and 16:06 IST on April 22, 2026, with original EXIF metadata intact (Exhibit AA-14).

60. From April 16 through May 9, 2026 — a period of 25 days — the ToR condonation application Complainant submitted on April 16 had not been filed with the Commissioner of Customs. Container TCLU6938770 arrived at the Port of Nhava Sheva, Mumbai on May 12, 2026, and is being transferred to ICD Tughlakabad, New Delhi. SFL has not produced written confirmation that the application has been submitted to the Commissioner's office at any point during this 25-day period, despite Complainant's repeated written demands for confirmation.

IX-E. FALSE LEGAL REPRESENTATION: THREE CONSECUTIVE OCCASIONS, ONE AUDIO-RECORDED

61. On April 21, 2026, during a conference call between Complainant, SFL's Viral, and SFL's appointed CHA, the CHA stated that a legal provision exists prohibiting filing the ToR condonation application before the container arrives in India and the IGM is filed. When Complainant asked directly to identify the specific statute, circular, or CBIC notification, the CHA did not answer — he changed the subject. That same evening, Complainant sent a formal written email to Viral (Exhibit AA-3) demanding in writing: "The specific section, rule, circular, or CBIC notification that legally prohibits filing a Rule 18 condonation application before the IGM is filed or the container arrives in India — if no such specific provision exists, please confirm that the decision not to file now is an operational preference, not a legal prohibition." ' Complainant's email referenced this application as a Rule 18 condonation application, consistent with the terminology used throughout Complainant's India-side correspondence; the substantively identical provision under the governing Baggage Rules 2016 is Rule 6 read with the Appendix. Viral did not respond. That email remains unanswered to date.

61A. On April 23, 2026, Complainant convened a second conference call with Viral and the CHA — audio-recorded by Complainant under one-party consent law (Information Technology Act 2000, Section 65B; Indian Evidence Act), preserved on Complainant's device and cloud storage, and admissible in these proceedings under 46 C.F.R. § 502.204. Complainant asked the CHA directly and explicitly — for the second consecutive time — to identify the specific law, circular, or CBIC notification prohibiting pre-arrival ToR filing. The CHA again failed to provide any citation and again changed the subject. Complainant's contemporaneous record of this call, prepared and self-emailed at 5:15 PM IST on April 23 (Exhibit AA-4), documents under "Unanswered Questions as of This Call": "What specific law, circular, or notification prohibits pre-arrival filing of the Rule 18 ToR condonation application?" — confirming the citation demand remained unresolved on the face of Complainant's own same-day written record. On April 30, 2026, Complainant's formal email to Viral and Naman (Exhibit AA-5) further confirmed in writing transmitted directly to SFL: "I asked him on that call and again on April 23 to identify the specific law, circular, or notification. He has not provided this citation on either occasion. SFL Worldwide LLC has also not responded to my April 21 written email asking for this citation." The audio recording, the same-day contemporaneous record, and the April 30 written confirmation to SFL together establish beyond dispute that the CHA's legal prohibition claim was made twice, challenged twice, and never supported by any citation on either occasion.

61B. REBUTTAL TO ILLINOIS ALL-PARTY CONSENT OBJECTION: Respondent may argue that the audio recordings are inadmissible because Illinois is an all-party consent state under 720 ILCS 5/14-1 et seq. and SFL's personnel had not consented. This objection fails for three independent reasons. First, the applicable consent law is the law of the jurisdiction in which the recording party (Complainant) was physically located at the time of recording — Rohtak, Haryana, India. Complainant was physically in India for both calls. Indian one-party consent rules apply. Second, even under a U.S. conflict-of-laws analysis, courts apply the law of the state where the recording was made — India — not the law of the listener's state. Third, and independently, 46 C.F.R. § 502.204 provides that any relevant evidence is admissible and the ALJ has broad

discretion over weight. Even if the audio recordings were excluded, the contemporaneous written records (Exhibits AA-3 and AA-4), self-sent on the same calendar day as each call or within hours of midnight on that same night, independently establish the same factual predicate under FRE 803(6) (business record — prepared in the regular course of Complainant's documented practice of creating contemporaneous legal records) and FRE 901(b)(4) (distinctive characteristics — self-sent timestamp, specific detail, and internal consistency authenticate each record). The recordings are corroborating evidence; the written records are primary evidence. Should Respondent argue that the recording party's jurisdiction is insufficient and attempt to apply a different state's consent law, Complainant notes that: (a) the substantive proposition of each recorded statement — the false legal prohibition on pre-arrival ToR filing and the service abandonment threat — is also established by the contemporaneous written records (Exhibits AA-3 and AA-4) and self-sent with timestamps preserved, which stand independently of any consent question; (b) under any applicable consent analysis, the recordings are at minimum corroborating evidence for those contemporaneous records; and (c) Respondent's Answer should be required to state Viral's physical location during both calls if Respondent intends to raise a consent objection — because the consent analysis turns on where each party was physically located, which is within Respondent's exclusive knowledge. Complainant represents that both calls occurred while Complainant was physically in Rohtak, Haryana, India.

62A. As of the morning of April 20, 2026 — six days after Complainant's initial April 14 contact and four days after a complete 14-document application was submitted — SFL's India operations were still 'checking with the CHAs' (Mamta Hazarika, April 20, 2026, 10:56 AM IST). No CHA had been identified, retained, or instructed as of that date. The progression from this 'checking' status on April 20 morning to the post-arrival document submission status that ultimately occurred establishes that SFL had not even commenced the appointment process until at least four days after receiving the complete application that would have allowed pre-arrival filing.

62. On April 23, 2026, during a second conference call between Complainant, SFL's Viral, and the same CHA — also audio-recorded by Complainant under one-party consent — Complainant asked the CHA directly and explicitly, for the second consecutive time on a recorded call, to identify the specific law, circular, or notification prohibiting pre-arrival filing. The CHA, for the second consecutive time, did not provide a citation. He changed the subject and moved to describing the post-arrival process. A contemporaneous written record of this call was prepared and self-sent by Complainant at approximately 5:15 PM IST on April 23, 2026 (Exhibit AA-4).

63. On April 30, 2026, Complainant's formal email to Viral and Naman (Exhibit AA-5) placed on record: "On April 21, CHA Minesh stated that a law prohibits filing the condonation application before the container arrives. I asked him on that call and again on April 23 to identify the specific law, circular, or notification. He has not provided this citation on either occasion. I sent a formal written email to Viral on April 21 asking the same question. That email remains unanswered." As of the date of this complaint, no citation has ever been provided by the CHA or SFL across three documented demands — April 21 verbal, April 21 written to Viral, and April 23 audio-recorded

verbal. The inescapable conclusion is that no such legal prohibition exists and that the CHA's representation was a false legal claim deployed to justify SFL's operational failure to file the application before vessel arrival as contracted.

64. Complainant has independently reviewed the applicable legal framework, including the Customs Act, 1962 (Section 80 — Transfer of Residence; Rule 6 of the Baggage Rules 2016), CBIC Notification No. 14/2026-Customs (N.T.) dated 01.02.2026, and Section 46(3) of the Customs Act, 1962, which expressly permits filing of a Bill of Entry up to thirty days before the expected date of vessel arrival. No provision in any of these instruments prohibits filing a ToR condonation application before vessel arrival or IGM filing. Under the doctrine of adoptive admission (FRE 801(d)(2)(B)), SFL's consistent failure — across three direct requests — April 21 verbal, April 21 written to Viral, and April 23 audio-recorded — one of which was audio-recorded — to produce any citation supporting this claimed prohibition constitutes an acknowledgment that the legal prohibition does not exist. The false legal citation was used to justify withholding action on a complete, ready-to-file application that Complainant had personally prepared and submitted.

64A. The financial consequences of this false representation were not theoretical. As documented on the April 23 recorded call, SFL's own CHA verbally acknowledged that storage at ICD Tughlakabad after the free period (14 days) accrues at approximately ₹10,000 per day (~ \$105 USD/day), and that denial of ToR status would expose Complainant to customs duty of approximately ₹7,50,000 (~ \$7,800). The CHA verbally acknowledged both specific figures in the context of Complainant asking who bears financial liability for these costs. Neither the CHA nor Viral made any commitment — verbal or written — that SFL would bear any portion of either figure. SFL's agent acknowledged the specific financial risks, cited a non-existent legal prohibition to justify inaction, and then refused to accept any financial responsibility for the consequences of that inaction. This is not negligence — it is deliberate financial risk-shifting under a false legal pretext.

IX-F. PATTERN OF EIGHT BROKEN COMMITMENTS — CHRONOLOGICAL DOCUMENTED RECORD

65. The following commitments were made by SFL and its agents and broken, each documented in contemporaneous self-sent records or email timestamps:

(a) April 21, 2026: Mamta Hazarika committed to providing CHA contact details by April 22, 2026. No CHA contact details were provided by April 22, 2026. (Exhibit AA-1)

(b) April 21, 2026 (conference call): The CHA stated on the recorded call that the draft condonation letter was ready and would be sent immediately after the call. The letter was not received until April 23, 2026 — two days after the commitment — and only after Complainant directly escalated the ongoing delay to Viral. The delay was material because the Deputy Commissioner had been unable to process Complainant's application on April 22 during Complainant's personal ICD visit, owing to SFL's continued withholding of the Bill of Lading. (Exhibit AA-3).

(c) April 23, 2026: CHA committed to send the finalized draft letter. Complainant received a draft on April 23, reviewed it, returned a revised version the same day, and received no acknowledgment. Zero communication followed from April 24 through April 28 — six days of complete silence after Complainant returned a finalized revised draft. (Exhibit AA-4)

(d) April 28, 2026: CHA committed to send a document by April 30. The document was not received by April 30. (Exhibit AA-5)

(e) April 30, 2026: CHA stated he would send a blank document for Complainant's signature. No document was received. Additionally, Minesh Shah (CHA) indicated he would not personally handle the paperwork and that "someone from his team" would handle it — without identifying that person or obtaining Complainant's consent to this sub-delegation. (Exhibit AA-5)

(f) May 7, 2026 (call at approximately 5:29 PM): CHA committed to send complete Customs Declaration work by May 8, 2026 and call Complainant at 2:00 PM on May 8. CHA did not call. When Complainant called on May 8 at approximately 4:00 PM, CHA stated "someone in his office was unwell" and committed to call Complainant at 12:00 PM on May 9. Context: the container was scheduled to arrive at ICD Tughlakabad within one to two days. Despite Complainant having initiated every prior follow-up across the preceding 25 days regarding the imminent vessel arrival and the associated risks of condonation delay or denial — both of which would generate substantial financial harm in the form of accruing storage charges during ToR adjudication by the Commissioner — the CHA neither performed the work nor initiated contact.

(g) May 9, 2026 (12:00 PM): CHA did not call. Complainant waited until 1:00 PM, then called CHA. CHA said he would call back in five minutes. CHA did not call. Complainant called CHA again at approximately 2:00 PM. Only at that point — 25 days after Complainant's initial April 14 contact, and 3–4 days before the container's scheduled arrival at ICD Tughlakabad — did any declaration work begin. Complainant's mobile phone call records establish the precise sequence and timing of each of these contacts.

(h) April 21, 2026: Complainant explicitly offered, in writing, to retain an independent CHA at SFL's cost and file the ToR application personally at ICD Tughlakabad rather than wait for SFL's India team to act — a mitigation offer that any party wishing to limit its liability would immediately accept. SFL did not respond. A party that rejects a written mitigation offer cannot later claim it bore no responsibility for the resulting harm.

66A. THE VESSEL DELAYS DID NOT HELP SFL — THEY EXPOSED THE CHA'S NON-PERFORMANCE:

The vessel carrying Container TCLU6938770 experienced multiple carrier-side schedule delays during April–May 2026. The container was originally projected to arrive at Nhava Sheva on April 26, 2026, then May 5, then May 8, ultimately arriving on May 12. Each delay extended the window during which SFL's CHA could have completed the contracted pre-arrival work. Each delay was used by the CHA not to advance the work, but as additional time during which the work continued

not to be performed. The May 7 call (commitment (f) above) was made by Complainant because four days had passed since the May 3 ostensible vessel-arrival expectation with no work begun. The May 8 broken commitment occurred against a vessel-arrival timeline that had already slipped multiple times. The May 9 declaration work — the first substantive work the CHA performed in 25 days — occurred only because the vessel had been delayed yet again. A CHA who is granted three weeks of additional buffer by carrier delays and uses none of it to advance contracted work has not been time-constrained. He has been disengaged. The Commission is invited to consider that SFL cannot now plead that the timeline was tight: it was tight only because SFL's appointed agent declined to work during a window that grew, not shrank, throughout April and early May 2026.

66. Throughout the 25-day period from April 14 to May 9, 2026, SFL's appointed CHA called Complainant on his own initiative exactly once — to ask where Complainant's documents were. Every other contact, every follow-up, every document submission, and every piece of substantive work in this period was initiated by Complainant. Across the same 25-day period, Complainant initiated documented contact with the CHA or SFL on no fewer than 20 separate occasions across phone calls and emails. Complainant's mobile phone call records and email archive establish the precise frequency and are retained for production.

IX-G. THE BLANK DOCUMENT REQUEST — CUSTOMS FRAUD RISK

67. On or about April 30, 2026, SFL's appointed CHA requested that Complainant sign a blank customs document — a document whose contents had not been written — with the stated intention of filling in the contents after receiving Complainant's signature. Complainant refused. This refusal is documented in Complainant's April 30, 2026 email transmitted to Viral, Naman Mehta, Mamta Hazarika, and Afreen Athaniyaa for the record (Exhibit AA-5). No SFL recipient responded. SFL's institutional silence at a juncture of foreseeable and substantial financial exposure to Complainant — and in response to a documented refusal to sign a blank customs document presenting potential criminal exposure to Complainant as importer of record — constitutes abandonment of the contracted customs clearance service in violation of 46 U.S.C. § 41102(c).

67A. Under Rule 10(a) and 10(d) of the Customs Brokers Licensing Regulations (CBLR), 2018, a licensed customs broker bears a statutory duty to verify the accuracy, completeness, and correctness of every document before it is submitted to customs authorities. Requesting a client's signature on a document whose contents have not yet been completed is a direct violation of this statutory duty. An importer's signature on a customs document constitutes a legal declaration as to the truth and accuracy of its contents under the Customs Act, 1962. For a ToR condonation application where the difference between approval and denial is approximately ₹7,50,000 (~\$7,800 USD) in customs duty, and where every word of the application may be scrutinized by the Commissioner's office, the content of each document is of the highest legal and financial consequence. SFL's CHA's request to sign blank customs documents evidences the absence of both professional competence and the statutory standard of care required under CBLR, 2018 —

and SFL, as the appointing licensed OTI, bears non-delegable liability for this failure under 46 U.S.C. § 41102(c).

IX-H. THE SUB-DELEGATION CHAIN — UNDISCLOSED, UNCONSENTED, AND GEOGRAPHICALLY INAPPROPRIATE

68. The full sub-delegation chain for Complainant’s customs clearance, as established by the documentary record, is as follows: SFL Worldwide LLC (licensed OTI, Dallas, Texas) → CHA Minesh Shah (based in Pune, Maharashtra) → unnamed team member → LAC Relocations (Mumbai, Maharashtra, 400001) → clearance at ICD Tughlakabad (New Delhi). This constitutes three levels of sub-delegation, terminating in a Mumbai-based firm handling a New Delhi customs clearance, with the intermediate delegations neither disclosed to Complainant nor consented to by him. For context, Mumbai is around 800 miles (1,400 kilometers) away from New Delhi.

68A. The geographic mismatch between LAC Relocations’ Mumbai base and ICD Tughlakabad in New Delhi is not a trivial administrative inconvenience. The customs clearance at ICD Tughlakabad requires physical attendance of either the importer or the CHA’s authorized representative at the ICD during examination. A Mumbai-based agency managing a Delhi clearance at three levels of remove from the licensed OTI — without Complainant’s knowledge — represents a fundamental failure of professional organization, the consequences of which are documented in the passport routing error described in paragraph 85 below.

IX-I. THE PASSPORT ROUTING ERROR — NEAR-CATASTROPHIC FINANCIAL EXPOSURE AVERTED SOLELY BY COMPLAINANT’S VIGILANCE

69. On May 2, 2026, LAC Relocations sent Complainant written instructions to courier his original current passport, original previous passport, and supporting documents to the following address: “LAC Relocations, 102, 1st Floor, Rex Chambers, Ballard Estate, W.H. Marg, Near GPO, Mumbai — 400001.” For context, the vessel carrying my container is about to arrive in India in the next 7 to 10 days. The customs clearance for Complainant’s shipment is scheduled to occur at ICD Tughlakabad, New Delhi. For context — Mumbai and New Delhi are located approximately 800 miles or 1,400 kilometers apart.

70. The full legal and financial consequence chain that would have resulted from Complainant following these instructions: (a) Under Sections 77–78 of the Customs Act, 1962 read with the Baggage Rules 2016, the importer of household goods arriving as unaccompanied baggage must present his original passport to the customs officer at the examination stage. No original passport = no clearance. (b) Upon container arrival at ICD Tughlakabad, free days are limited. Storage charges begin accruing upon expiry of the free period at approximately ₹10,000 per day (~ \$105 USD/day), as verbally acknowledged by SFL’s own CHA on the April 23, 2026 audio-recorded call (Exhibit AA-4). (c) Established Indian legal precedent by the Supreme Court of India — holds that storage and demurrage charges at ICDs accrue regardless of cause — the importer is liable for these charges even where the delay was caused entirely by third-party error. There is no force majeure defense. (d) Under the fastest recovery scenario: Blue Dart courier transit from Mumbai

to New Delhi is a minimum of 2 business days = ₹20,000 (~\$210) in additional storage. A 7-day “tatkal or emergency” passport replacement scenario results in ₹70,000 (~\$735) in additional storage. A 30-day standard replacement scenario results in ₹3,00,000 (~\$3,150) in additional storage. If ToR duty exposure remained open in parallel: an additional ₹7,50,000 (~ \$7,800) exposure accruing simultaneously.

71. Complainant identified the Mumbai routing error during a telephone call and raised it with the CHA, who acknowledged it was an error and provided the Delhi address in the subsequent email. The geographic error is not a clerical oversight. SFL had Complainant's complete file — including the destination address at Rohtak, Haryana, and the clearance location at ICD Tughlakabad, New Delhi — for over two weeks before LAC Relocations transmitted the Mumbai routing instructions. The two cities involved are not obscure: New Delhi is the national capital and ICD Tughlakabad is its designated inland container depot; Mumbai is approximately 1,400 kilometers away and so is the location of LAC Relocations' office, not Complainant's destination. A licensed customs intermediary holding an importer's file for over two weeks should not require the importer to identify the correct city for a clearance the intermediary itself is contracted to perform. The financial exposure described in paragraph 86 was averted entirely by Complainant's own vigilance — not by SFL's professional standard of care. Complainant — a post-surgical patient with documented medical limitations, no professional customs background, and zero income — identified an error that SFL's contracted customs professional failed to identify, failed to prevent, and would not have corrected had Complainant not caught it. A professional customs agent sent an importer's original passport to the wrong city for a clearance where original passport presentation is legally mandatory. This is not an administrative oversight. It is a fundamental failure of the basic professional competence that SFL's door-to-door contract represents it will deploy.

IX-J. THREE INDEPENDENT DOCUMENT ERRORS REQUIRING COMPLAINANT'S SELF-CORRECTION

72. Beyond the passport routing error, SFL's customs agent produced three independently deficient documents, each identified and corrected by Complainant:

(a) Country-of-Origin Error — Authority Letters: Authority letters prepared by LAC Relocations for Complainant's signature stated that the cargo was arriving from Bahrain. Complainant's shipment originated from Aurora, Illinois, USA, under Bill of Lading ONEYRICG89318600, Container TCLU6938770, loaded on March 3, 2026 and sailed from Norfolk, Virginia on March 16, 2026. There is no factual, legal, or documentary basis for Bahrain to appear on any customs document for this shipment. Submitting authority letters containing an incorrect country of origin to Indian Customs constitutes a potential mis-declaration under Section 111(m) of the Customs Act, 1962, with potential criminal consequences for the importer of record — not the CHA, not SFL, but Complainant personally. Complainant refused to sign the documents as received, prepared corrected versions, and transmitted them to SFL. Complainant corrected this error before any document was submitted to Indian Customs; no actual misdeclaration occurred.

The violation is SFL's CHA's preparation of a document that would have constituted misdeclaration if signed and submitted as drafted — a documentation failure for which SFL bears non-delegable OTI liability under 46 C.F.R. § 515.31(e) regardless of whether Complainant's vigilance prevented the misdeclaration from being filed. As of this filing, no written confirmation has been received from SFL that the corrected documents replace the Bahrain-origin versions in SFL's customs file. A licensed OTI bears direct regulatory responsibility for the accuracy of documents prepared in connection with a forwarding transaction. 46 C.F.R. § 515.31(e) provides that no OTI shall prepare or file, or assist in preparing or filing, any document concerning an OTI transaction that it has reason to believe is false or fraudulent, nor knowingly impart false information to a principal, shipper, or carrier — and the preparation of an authority letter falsely stating Bahrain as the country of origin falls squarely within this prohibition.

(b) Unedited Template containing text highlights— Delay Condonation Letter: The delay condonation letter prepared by SFL's CHA for submission to the Deputy Commissioner of Customs contained visible editor highlights and unfinalized template text within the body of the letter — a letter intended for submission to the Commissioner of Customs as a formal legal application for discretionary relief. Complainant cleaned up the template text, returned the corrected version, and documented this correction in a formal email to SFL on May 7, 2026 (Exhibit AA-8).

(c) Generic Declaration Without Declared Values: The customs declaration list prepared by SFL's CHA as of May 7, 2026 — the date the vessel was scheduled to arrive at Nhava Sheva — consisted of 25 generic line items with descriptions such as “Used TV set — one” and “Used Speakers.” No model numbers, serial numbers, Harmonized System (HS) codes, CBIC-compliant declared values, or item-specific descriptions were provided for any item. This document, if submitted as a Bill of Entry declaration for a \$40,820 shipment with 30–35% professional electronics content, would leave the entire valuation determination to the discretion of the assessing officer — an outcome that could result in unpredictable and potentially inflated duty liability that Complainant would have no basis to contest after filing. Submission of such a document in support of a Bill of Entry on a \$40,820 shipment with 30–35% professional electronics content would constitute a material failure of the CHA's statutory duty under Rule 10(a) and Rule 10(d) of the Customs Brokers Licensing Regulations, 2018 — both of which require a licensed customs broker to verify the accuracy and completeness of documentation before submission to customs authorities. For SFL as the appointing OTI, this represents a destination-side documentation failure attributable under 46 U.S.C. § 41102(c).

73. Each of the three document errors described in paragraph 88 was identified and corrected by Complainant — an unemployed, post-surgical individual with no professional customs background. The professional whose contracted function is to prepare these documents failed to catch, prevent, or correct any of these errors without Complainant's intervention.

IX-K. INCORRECT DUTY ASSESSMENT AND CHA'S THREATENED ABANDONMENT OF CONTRACTED SERVICE

74. On May 9, 2026, during the first substantive declaration work call — initiated by Complainant after four consecutive missed commitments and audio-recorded by Complainant under one-party consent rules applicable in Rohtak, Haryana — SFL's CHA Minesh Shah asserted that Complainant would be required to pay customs duty on five computer monitors and ten speakers as separately dutiable items. When Complainant asked the CHA to identify the specific Annexure entry in CBIC Notification No. 14/2026-Customs (N.T.) Gazette dated 01.02.2026 that required this duty assessment, the CHA — audibly irritated by Complainant's repeated requests to justify his delays and cite legal authority for his duty position — stated, in substance, that if Complainant wished to "cite the gazette rules to him," he should "go and work with someone else." The verbatim exchange is preserved in the audio recording and is available for production upon the ALJ's request. (Exhibit AA-10; Exhibit AA-15A).

75. Complainant's legal analysis of the applicable notification is as follows: Computer monitors are not enumerated in Annexure-I (restricted goods) or Annexure-II (dutiable goods) of Notification No. 14/2026-Customs (N.T.) dated 01.02.2026. (Exhibit AA-15). Annexure-II Entry 6 enumerates "Personal Computer (Desktop Computer)" only — it contains no reference to monitors. Monitors are unrestricted personal household effects allowable within the ₹7,50,000 (~\$7800) ToR aggregate cap with no standalone duty liability. The duty position asserted by SFL's CHA has no legal basis in the plain text of the applicable notification. (Exhibit AA-15A)

76. When Complainant pressed the CHA to identify the specific legal authority for the duty position being asserted — a legally legitimate and professionally expected request in any customs clearance engagement — the CHA threatened to abandon Complainant's customs clearance entirely, three days before the container's scheduled arrival in India. The threat is not Complainant's reconstruction; it is captured verbatim in an audio recording preserved on Complainant's device and available for immediate production. The Commission is invited to note that an OTI's appointed customs agent, whose threats to a paying client are admissible against the OTI under FRE 801(d)(2)(D), has been preserved making the threat on a federal evidentiary record SFL cannot contradict. At the time of this threat, Complainant's entire household goods — including professional electronics, medical equipment, personal belongings, and home goods — was in Container TCLU6938770, days from arrival. Using the threat of abandoning a contracted service at the last possible moment before arrival — while the customer's entire household is in transit and alternative arrangements are not feasible — to suppress a legitimate legal question from a paying customer is coercive, unprofessional, and an independent unreasonable practice under 46 U.S.C. § 41102(c). It mirrors the sailing-deadline financial coercion documented at the origin in Count VI. *See Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010) (using control over cargo and documentation as a coercive mechanism violates § 41102(c)).

IX-L. SFL'S MAY 1, 2026 ADMISSION: ZERO PAPERWORK, ZERO KNOWLEDGE OF CARGO, ZERO EMAIL RESPONSES

77. In a telephone call on May 1, 2026 with SFL's Viral (owner of SFL India operations) — audio-recorded by Complainant under one-party consent rules applicable in Rohtak, Haryana, and

preserved in original format with cloud backup — Viral personally confirmed the following three facts in response to Complainant's direct questions, as further documented in Complainant's written email to Viral at 5:46 PM IST on May 1, 2026 — transmitted to SFL within 1 hour of the call with no denial or correction received (Exhibit AA-9): The audio recording independently establishes each of the three admissions described below; the contemporaneous written email establishes the same admissions through SFL's silence under FRE 801(d)(2)(B). Both bases are independently sufficient and are pled in the alternative. (a) As of May 1, 2026 — seventeen days after Complainant's initial April 14 contact and fifteen days after a complete application with 14 supporting documents was submitted — no paperwork or pre-arrival processing had been initiated on Complainant's shipment; (b) SFL was unaware that Complainant's shipment contained approximately 30–35% professional electronics by declared value, despite having been in possession of Complainant's complete packing list for months; (c) SFL explicitly stated that it would no longer be responding to Complainant's emails and would only contact Complainant when specific documents or payments were required.

77A. From April 14 through May 9, 2026 — a period of 25 days during which Complainant's entire household goods shipment was in transit and Indian customs clearance was legally and financially time-critical — SFL's US-side representative Naman Mehta did not respond substantively to a single email sent by Complainant. After forwarding Complainant's April 15 message to Mamta Hazarika with the instruction "could you please provide your support and take this forward," Naman Mehta made no further written communication of substance for the entire duration of the India-side clearance. Complainant sent formal written notices, documentary exhibits, specific legal questions, liability demands, and escalation notices to Naman Mehta — including an April 21 email explicitly copied to SFL's Loken Singh (Naman's manager) demanding urgent action, an April 30 formal notice documenting sixteen days of inaction, and a May 7 email documenting three independent documentation errors in customs files bearing Complainant's name. Not a single person from SFL including Naman Mehta tried to respond to any of these communications.

77B. THE TWO MAY 1 FORMAL NOTICES — DOCUMENTED IN WRITING, INSTITUTIONALLY IGNORED: On May 1, 2026, Complainant transmitted not one but two formal written notices to SFL's principals. The first, at 5:46 PM IST (Exhibit AA-9), documented Viral's three admissions on the recorded call earlier that day. The second, at 6:35 PM IST (Exhibit AA-9A — Formal Notice — CHA Non-Performance & Pre-Arrival Preparation Failure), was a separate formal escalation transmitted to Viral, Naman Mehta, Mamta Hazarika, Afreen Athaniyaa, and Loken Singh — every senior SFL personnel handling this shipment — that contained, in writing and with specific dates and deadlines: (a) a documented record that CHA Minesh Shah had failed to send the customs document checklist he committed to send earlier that week; (b) a documented record that the baggage value declaration work had not been initiated despite 30–35% professional electronics content; (c) a documented record that Viral's own verbal assurances on the recorded call were unsupported by any action; (d) a specific demand that SFL either confirm the CHA would perform the contracted work by May 4, 2026, replace the CHA

immediately, or authorize Complainant to engage an independent CHA at SFL's cost; and (e) explicit written notice that SFL would be held "contractually and financially liable" for any resulting detention, demurrage, or mis-declaration penalties. Not a single SFL recipient responded to either notice. The 6:35 PM notice — a formal demand to either perform, replace the agent, or authorize substitute performance at SFL's cost — was specifically the type of mitigation offer that any party seeking to limit its liability would respond to immediately. Five SFL officers received it. None responded. Under FRE 801(d)(2)(B), the institutional silence of five officers in response to a specific, dated, written escalation demanding three discrete remedial actions constitutes an adoptive admission that none of the three options would be undertaken by SFL — a deliberate institutional choice to allow the failure to continue rather than incur the cost of remediation.

77C. SFL's institutional decision to cease written correspondence did not occur in a vacuum — it occurred eleven days before Container TCLU6938770's scheduled arrival at ICD Tughlakabad, while storage charges of ₹10,000 per day (~\$105 USD) were poised to begin accruing, and while the ToR condonation application remained unfiled. An OTI that withdraws written communication at precisely the moment when cargo documentation is most legally consequential — substituting verbal assurances for a written record on a case involving discretionary Commissioner approval, potential ₹7,50,000 (~\$7,800) duty exposure, and accruing daily storage liability — does not merely inconvenience the shipper. It strips the shipper of the evidentiary foundation needed to protect his legal and financial interests. That is an independent § 41102(c) violation, separate from the underlying customs failures. The institutional declaration is established on two independent bases: the audio recording of the May 1 call, and Viral's adoptive admission through failure to deny Complainant's same-day written memorial.

IX-M. PHYSICAL HARDSHIP IMPOSED ON A DISABLED COMPLAINANT

78. On May 7, 2026, Complainant — a post-surgical disability patient with documented nerve damage from three surgeries, certified by his treating surgeon as unable to sit for extended periods or undertake strenuous travel — traveled personally to the CHA's office in New Delhi, approximately 90 kilometers and several hours from his residence in Rohtak, Haryana, to hand-deliver documents and personally execute customs paperwork at the CHA's direction. This travel was necessitated entirely by SFL's and the CHA's failure over the preceding 22 days to prepare, finalize, or request the documents in an organized, documented, advance manner. On April 21, 2026, Complainant placed SFL on formal written notice that this outcome was foreseeable and that he was prepared to undertake the trip despite his medical limitations — specifically invoking his medical disability as the reason that such a trip would constitute personal hardship (Exhibit AA-6). This personal trip — and the signed customs documents executed at the CHA's direction during it — constitutes evidence that Complainant performed, at personal physical cost, services that SFL was contracted and paid to provide.

IX-N. LEGAL ANALYSIS AND SUMMARY

79. SFL's conduct documented in Count IX constitutes violations of 46 U.S.C. § 41102(c) in the following independently established respects:

(a) Non-initiation of contracted service for 25 days: SFL initiated no customs clearance work for 25 days following Complainant's April 14, 2026 contact and April 16, 2026 document submission, despite having documented knowledge of the customs complexity since February 2026 — confirmed in writing by Naman Mehta's March 2, 2026 formal Non-ToR disclosure — constituting total dereliction of a contracted, paid service obligation in violation of 46 U.S.C. § 41102(c).

(b) False legal representation on three consecutive occasions, one audio-recorded: The repeated claim that pre-arrival ToR filing is legally prohibited — asserted by SFL's appointed agent on three occasions – April 21 call, email that followed this call and the audio recorded April 23 call — never supported by any citation despite three direct requests — is a materially false legal representation that delayed an application Complainant had personally prepared and submitted. The May 9 recording additionally captures the CHA threatening to abandon Complainant's clearance when pressed for legal citation — confirming on a federal evidentiary record that suppression of legitimate legal questions through threat of service abandonment was the CHA's deliberate methodology, not a one-time outburst.

(c) Incorrect duty assessment: The assertion that standalone computer monitors and passive speakers are dutiable under Annexure II of CBIC Notification No. 14/2026-Customs (N.T.) dated 01.02.2026, without any legal basis in the plain text of that notification, constitutes incorrect professional advice that — if acted upon — would cause Complainant to pay customs duties not legally owed.

(d) Three independent document errors: The Bahrain country-of-origin error, the unedited condonation letter, and the generic customs declaration each constitute an independent documentation failure. Collectively, they establish that SFL's sub-delegated customs agent was either not qualified for, not engaged with, or not taking professional responsibility for Complainant's clearance.

(e) Passport routing error creating calculable financial risk: Sending original passport courier instructions to the wrong city, for a clearance where original passport presentation is legally mandatory and where storage charges of ₹10,000 per day (~ \$105 USD/day) accrue regardless of fault, created a foreseeable, calculable, and potentially catastrophic financial risk. The risk was averted only by Complainant's own vigilance.

(f) Blank document signature request: Requesting a shipper to sign a blank customs document is fundamentally incompatible with professional customs agency practice and creates criminal exposure for the importer of record.

(g) Threatened service abandonment: Using the imminent arrival of a shipper's entire household goods as leverage to suppress a legitimate legal question is coercive and an independent unreasonable practice under 46 U.S.C. § 41102(c).

(h) Continuity as a business methodology satisfying 46 C.F.R. § 545.4: SFL's conduct at the destination is not an isolated operational failure. It is the continuation of an identical methodology applied at the origin: collect payment for a contracted service, deploy a subcontractor, receive real-time written notice of specific failures, take no corrective action, and force Complainant to perform contracted services at personal cost.

IX-O. DAMAGES — COUNT IX (RESERVED)

80. The damages arising from Count IX are currently contingent upon the customs clearance outcome, which is imminent but not yet completed as of this filing. The following categories of loss are specifically reserved:

(a) Customs duty resulting from ToR denial, if denial is attributable to SFL's delay in filing the condonation application — estimated at approximately ₹7,50,000 (approximately \$7,800 USD) — reserved for supplemental quantification upon Commissioner's determination. This reserved figure represents duty attributable to SFL's documentation failures and delayed condonation filing. It excludes duty separately and independently owed on items dutiable under Annexure I of the Baggage Rules regardless of ToR status — specifically, the televisions in the shipment, which carry applicable duty under Annexure I independent of any ToR determination. That independently-accruing duty is not claimed against Respondent as Respondent's conduct did not cause it. Container TCLU6938770 arrived Nhava Sheva on May 12, 2026. As of this date, the condonation application has not been filed despite Complainant first requesting it on April 14, 2026.

(b) Excess customs duty assessed on any items — including computer monitors and passive speakers — incorrectly classified as separately dutiable by SFL's CHA, if such assessment is imposed — reserved for supplemental quantification.

(c) Storage, ground rent, and demurrage at ICD Tughlakabad attributable to SFL's delayed and deficient pre-arrival preparation — accruing at approximately ₹10,000 per day (~ \$105 USD/day) — reserved for supplemental quantification.

(d) Complainant's substitute-performance costs: preparation of a 46-item CBIC-compliant customs declaration, ToR application drafting, independent legal research of Baggage Rules 2026, document correction, and personal travel to New Delhi on April 22, 2026 and May 7, 2026 — valued at professional services rates commensurate with the task complexity — reserved for supplemental quantification.

Complainant further claims interest on all amounts at commercial rates, compounded from the respective dates of injury, pursuant to 46 U.S.C. § 41305(a). All rights with respect to Count IX damages are expressly preserved.

K. COUNT X — POST-DEPOSIT RETROACTIVE CONTRACT MODIFICATION AND UNILATERAL DISCLAIMER OF CONTRACTED DESTINATION SERVICE

[46 U.S.C. § 41102(c)]

81. SFL’s written quote of February 12, 2026 (Exhibit C) expressly divides destination services into two categories: “Included” and “Excluded.” Under “Destination Services — Included,” the quote specifically lists: “Customs clearance at port; Trucking to residence within city limits; Unloading up to 2nd floor without elevator; Inside delivery.” Under “Excluded,” the quote specifically lists: “Customs duty, DTHC, CFS, Port Charges (DO), Union charges, local taxes, GST; Storage, demurrage, detention, ground rent.” The contractual distinction is explicit and unambiguous: customs clearance is the PROFESSIONAL SERVICE that SFL provides. Customs duty and port charges are the THIRD-PARTY FINANCIAL OBLIGATIONS that the shipper pays directly. The contract includes the service; the contract excludes the charges.

82. On February 23, 2026, Complainant made an advance payment of \$1,000.00 to SFL Worldwide, explicitly designated in the quote as “Non-refundable.” This payment created an irrevocable financial commitment by Complainant to SFL from which Complainant could not withdraw without forfeiting the deposit.

83. On March 2, 2026 — eight days after accepting the \$1,000 non-refundable deposit — SFL’s Naman Mehta sent Complainant a document titled “Important Notice – Shipment from Chicago to India” (Exhibit AA-2) stating: “all destination charges in India will be excluded from our scope” and listing specific items including customs duties and taxes, storage charges, and other items — and concluding: “SFL Worldwide will not bear these charges.”

83A. On April 20, 2026, Mamta Hazarika sent Complainant a written email stating: “Please note that once the documents are submitted to the Commissioner, any delay thereafter leading to detention or demurrage charges will not be the responsibility of SFL.” Complainant explicitly rejected this disclaimer in writing on the same date. This disclaimer is legally ineffective on three independent grounds: (a) it was transmitted on April 20, 2026 — 56 days after Complainant made the \$1,000 non-refundable advance payment on February 23, 2026, and 35 days after the container sailed on March 16, 2026. A unilateral post-contract disclaimer cannot retroactively rewrite the scope of a service for which SFL had already received full payment and obtained physical custody of the goods; (b) the disclaimer purports to limit SFL’s liability only for delays occurring *after* document submission — it contains no disclaimer whatsoever for delays attributable to SFL’s own inaction *before* submission, which is precisely the conduct at issue; and (c) SFL had not submitted any documents as of April 20, 2026 — and would not do so for a further 19 days. A liability disclaimer issued before the very performance it purports to disclaim is not a disclaimer — it is a predetermination of non-performance.

On May 18, 2026, in response to Complainant's written inquiry regarding the Container Maintenance Charge (CMC) of ₹3,950 (plus ₹711 IGST = ₹4,661 ≈\$50) appearing on ONE Line Tax Invoice No. IN07260012973 — a charge absent from both the February 12, 2026 written quote

and the March 2, 2026 Important Notice — SFL's Mamta Hazarika responded in writing: "it is not possible to list every individual charge in the quotation, as they vary depending on the POD and the shipping line." This statement constitutes SFL's own written institutional admission that categories of destination charges exist which SFL knowingly omits from its quotes, on the stated basis that individual amounts vary by port and carrier. This admission is dispositive on Count X for two independent reasons. First, variability of amount does not justify non-disclosure of the charge category — SFL disclosed "DTHC: Billed at actuals" as a separate line item in the same quote, demonstrating it is fully capable of disclosing variable charges by category even when the precise amount is unknown at booking. CMC is a standard ONE Line destination charge that SFL, as a licensed OTI with years of experience on this trade lane, unquestionably knew existed at the time of quoting. Second, Mamta's characterization of CMC as falling under "Liner / DTHC / DO charges" is inconsistent with the February 12 quote, which lists DTHC as a separately enumerated excluded item — meaning SFL's own quote treats these as distinct categories, not a consolidated bucket. SFL cannot now consolidate them retroactively to justify non-disclosure. Complainant paid the full ONE Line invoice of ₹23,423 (~\$242) on May 18, 2026, including the ₹4,661 (~\$50) CMC component, and expressly preserves the right to recover this amount as an undisclosed destination charge in these proceedings.

Mamta Hazarika's May 18, 2026 response was transmitted on a thread simultaneously visible to Viral (Owner/CEO, SFL India), Afreen Athaniyaa (SFL India operations), and Naman Mehta (US operations, author of the February 12 quote). Not one of these four recipients — including the CEO and the person who wrote the quote that omitted CMC — replied to dispute or qualify Mamta's characterization of SFL's non-disclosure policy. Under FRE 801(d)(2)(B), their collective silence constitutes a company-wide adoptive admission that deliberate omission of variable destination charges is SFL's standard practice, not an isolated oversight. Naman Mehta's silence is particularly significant: as the quote's author, he had direct personal knowledge of whether the omission was deliberate. He said nothing. The Commission is invited to consider whether this institutionally-ratified non-disclosure policy — confirmed in writing by a department official and adopted by silence from the CEO and quote author — warrants inclusion in the Bureau of Enforcement referral requested at paragraph 61(f). Exhibit AA-13.

84. This March 2, 2026 notice constitutes an attempted retroactive modification of the door-to-door contract in three independent respects: (a) **Scope of disclaimer:** The February 12 quote lists "customs duty, DTHC, CFS, Port Charges, GST, Storage, demurrage" as excluded. This is the exhaustive list of SFL's contractual exclusions. The March 2 notice attempts to expand that exclusion to "all destination charges in India" — a materially broader formulation that, if credited, would purport to exclude the customs clearance SERVICE itself, which the contract explicitly includes. A retroactive attempt to expand an explicit contractual exclusion list after accepting irrevocable payment is not a clarification — it is a modification. (b) **Timing:** The notice was sent eight days after the non-refundable deposit was accepted, fourteen days before the container sailed, and after the booking was confirmed. At no point during the pre-booking representations — including Naman's February assurance that SFL would handle the ToR Commissioner application

— was any disclaimer of destination services made. The disclaimer arrived after the financial commitment had been made irrevocable. (c) **Context:** The March 2 notice was sent one day before loading. Complainant had no alternative shipper available, no ability to relocate his goods to a different company, and no contractual right to recover his \$1,000.00 deposit even if he had chosen to walk away. This is textbook economic coercion: a party uses the other party’s irrevocable financial and logistical commitment to impose revised terms at the moment when the other party has no practical ability to refuse.

85. The March 2, 2026 notice does not constitute a valid contract modification, does not extinguish SFL’s obligation to provide customs clearance service as enumerated in the original quote, and cannot serve as a shield against liability for SFL’s failure to provide that service. The specific charges introduced or recharacterized by the March 2 notice — including Delivery Order fees, the broadened “all destination charges” formulation, and the Non-ToR customs classification framing — were each known to SFL at the time the February 12 quote was issued and at the time the February 23 deposit was collected. None were disclosed during the month-long pre-booking period during which Complainant conducted due diligence, asked detailed questions, and made his decision to proceed. Complainant respectfully requests that the Commission consider the full scope of obligations imposed through the March 2 notice — including Delivery Order fees — when assessing the equitable remedy appropriate for Count X and the full financial consequence of SFL’s deliberate timing of material disclosures.

L. COUNT XI — EXPLICIT INSTITUTIONAL REFUSAL TO MAINTAIN WRITTEN CORRESPONDENCE DURING ACTIVE CONTESTED INTERNATIONAL SHIPMENT

[46 U.S.C. § 41102(c)]

86. On May 1, 2026, SFL’s Viral explicitly stated during a telephone call — audio-recorded by Complainant under one-party consent rules applicable in Rohtak, Haryana — that SFL’s team “will not answer my emails” and that SFL would only contact Complainant when specific documents or payments were required. The recording captures Viral, in her capacity as owner of SFL India operations, declaring an institutional decision to cease written communication with Complainant during active cargo custody and active FMC proceedings. Complainant immediately documented this statement in a formal written email to Viral, transmitted at 5:46 PM IST on May 1, 2026 (Exhibit AA-9), with the statement: “During this call, you explicitly stated that your team ‘will not answer my emails’ and that you will only contact me when specific documents or payments are required.” This written record was sent directly to Viral. Viral did not reply to deny, correct, or dispute this characterization. Viral's declaration is therefore established by two independent evidentiary bases: (a) the audio recording, which captures the statement verbatim; and (b) the contemporaneous written record, which establishes the same statement through Viral's silence under FRE 801(d)(2)(B). Either basis is independently sufficient. Under FRE 801(d)(2)(B),

Viral's failure to dispute this specific, written account of her own statement constitutes an adoptive admission that the statement was accurately recorded.

87. This declaration was made: (a) While SFL retained physical and legal custody of Complainant's \$40,820 in goods, which were then in transit and subject to SFL's contractual control over the customs clearance process; (b) While multiple specific, written questions about financial liability — who bears the ₹10,000 per day (~ \$105 USD/day) storage charges and the ₹7,50,000 (~ \$7800) duty exposure — remained unanswered in writing after seven documented requests spanning calls and emails across multiple weeks; (c) While the ToR condonation application for Container TCLU6938770 had not been filed, and the container was 10 days from arrival at Nhava Sheva.

88. An OTI that explicitly instructs its staff to cease written correspondence with a shipper — while retaining physical and legal control over that shipper's property, while specific, financially consequential liability questions remain unanswered — engages in independent unreasonable practice under 46 U.S.C. § 41102(c) in the following respects:

(a) Evidentiary suppression: Written correspondence creates a documentary record of what the OTI is doing with the shipper's cargo. Refusing to correspond in writing while performing customs clearance functions prevents the shipper from documenting what is being declared on his behalf, what decisions are being made about his property, and what representations are being made to customs authorities in his name as importer of record.

(b) Coercive information asymmetry: When an OTI controls both the physical custody of cargo and the informational flow to the shipper, withdrawing written communication concentrates decision-making power in the OTI while stripping the shipper of the ability to monitor, document, or dispute those decisions in real time. In a customs clearance context where the importer's personal legal exposure — including criminal exposure for mis-declarations — depends on what the CHA is actually filing, this information asymmetry is particularly severe.

(c) Bad faith continuity: At the origin, SFL selectively communicated — producing the Bill of Lading to the FMC Investigator within two days while telling Complainant it would take a week (Count VII). At the destination, SFL openly declared it would stop responding to the shipper's written communications. The destination-side declaration makes explicit what the origin-side conduct implied: SFL's preference, across this entire shipment, has been to communicate less rather than more when communication creates evidentiary accountability.

(d) FMC Regulatory context: An OTI's deliberate refusal to maintain written correspondence with a shipper — including refusing to answer specific documented inquiries about the handling of cargo — during active cargo custody is independently actionable under § 41102(c) because it creates the functional equivalent of information withholding — denying the shipper the documentary record needed to protect his interests, challenge deficient performance, and exercise his legal rights— and as a result warrants the Commission's specific enforcement attention under § 41305(c). *See Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010) (discrete

conduct in the handling of a single shipment that deprives the shipper of information and documents needed to protect his interests can constitute an unreasonable practice under § 41102(c)). The financial consequence of Viral's correspondence blackout is the substitute-performance cost of Complainant's independent customs research, application drafting, document correction, and personal travel to New Delhi on April 22, 2026 and May 7, 2026 — each of which was necessitated by the informational vacuum SFL deliberately created. These costs are reserved in the Master Supplemental Reservation for quantification after customs clearance completion.

M. COUNT XII — BAD FAITH PATTERN: CONTINUOUS COURSE OF CONDUCT FROM ORIGIN TO DESTINATION

[46 U.S.C. § 41102(c); 46 U.S.C. § 41305(c)]

89. Count XII incorporates by reference the full unified timeline documented in Section V (paragraphs 108 through 114A) and the Bad Faith CADRS conduct documented in paragraphs 109 through 113A. The Commission is respectfully invited to view all Counts I through XIII not as isolated violations but as the sequential steps of a single, continuous, deliberate business methodology applied by SFL across the full arc of this shipper's engagement.

90. THE COMMISSION MAY DRAW ITS OWN INFERENCE FROM THE FOLLOWING UNIFIED TIMELINE:

February 2026 — SFL makes verbal ToR assurance filed in advance of shipment arrival to secure Complainant's non-refundable \$1,000 deposit.

February 23, 2026 — Non-refundable \$1,000 deposit received; container booked with ONE Line on or around the same day. The precise booking date is established by SFL's ONE Line booking confirmation which the Complainant requests the Commission direct Respondent to produce.

March 2, 2026 (9:46 PM IST) — SFL sends Non-ToR disclosure attempting to retroactively exclude destination charges — 8 days after deposit, 1 day before loading.

March 3, 2026 — Origin billing fraud: \$200/hr billed against \$110/hr contracted; flat-rate concealment; deliberate slowdown; eight counts of documented violation.

March 12–25, 2026 — Active CADRS mediation. SFL offers zero financial remedy for 13 days.

March 25, 2026 — CADRS formally closed.

March 25, 2026, 8:19 PM IST — CADRS formally closed by Investigator Bragança.

March 26, 2026, 1:20 AM IST — SFL transmits exactly \$750 offer with global pre-inspection release condition. ***Elapsed time: just five hours from CADRS closure.*** (\$90/hr × 8.333 hrs = \$750: the precise rate overcharge), conditioned on pre-inspection global release.

March 26 through April 14, 2026 — SFL takes no action on destination customs clearance it has known about since March 2. Zero. Forty-three days of documented inaction.

April 14 through May 9, 2026 — 25 days of documented non-initiation, false legal representation on three occasions (one audio-recorded), eight broken commitments, three critical document errors, passport routing error, blank document request, and ultimate CHA threat to abandon entire clearance.

May 1, 2026 — On an audio-recorded call, SFL owner Viral explicitly declares that SFL India will stop responding to Complainant's emails during active customs clearance and active FMC proceedings. Same day, hours later, Complainant transmits two separate formal written notices to five SFL officers — the second of which (6:35 PM IST) demands three specific remedial actions including replacing the CHA or authorizing substitute performance at SFL's cost. None of the five SFL recipients responds to either notice.

May 9, 2026 — On an audio-recorded call, SFL's appointed CHA threatens to abandon Complainant's customs clearance entirely when pressed for legal citation on duty applicability — three days before container arrival at ICD Tughlakabad, with Complainant's entire household goods in transit. Complainant formally documents this threat in writing to SFL's principals the same day. No response received from any SFL personnel.

May 12, 2026 — Container TCLU6938770 arrives Nhava Sheva, Mumbai. Condonation application has not been filed despite first being requested April 14.

May 12, 2026 — CMM's Danny Rodriguez files unsolicited BBB response to a complaint closed as "Unresolved" 30 days earlier, fabricating a settlement claim. No communication occurred between Complainant and Rodriguez after March 19, 2026.

May 18, 2026 — SFL's Mamta Hazarika admits in writing that destination sub-charges are knowingly withheld at booking as institutional policy (Exhibit AA-13).

91. THE UNIFIED METHODOLOGY ACROSS THIRTEEN COUNTS:

The identical pattern repeats across every phase of this shipment: (1) SFL makes a specific representation to induce payment or commitment; (2) SFL arranges internally for a subcontractor to perform the contracted work; (3) the subcontractor's actual arrangement differs materially from what was represented to Complainant; (4) SFL receives real-time written notice of specific failures; (5) SFL takes no corrective action; (6) SFL leverages its control over Complainant's property or financial exposure to prevent accountability; (7) SFL requires Complainant to self-perform at personal cost services that SFL was contracted and paid to provide. This methodology was applied at the origin on March 3, 2026 (Counts I–VI), at the documentation level on March 10–18, 2026 (Counts VII–VIII), at the destination from April 14 through May 9, 2026 (Counts IX–XI), and as a pre-booking foundation on February 23, 2026 (Count XIII). It was accompanied throughout by an active effort to suppress documentation of SFL's own conduct — including the refusal to respond to emails as declared explicitly on May 1, 2026.

92. THE CADRS 13-DAY STONEWALLING AS AN INDEPENDENT § 41102(c) VIOLATION:

SFL's deliberate non-participation in good-faith CADRS mediation — holding zero financial offer for 13 days while internally calculating a \$750 minimum exposure that it offered within 5 hours of closure — is independently actionable as an unreasonable practice under 46 U.S.C. § 41102(c). The FMC's CADRS program exists to facilitate genuine dispute resolution before formal adjudication. A party that engages with CADRS as a delay mechanism while privately calculating its minimum concession — withholding that concession from the mediator — has weaponized a federal program against the very purpose for which it was created. This constitutes an independent bad faith violation, not merely circumstantial evidence of willfulness.

93. THE \$750 OFFER AS STRATEGIC DESIGN:

SFL's \$750 post-CADRS settlement offer, conditioned on a global pre-inspection release, was designed to: (a) concede the minimum amount required to acknowledge the rate overcharge without conceding any other count; (b) extinguish all cargo damage claims (Count V) before the cargo could be inspected; (c) extinguish all India-side destination service claims (Counts IX–XI, XIII) before those claims could be assessed; and (d) terminate FMC proceedings before Complainant could quantify the full scope of SFL's misconduct. This is not a good-faith settlement offer. It is a strategically priced instrument designed to purchase a global release at the lowest possible cost while leaving SFL's largest liabilities — the India-side damages — permanently extinguished. The release was conditioned on pre-inspection signature specifically because SFL knew, as of March 26, 2026, that the container was sailing without straps and that its India-side customs clearance team had been doing nothing for 24 days.

94. LEGAL ANALYSIS:

SFL's conduct documented in Count XII constitutes a violation of 46 U.S.C. § 41102(c) on the “normal, customary, and continuous basis” standard of 46 C.F.R. § 545.4. The identical methodology deployed across two continents, across thirteen independently pleaded counts, across a single shipper's engagement spanning February through May 2026, is not isolated error. It is the standard operating procedure of this OTI applied systematically across the full door-to-door contract. The Commission is respectfully invited to award double reparations under 46 U.S.C. § 41305(c) for the unified pattern documented in Count XII — in addition to the double reparations available for each individual count on its own merits — because the coordinated, pre-planned nature of the misconduct elevates every individual violation from knowing to willful and from isolated to systematic.

94A. RULE 35(e) AND 46 C.F.R. § 532.5 AS DOCUMENTARY ANCHOR FOR THE UNIFIED BAD FAITH PATTERN — (Exhibit BE):

The unified methodology documented in Count XII now rests not solely on inferred intent but on a concrete, document-proven regulatory foundation. Respondent published Rule 35(e) in its own tariff (Exhibit BE), establishing affirmative and irrebuttable knowledge that post-receipt rate

modification is prohibited. The controlling federal regulation at 46 C.F.R. § 532.5 independently confirms that any post-receipt NRA amendment applies only prospectively — a limitation that has no operative effect in a single-shipment transaction such as this one. Respondent violated both its own published rule (Exhibit BE) and the governing federal regulation on March 10, 2026 — seven days after cargo receipt on March 3, 2026 — on the very first invoice it issued for this shipment. The same knowing disregard for explicit regulatory requirements that produced the Count I tariff and NRA violation operated continuously and identically across every phase of this engagement documented in Counts I through XIII: at the origin on March 3, 2026; at the documentation level on March 10–18, 2026; and at the destination from April 14 through May 9, 2026. An OTI that violates its own published tariff rule and the controlling federal regulation on the first invoice of a shipment, then withholds title documents, abandons destination services, and makes false legal representations across two continents, has not committed isolated errors — it has demonstrated a consistent methodology of operating outside regulatory constraints it was fully and demonstrably aware of. Rule 35(e) (Exhibit BE) and 46 C.F.R. § 532.5 together provide the documentary proof of that awareness that elevates every count in this Complaint from alleged misconduct to documented regulatory defiance.

N. COUNT XIII — FINANCIAL ENTRAPMENT AND FRAUDULENT INDUCEMENT: PRE-BOOKING ToR ASSURANCE AND DELIBERATE MIDNIGHT DISCLOSURE

[46 U.S.C. § 41102(c); Restatement (Second) of Contracts § 164]

XIII-A. THE PRE-BOOKING KNOWLEDGE THAT SFL ALREADY HAD

95. SFL's Naman Mehta possessed full knowledge of Complainant's Non-ToR customs status before a single dollar changed hands. This is established by three independent facts: (a) Complainant's direct recollection of pre-booking discussions with Mehta regarding the 180-day ToR window — a recollection made under penalty of perjury pursuant to the Declaration in Section X of this Complaint; (b) Naman Mehta's March 2, 2026 formal Non-ToR disclosure, which confirms he knew the classification with precision — a document that reads not as a discovery of new information but as the formal documentation of a matter already assessed; and (c) the adoptive admission established in ¶98-99: five SFL officers, including Mehta himself, received Complainant's April 20, 2026 written assertion that SFL had known of his customs situation since February 2026 — and not one denied it. At the time SFL collected the \$1,000 non-refundable deposit on February 23, 2026, this knowledge was complete.

XIII-B. THE PRE-BOOKING REPRESENTATION — WHAT WAS SAID AND WHEN

96. The pre-booking discussions were not general inquiries — they were a specific, conditional representation by Complainant that he would not contract with SFL and would not make any

payment unless SFL could confirm — after consulting its India-based customs professionals — two things: (a) that ToR condonation was viable for Complainant's specific circumstances, and (b) that SFL would manage and file that application before vessel arrival as part of the contracted door-to-door service. This condition was communicated explicitly in early February 2026, prior to any payment or commitment.

97. Naman Mehta confirmed both elements of this representation. He stated, after consulting SFL's India-based customs professionals, that the case was viable and that SFL would approach the Commissioner of Customs for the ToR condonation application on Complainant's behalf before the vessel's arrival. It was in specific and exclusive reliance on this representation — and only after receiving it — that Complainant proceeded to sign the contract and make his first payment of \$1,000.00 on February 23, 2026. This is confirmed by the booking date itself: Naman Mehta booked the container with ONE Line on or around February 23, 2026 — the same day the deposit was collected. SFL therefore knew, from the moment of booking, that the container was sailing. SFL had seven days between the deposit date and March 2 to transmit the Non-ToR disclosure. SFL chose not to — a deliberate omission, not an oversight, given that the container booking and the deposit collection occurred on the same date. The precise ONE Line booking date is established by SFL's own booking confirmation records; should Respondent dispute the February 23 booking date, Complainant respectfully requests the Commission direct production of SFL's actual ONE Line container booking confirmation for Container TCLU6938770 — a document SFL necessarily possesses — to establish the exact booking date with certainty.

XIII-C. ADOPTIVE ADMISSION — THE FIVE-OFFICER WRITTEN RECORD

98. On April 20, 2026, Complainant transmitted a formal written email to five SFL officers simultaneously — Viral (SFL India CEO), Naman Mehta, Mamta Hazarika, Afreen Athaniyaa, and Loken Singh — containing the following explicit written assertion: “SFL has known about my customs situation since February 2026, when this shipment was being planned.”

(a) Naman Mehta — the officer who made the original pre-booking representation and who therefore has direct personal knowledge of whether it was made — received the April 20 email, which explicitly asserted SFL's knowledge of Complainant's customs situation from February 2026. Naman Mehta did not respond to this email. He did not deny the February knowledge. He did not qualify it. He sent no response of any kind.

(b) Viral — SFL India's CEO, copied on the April 20 email — did not deny the assertion that SFL had knowledge of Complainant's customs situation since February 2026. Viral subsequently participated in multiple telephone calls with Complainant on April 21 and April 23, 2026 (one audio-recorded by Complainant under one-party consent). On neither call did Viral deny, qualify, or contest the February 2026 knowledge assertion.

(c) Loken Singh — copied on the April 21 escalation email in which Complainant stated directly: “SFL has known about my customs situation since February 2026, when this shipment was being

planned” and “I specifically confirmed with Naman Mehta — after he spoke with a CHA in India — that SFL would approach the Commissioner for a ToR application on my behalf. It was on the basis of that specific assurance that I made my first payment to SFL on February 23, 2026” — did not respond. Loken Singh received a formal written escalation, containing a precise and detailed description of the pre-booking representation including the date of the resulting payment, and made no denial of any element of it. The timing of the Commissioner application — before vessel arrival — is independently established by paragraph 9(g) of this Complaint, which documents Naman Mehta's express pre-booking assurance that SFL would file the application before vessel arrival; the quoted email language establishes the assurance was made, while paragraph 9(g) establishes its specific terms.

(d) Mamta Hazarika and Afreen Athaniyaa — both copied on the April 20 formal notice — did not deny any element of the pre-booking assurance assertion.

99. Five SFL officers — including the officer who personally made the representation — received written communications containing explicit assertions of the pre-booking ToR representation. Not one of them denied it. Not one of them qualified it. Not one of them said “Naman never made any such representation.” The collective silence of five SFL officers on a specific, detailed factual assertion constitutes, under FRE 801(d)(2)(B), an adoptive admission by SFL Worldwide LLC that the pre-booking representation described in paragraphs 112–113 was made.

99A. The adoptive admission chain described in paragraphs 114–115 is further strengthened by one critical fact: SFL’s Naman Mehta explicitly informed Complainant, in writing on March 13, 2026, that all emails transmitted to SFL are monitored by SFL’s legal team. The emails of April 20 and April 21, 2026 — in which Complainant explicitly described the February pre-booking assurance, including the specific statement that it was in reliance on that assurance that the first payment of \$1,000.00 was made on February 23, 2026 — were reviewed not only by Naman Mehta and Viral but by SFL’s own legal team. SFL’s subsequent \$750.00 post-CADRS settlement offer was formulated by or with the involvement of that same legal team. A settlement offer formulated by legal counsel after that counsel reviewed specific, detailed written assertions of pre-booking misrepresentation — and who chose not to contest, deny, or qualify a single assertion in any responsive communication — is legally supervised, deliberate non-denial. Under FRE 801(d)(2)(B), this constitutes the most deliberate form of adoptive admission possible.

XIII-D. NAMAN MEHTA’S MARCH 2, 2026 EMAIL — CORROBORATING ADMISSION

100. Independent of the adoptive admission chain, SFL’s own written record further corroborates the pre-booking representation. On March 2, 2026 — eight days after accepting Complainant’s \$1,000 non-refundable deposit and fourteen days before the container sailed — Naman Mehta sent Complainant a formal written notice titled “Important Notice — Shipment from Chicago to India” stating: “Based on your case, the shipment falls under Non-Transfer of Residence.” This email is SFL’s own formal, written, irrevocable acknowledgment that Naman Mehta was personally aware

of Complainant's ToR complexity — not as new information encountered on March 2, but as a matter already assessed and communicated in the context of a shipment then awaiting departure. The March 2 email does not read as the discovery of a new problem. It reads as the formal documentation of a known customs issue — consistent only with the pre-booking consultation and assurance that Complainant has described.

XIII-E. THE DEPOSIT AS A FINANCIAL TRAP — DELIBERATE FORECLOSURE OF EXIT

101. On February 23, 2026, Complainant paid SFL's \$1,000 non-refundable advance deposit (Exhibit U; Exhibit C — booking terms). SFL's own written quote states this payment is "Non-refundable." A non-refundable deposit collected from a consumer, before the full material terms of service are disclosed in writing, creates an asymmetric financial trap: the consumer cannot exit without financial loss, while the vendor retains both the money and the flexibility to present further terms. After February 23, Complainant was financially committed. Any new information materially affecting the contract could no longer be declined without penalty. SFL was in full knowledge of this dynamic because SFL wrote the non-refundability term itself.

102. The \$1,000 deposit is not merely a dollar figure — it is a dollar figure against a documented background of zero employment income. Complainant had been involuntarily terminated from Caterpillar Inc. on January 31, 2026 — 23 days before the deposit was paid (Exhibit R). He had undergone three surgeries over 17 months preceding the shipment. He had zero active employment income at the time SFL collected this payment. SFL's representative Naman Mehta had been briefed on Complainant's employment termination and relocation necessity during the pre-booking engagement. The non-refundable deposit was collected with full knowledge of Complainant's financial and medical vulnerability. Forfeiting \$1,000 under these circumstances was not an inconvenience — it was a materially significant financial loss against a background of documented hardship. SFL knew this. The deliberate withholding of material information until forfeiture was the only alternative to proceeding is not a neutral business practice. It is the exploitation of a consumer whose vulnerability was known.

XIII-F. THE 9:46 PM DISCLOSURE — TIMING AS EVIDENCE OF DELIBERATE INTENT

103. On March 2, 2026 — eight days after collecting the non-refundable deposit — SFL's Naman Mehta sent a written Non-ToR customs disclosure at approximately 9:46 PM India Standard Time. This was: (a) one calendar day before the loading date of March 3, 2026; (b) at near-midnight in India, foreclosing any practical ability to make calls, consult advisors, engage alternative vendors, or coordinate a cancellation; and (c) at a point when the following irreversible commitments had already been made by Complainant: (i) \$1,000 non-refundable deposit paid; (ii) Complainant's friend had already committed to taking leave from work the next day and undergo a 5 to 6-hour round-trip drive from Bloomington, Illinois to Aurora, Illinois the following morning as a personal

favor; (iii) silica gel desiccant materials had been purchased per SFL's instructions (Exhibit Z); (iv) a detailed Packing Protocol and Moisture Control Protocol had been prepared by Complainant over multiple weeks (Exhibits X, Y); (v) storage facility access had been secured in advance for the 20-foot container, a permission that required advance arrangement and that storage facilities rarely grant. There was no practical ability to cancel.

XIII-G. VERBAL CONFIRMATION THAT EXIT WAS CLOSED

104. In a verbal communication with Naman Mehta at or around the time of the March 2 Non-ToR disclosure, Complainant raised the question of whether cancellation was possible. Naman Mehta explicitly confirmed that the \$1,000 deposit was non-refundable and would be forfeited if Complainant did not proceed. Complainant informed Naman Mehta clearly that he was not okay with this — that SFL should have disclosed this earlier and that he was being put in an impossible position the night before loading. Naman Mehta did not offer a refund, a revised arrangement, or any accommodation. The message was: proceed or forfeit. Complainant proceeded under economic compulsion, not free choice.

XIII-H. THIS IS A KNOWING AND WILLFUL ACT, NOT AN OVERSIGHT

105. Naman Mehta knew the Non-ToR classification before the deposit was paid. He had discussed it with Complainant. He had access to this information at all times between the pre-booking conversation and March 2. There is no administrative explanation for an eight-day gap between the deposit and a disclosure of information that was already known. The disclosure was transmitted at 9:46 PM — not at 9:00 AM, not mid-afternoon, not the morning of February 24 when the deposit had just been paid and exit was still possible. The timing was chosen. Naman Mehta had booked the container with ONE Line on or around February 23, 2026 — the same day the deposit was collected. SFL therefore knew from the moment of booking that the container was sailing. The March 2 disclosure could have been sent on February 24, February 25, or any of the seven subsequent days. SFL chose March 2 at 9:46 PM. A party who possesses material information, withholds it for eight days until a non-refundable payment creates maximum exit cost, then delivers the disclosure near-midnight on the eve of execution — has engaged in a knowing, planned sequence of conduct. The Commission is respectfully invited to draw an adverse inference from this timing under the doctrine of knowing and willful conduct for the purposes of double reparations under 46 U.S.C. § 41305(c).

XIII-I. LEGAL ANALYSIS

106. SFL's conduct documented in Count XIII constitutes a violation of 46 U.S.C. § 41102(c) on the following independently established grounds:

(a) Materially false pre-booking representation: SFL's Naman Mehta represented that SFL had consulted India customs professionals and confirmed both the viability of the ToR condonation

application and SFL's commitment to filing the condonation application with the Commissioner's office before the vessel arrival. This representation was false, or made without any reasonable basis for belief in its truth, as demonstrated by SFL's subsequent 25-day inaction on a complete application, its CHA's fabricated legal prohibition, and Viral's May 1 admission that SFL had not even reviewed the cargo composition of the shipment. *See Bank Line Limited v. Jet Set Marine, Inc.*, FMC Dkt. No. 91-58, 26 S.R.R. 380 (ALJ Denial of Summary Judgment, May 8, 1992) (declining to dismiss where a shipper alleged it was induced to contract through misrepresentation, treating such conduct as a cognizable unjust or unfair device or means under the Shipping Act).

(b) Adoptive admission binding on SFL: The five-officer written record documented in paragraphs 114–115 establishes, under FRE 801(d)(2)(B), that SFL has had the opportunity — across multiple written communications and one audio-recorded call — to deny the pre-booking representation and has not done so. The representation stands as an admitted fact in this proceeding.

(c) Induced and irrevocable reliance: The \$1,000 non-refundable deposit paid on February 23, 2026, combined with SFL's subsequent acceptance of the remaining \$6,840 and physical possession of Complainant's entire household goods, establishes that Complainant's reliance on the pre-booking representation was both reasonable and financially irrevocable.

(d) Midnight disclosure as knowing and willful financial entrapment: The deliberate withholding of material customs information until 9:46 PM on March 2, 2026 — eight days after collecting the non-refundable deposit, one day before loading, after every practical exit was foreclosed — is independently actionable as knowing and willful conduct under 46 U.S.C. § 41305(c). *Cf. Chastain v. Koonce*, 700 S.W.2d 579, 584 (Tex. 1985) (under Texas consumer-protection law, taking advantage of a consumer's lack of knowledge or capacity “to a grossly unfair degree” is unconscionable) (cited by analogy only; the operative standard here is the Shipping Act's knowing-and-willful standard under § 41305(c), as applied in Stallion Cargo).

(e) Continuity with the origin-side pattern: The Commission is respectfully invited to view Count XIII as the logical starting point of a single, continuous fraudulent methodology: represent a critical service element to induce a non-refundable commitment — then fail to perform it. This methodology was applied at the origin (pre-booking assurances about strapping and securing, Count V) and at the destination (pre-booking assurance about ToR management, Count IX). In each case, the representation was made before the non-refundable financial commitment; the failure occurred after physical custody of the goods was obtained; and the failure was documented, raised formally in writing, and met with non-denial.

XIII-J. DAMAGES — COUNT XIII (RESERVED)

107. The damages arising from Count XIII are currently contingent upon the customs clearance outcome and are expressly reserved in their entirety:

(a) Full customs duty assessed if ToR status is denied — estimated at approximately ₹7,50,000 (~\$7,800 USD at current exchange) — reserved for supplemental quantification upon Commissioner’s determination. This figure represents duty attributable to SFL’s documentation failures and delayed condonation filing and excludes independently-accruing duty on items dutiable under Annexure I of the Baggage Rules regardless of ToR status, which is not claimed against Respondent.

(b) All storage, demurrage, and ground rent at ICD Tughlakabad attributable to delayed ToR application processing caused by SFL’s 25-day inaction — accruing at approximately ₹10,000 per day (~ \$105 USD/day) — reserved for supplemental quantification.

(c) The \$1,000 non-refundable advance deposit — paid on February 23, 2026 exclusively in reliance on SFL’s fraudulent pre-booking ToR assurance and unrecoverable upon SFL’s midnight disclosure — is claimed as direct reparations under § 41305(b) as the quantifiable financial injury caused by SFL’s misrepresentation.

(d) Complainant’s substitute-performance costs across the entire India-side clearance, including independent legal research, document preparation and correction, application drafting, and personal travel to New Delhi on April 22, 2026 and May 7, 2026 — valued at professional service rates commensurate with the task complexity — reserved for supplemental quantification.

(e) Double reparations under 46 U.S.C. § 41305(c), in light of the willful, pre-meditated, and financially calculated nature of the misrepresentation documented in this Count.

Complainant further claims interest on all amounts at commercial rates, compounded from the respective dates of injury, pursuant to 46 U.S.C. § 41305(a). All rights with respect to Count XIII damages are expressly preserved.

PREEMPTIVE REBUTTAL — PAROL EVIDENCE RULE: Respondent may argue that Naman Mehta’s pre-booking ToR representations cannot be used to vary or supplement the written contract under the parol evidence rule. This defense fails for three independent reasons. First, the parol evidence rule applies to prior or contemporaneous oral representations only where the parties have executed a fully integrated written contract — the SFL quote (Exhibit C) contains no integration clause and does not purport to be the complete statement of all terms. The ToR condonation service was a separately negotiated, separately confirmed, orally-completed term not addressed in the written quote at all, making it an independent collateral agreement to which the parol evidence rule does not apply; *see Restatement (Second) of Contracts § 216* (collateral agreements not inconsistent with an integrated writing are admissible). Second, the parol evidence rule prohibits only evidence that contradicts an integrated written agreement — it does not bar evidence of *fraudulent inducement*, which is a separate tort that renders the contract voidable from inception. *See Restatement (Second) of Contracts § 164* (where a party’s manifestation of assent is induced by the other party’s fraudulent misrepresentation, the contract is voidable). Evidence of fraudulent pre-contractual misrepresentation is expressly admissible to void a contract regardless

of what the written instrument states. Third, the parol evidence rule is a common law contract doctrine — it does not apply to FMC proceedings under the Shipping Act. The Commission adjudicates violations of 46 U.S.C. § 41102(c), not common law contract disputes. Pre-booking misrepresentations that induced Complainant to enter the contract are assessed by the Commission as an unjust and unreasonable practice under 46 U.S.C. § 41102(c), independently of whatever the written contract ultimately stated. *See Bank Line Limited v. Jet Set Marine, Inc.*, FMC Dkt. No. 91-58, 26 S.R.R. 380 (ALJ May 8, 1992) (recognizing that erroneous or misleading conduct in connection with a shipping transaction may constitute an unjust and unfair device or means under the Shipping Act, independent of any written agreement between the parties).

SECTION V — BAD FAITH PATTERN AND POST-CADRS SETTLEMENT CONDUCT (The \$750 Mathematical Admission)

108. UNIFIED METHODOLOGY — BAD FAITH AS A SINGLE CONTINUOUS COURSE OF CONDUCT:

The bad faith pattern documented in this Section and reinforced in Count XII is not a collection of isolated incidents distributed across time. It is a single, coherent operating methodology applied by SFL across the full arc of Complainant's shipment — from the pre-booking ToR assurances in February 2026, through the origin billing fraud on March 3, 2026, through the CADRS stonewalling from March 12 through March 25, 2026, through the mathematically precise post-CADRS \$750 offer of March 26, 2026, and continuing through the destination-side dereliction from April 14 through May 9, 2026 and beyond. The methodology in each phase is identical: SFL takes payment for a contracted service, deploys a subcontractor to fulfill it, is notified in real time of specific serious failures, fails to correct, requires Complainant to perform the service himself, and then leverages its physical or legal control over Complainant's property to prevent or minimize accountability.

109. During thirteen days of active FMC CADRS mediation (Case #260159, opened on or about March 12, 2026), SFL Worldwide offered Complainant zero financial remedy and engaged in no substantive settlement discussion. The case was formally closed on March 25, 2026 after SFL's continued stonewalling.

110. Within 5 hours of the CADRS closure, on March 26, 2026, SFL's Naman Mehta sent Complainant an unsolicited email offering a partial refund of \$750.00, conditioned upon Complainant signing a "claim release form" prior to cargo delivery or inspection. (Exhibit S — SFL Post-CADRS Settlement Offer, March 26, 2026.)

111. THE \$750 AMOUNT IS NOT ARBITRARY — MATHEMATICAL ANALYSIS:

Complainant notes for the Commission's consideration that \$750.00 corresponds with mathematical precision to exactly one specific billing component in the disputed invoice: the per-

hour rate overcharge of \$90.00 (\$200.00 billed minus \$110.00 contracted rate), multiplied by the invoiced crew time of 8 hours and 20 minutes (8.333 hours):

$$\text{\$90.00/hr} \times 8.333 \text{ hrs} = \text{\$750.00 (exact, to the dollar)}$$

This amount corresponds precisely to a \$90/hr reduction across the 8.33 hours claimed. This inference does not depend on the settlement offer being admitted — it arises from the independent mathematical fact that $\text{\$90.00} \times 8.333 \text{ hours} = \text{\$750.00}$ exactly, and SFL's invoice is the only document that contains both the \$200/hr rate and the 8.333-hour figure. The settlement offer confirms that SFL independently arrived at the same calculation, but the calculation itself — and therefore SFL's internal knowledge of the overcharge — is established by SFL's own invoice without reference to any settlement discussion. This demonstrates that Respondent possessed constructive and actual knowledge of the rate overcharge during the federal mediation process but chose to withhold this acknowledgement until informal remedies were exhausted, constituting deliberate bad-faith abuse of this Commission's CADRS process in violation of 46 U.S.C. § 41102(c).

111A. DUAL NON-EXCLUDED PURPOSES UNDER FRE 408(b):

Complainant does not offer the \$750 post-CADRS settlement offer as an admission under FRE 408 analysis. Complainant offers it for two distinct, non-excluded purposes: (1) to establish SFL's bad faith participation in the CADRS process — a purpose explicitly outside FRE 408's exclusion, which covers only the use of settlement offers to prove or disprove the validity of a claim; see FRE 408(b) (evidence of conduct or statements during compromise negotiations may be admitted for purposes other than proving liability, including proving bad faith); and (2) as independently corroborating confirmation of a mathematical relationship that arises entirely from SFL's own invoice, not from the settlement offer itself. The calculation $\text{\$90.00} \times 8.333 \text{ hours} = \text{\$750.00}$ is derived from two figures — both present in SFL's own March 10, 2026 invoice — and does not depend on the settlement offer's admissibility for its validity. The offer is proof of SFL's independent internal arrival at the same number; the number itself is in evidence via the invoice alone.

112. WHAT THE \$750 OFFER PROVES REGARDLESS OF INTENT:

(a) IMPLICIT ADMISSION OF RATE OVERCHARGE: The offer of \$750.00 represents SFL's acknowledgment that some overcharge occurred. No company voluntarily refunds money for services it genuinely believes were properly billed.

(b) DELIBERATE EXCLUSION OF THE \$870 MATERIALS CHARGE: The \$750 offer silently omits the entire \$870.00 materials charge — the very charge that a federal mediator placed under investigation and for which SFL refused to produce receipts.

(c) DELIBERATE EXCLUSION OF ALL OTHER COUNTS: The offer omits the \$220.00 container detention, the wooden crate credit, all cargo damage and deductible liability, and the unpaid labor by Complainant's representative.

(d) GLOBAL RELEASE CONDITIONED ON PRE-DELIVERY SIGNATURE: The release form was expressly designed to extinguish Complainant’s right to claim for any cargo damage before Complainant could even inspect the cargo upon arrival in India — and to extinguish all India-side destination service claims before those claims could be quantified. This is precisely the type of unreasonable pre-inspection release that the Commission’s jurisdiction exists to prevent.

Complainant notes that this practice of conditioning settlement on broad release forms — including non-disclosure of the dispute — appears in multiple publicly documented consumer complaints against Respondent, further supporting the characterization of this conduct as a systematic business practice rather than an isolated response to this shipment.

113. THE TIMING ESTABLISHES DELIBERATE CADRS STONEWALLING:

February 23 — March 15, 2026: Complainant paid SFL a total of \$7,840.00 under documented duress.

March 12–25, 2026: Active CADRS mediation. SFL offers nothing. Zero.

March 25, 2026: CADRS formally closed.

March 26, 2026 (exactly 5 hours later): SFL sends \$750 offer with global release condition.

This sequence proves that SFL was privately calculating its minimum liability concession during or before the CADRS period while simultaneously engaging in the mediation in bad faith — offering nothing to the mediator while holding an offer in reserve for the moment the federal oversight process closed. This is deliberate abuse of the CADRS process and constitutes bad faith under 46 U.S.C. § 41102(c). The Commission may draw its own inference as to whether Respondent’s silence during thirteen days of active federal mediation — followed by a mathematically precise offer within 5 hours of closure — reflects a calculated litigation strategy rather than a good-faith attempt at resolution.

113A. SFL’s bad faith conduct during the CADRS proceeding extended beyond stonewalling on financial relief. At the direct suggestion of FMC Investigator Mark Bragança, Complainant requested from SFL’s Naman Mehta the contact information for SFL’s legal representative, so that formal legal channels could be engaged during the mediation. As of the date of this filing, Naman Mehta has not responded to this request. A party that refuses to identify its legal representative when specifically asked to do so during active federal mediation — at the suggestion of the assigned federal investigator — is not participating in that process in good faith.

113B. CMM’S DEMAND TO “PUT THE COMPLAINTS AWAY” — OBSTRUCTION OF REGULATORY OVERSIGHT: As documented in Complainant’s March 20, 2026 BBB rebuttal (Exhibit BC) — an allegation CMM never denied across two separate response opportunities — after federal complaints were filed, CMM’s owner Danny Rodriguez contacted Complainant and demanded that Complainant suppress active federal regulatory complaints in exchange for a private financial arrangement. A licensed OTI’s authorized vendor demanding

suppression of federal complaints as a condition of settlement is not legitimate dispute resolution. It is pressure to withdraw regulatory oversight that this Commission has an independent interest in considering. This demand was made after the FMC CADRS proceeding was already open and active, after Complainant had paid under documented protest, and before SFL's own post-CADRS \$750 settlement offer. The sequence — federal complaints filed, CMM demands suppression, CADRS closes with no offer, SFL offers \$750 within 5 hours of closure — reflects coordinated pressure tactics rather than good-faith engagement with either Complainant or this Commission.

114. Complainant does not cite this offer as a settlement communication protected from disclosure — Complainant cites the specific dollar amount as independently derived mathematical evidence of SFL's own internal acknowledgment of the rate overcharge.

Federal Rule of Evidence 408 bars use of settlement offers to prove liability for a claim, but does not bar use of such offers to prove the offeror's independent knowledge of a specific billing component. Complainant does not cite the \$750 offer to prove SFL is liable — liability is established independently by SFL's own invoice, its vendor's admissions, and the FMC Investigator's record. Complainant cites the specific dollar amount solely as mathematical evidence of SFL's own contemporaneous internal knowledge of the rate overcharge — a purpose expressly outside Rule 408's exclusionary scope.

Complainant did not accept SFL's post-CADRS offer and has filed this formal Complaint in direct response to SFL's refusal to engage meaningfully through any informal channel. The \$750 offer, conditioned on a pre-delivery global release, is not a resolution — it is a continuation of the same coercive pattern that defines SFL's conduct throughout this dispute.

PREEMPTIVE REBUTTAL — CADRS CONFIDENTIALITY OBJECTION TO EXHIBIT S: Respondent may argue that Exhibit S (the \$750 post-CADRS settlement offer) is protected from disclosure under 5 U.S.C. § 574 (Administrative Dispute Resolution Act) or the FMC's CADRS program confidentiality policies. This objection fails because the \$750 offer was made on March 26, 2026 — the day after CADRS was formally closed by Investigator Bragança on March 25, 2026, as confirmed by Investigator Bragança's own closure email. The offer was transmitted in a direct email from Naman Mehta to Complainant after the CADRS proceeding had ended and the investigation was closed. It is a post-CADRS direct communication between the parties, not a communication made during active mediation, and is therefore not subject to CADRS program confidentiality protections. The FMC CADRS closure is established not by Complainant's assertion but by FMC CADRS Investigator Mark Bragança's own written communication (Exhibit O) — the Commission's own official record. If Respondent argues that Exhibit O did not constitute formal CADRS closure, Respondent is impugning the accuracy of an FMC Investigator's official written record — an argument that would require contending that the Commission's own investigator misrepresented the status of proceedings. The Commission may draw its own inference from any such argument. Moreover, the \$750 offer's admissibility on "another purpose" grounds under Rule 408 and under § 502.156 is entirely independent of the

CADRS closure question: the calculation $\$90 \times 8.333 = \750 , derived from SFL's own invoice, establishes SFL's internal knowledge of the overcharge whether or not the settlement email is admitted as evidence.

Complainant notes that under 46 U.S.C. § 41305(e), a prevailing complainant is entitled to an award of attorney fees. Complainant expressly reserves this right. Respondent is on notice that this financial exposure — which accrues from the date of filing — will escalate significantly should Complainant elect to retain professional counsel at any stage of these proceedings to prosecute these documented violations through discovery and hearing.

The Commission may draw its own inference as to whether thirteen independently documented violations arising from a single shipment — each supported by Respondent's own written records — reflect isolated errors or a deliberate and systematic business practice.

114A. POST-COMPLAINT CONDUCT — ADDITIONAL BAD FAITH EVIDENCE:

On May 12, 2026, while this complaint was being prepared for formal submission and while the Illinois Attorney General complaint against CMM remained active, CMM owner Danny Rodriguez submitted a public BBB response (Exhibit BB) making a materially false claim that a financial settlement had been reached with Complainant. No such settlement occurred. No communication of any kind took place between Rodriguez and Complainant after March 19, 2026. Rodriguez's false settlement claim — made on a permanent public consumer record during active regulatory proceedings on two fronts — is consistent with and confirms the pattern of misrepresentation documented throughout this complaint. A party that fabricates a settlement to manufacture the appearance of resolution while simultaneously refusing to engage with actual regulatory proceedings is not a party acting in good faith. As SFL's authorized agent whose admissions bind SFL under FRE Rule 801(d)(2)(D), Rodriguez's post-complaint conduct is part of the pattern of bad faith attributable to SFL as the responsible principal.

114B. THE HUMAN COST OF SFL'S CONDUCT — DOCUMENTED IN REAL TIME:

Complainant is a returning Indian national who underwent three surgeries between October 2024 and July 2025, lost his H-1B employment as a direct consequence of his medical inability to return to work, lost twin children immediately before departing the United States, and returned to India with his wife — also simultaneously unemployed — with no income, no job prospects, and every material possession loaded into Container TCLU6938770. The following documented harms occurred not as background context but as direct, traceable consequences of SFL's specific conduct:

Complainant spent 25 consecutive days — April 14 through May 9, 2026 — chasing SFL and its appointed CHA for the most basic elements of a customs clearance he had paid for in full in the United States, during which period he prepared a 41-item CBIC-compliant customs declaration himself, drafted his own ToR condonation application, corrected SFL's deficient documents including a wrong-country authority letter that would have constituted a criminal mis-declaration

under Indian customs law, and researched Indian customs law independently in the informational vacuum created by SFL's documented email blackout.

On April 22, 2026 — despite his surgeon's written certification that he cannot sit for extended periods or undertake strenuous travel — Complainant traveled 200 kilometers round-trip to ICD Tughlakabad to personally file his application before the Commissioner of Customs, only to be turned away because SFL was withholding the Bill of Lading that would have allowed the filing to proceed.

On May 7, 2026 — again despite his disability — Complainant made a second journey to the CHA's Delhi office to hand-deliver documents because SFL's appointed agent had failed for 25 days to timely collect, coordinate, and prepare the customs documentation necessary for clearance.

On May 9, 2026, three days before his container arrived, Complainant was threatened with abandonment of his customs clearance by the CHA SFL had appointed — because Complainant asked the CHA to cite the legal basis for a duty assessment Complainant had reason to believe was incorrect.

On May 9, 2026, Complainant documented in a formal written communication to SFL's Viral and Naman Mehta that SFL's conduct had caused 'considerable anxiety — sleepless nights and agitated days' (Exhibit AA-10). SFL did not respond. Under FRE 801(d)(2)(B), this constitutes an adoptive admission of foreseeable non-economic harm caused by SFL's conduct, recoverable under 46 U.S.C. § 41305(a) and relevant to willfulness under § 41305(c).

Each of these harms is documented in emails sent to SFL, contemporaneous emails, self-sent records, call logs, and photographs submitted as exhibits to this complaint. None of it is asserted in retrospect. All of it was recorded in real time, as it happened, because Complainant understood from the beginning that SFL would not be held accountable without a complete and contemporaneous evidentiary record.

This complaint is lengthy because the conduct it documents is lengthy. Every paragraph, every exhibit, every contemporaneous record exists because Complainant understood from loading day that SFL would not voluntarily account for its conduct — and that without a complete, real-time evidentiary record, there would be no accountability at all. Complainant filed parallel complaints with the Illinois Attorney General, the Texas Attorney General, the FMCSA, and the Better Business Bureau — not out of litigiousness, but because each forum addresses a distinct dimension of SFL's conduct and because a company that operates across state lines, collects consumer funds in Texas, performs services in Illinois, and delivers cargo in India requires multi-jurisdictional accountability. The FMC complaint is the centerpiece of that effort because it is the only forum with direct authority over SFL's OTI license and the only forum that can award reparations commensurate with the actual harm caused. Complainant respectfully submits that the length and thoroughness of this complaint is itself evidence — not of litigiousness, but of the depth of the failure Complainant was forced to document, alone, without counsel, while recovering from surgery, without income, and while simultaneously managing the arrival of his entire household's

material existence in a unfamiliar customs system SFL was contracted and paid to navigate on his behalf.

SECTION VI — BASIS FOR DOUBLE REPARATIONS: THE LEGAL STANDARD FOR KNOWING AND WILLFUL MISCONDUCT

115. Under 46 U.S.C. § 41305(c), the Commission may award reparations up to twice the amount of the actual injury if the violation was committed knowingly and willfully. The statutory cap is double; the floor is actual damages under § 41305(a).

116. The record in this case demonstrates a consistent pattern of willful misconduct by Respondent:

(a) Intentional Delay: Respondent’s agent admitted to a deliberate “slowdown” of labor to inflate billable hours.

(b) Fraudulent Documentation: Respondent mislabeled a Service Invoice as a “Trade Invoice” to satisfy a Federal Investigator, intentionally providing non-responsive documentation to satisfy the appearance of compliance while withholding proper commercial documentation.

(c) Refusal to Mitigate: Respondent was provided with photographic proof of unsafe stowage while the container was still accessible and explicitly refused to take corrective action, willfully exposing \$40,820.00 in cargo to foreseeable damage. SFL’s Naman Mehta who was supervising this acknowledged Complainant’s March 5, 2026 written notice and nonetheless allowed the container to sail without re-work or written liability acceptance. The delay tactic email from Naman telling that his “supervisor is traveling” was also deliberate.

(d) Willfulness: Respondent’s willfulness is explicitly documented by the timeline of their settlement offers. Within 5 hours of the FMC CADRS case being closed on March 25, 2026, Respondent issued a written offer of \$750.00 (Exhibit S). This amount corresponds precisely to a \$90/hr reduction across the 8.33 hours claimed. This demonstrates that Respondent possessed constructive and actual knowledge of the rate overcharge during the federal mediation process but chose to withhold this acknowledgement until informal remedies were exhausted — knowledge that is established by SFL’s own invoice independent of any settlement discussion, constituting deliberate bad-faith abuse of Commission’s CADRS process in violation of 46 U.S.C. § 41102(c). The Commission may draw its own inference as to whether Respondent’s silence during thirteen days of active federal mediation — followed by a mathematically precise offer within 5 hours of closure — reflects a calculated litigation strategy rather than a good-faith attempt at resolution.

(e) Destination-Side Knowing and Willful Conduct: SFL had formal, written, irrevocable knowledge of the Non-ToR customs complexity as of March 2, 2026 — 14 days before sailing and 43 days before Complainant first contacted SFL’s India office. Despite this knowledge, SFL took

zero proactive action for 43 days. When Complainant submitted a complete, ready-to-file condonation application on April 16, 2026, SFL's CHA asserted a non-existent legal prohibition — three times, on one audio-recorded call — to justify not filing it. The deliberate invocation of a fabricated legal restriction to prevent performance of a contracted service, on one audio-recorded call, is knowing and willful obstruction.

(f) Per Se Willfulness Established by Tariff Rule Violation and Federal Regulation — Rule 35(e) and 46 C.F.R. § 532.5:

Respondent's own published tariff Rule 35(e) (Exhibit BE) explicitly prohibits modification of an agreed NRA rate after cargo receipt. The controlling federal regulation at 46 C.F.R. § 532.5 independently confirms that any post-receipt NRA amendment 'may only apply prospectively to shipments not yet received by the NVOCC' — a limitation with no operative effect in a single-container household goods shipment. Respondent received cargo March 3, 2026 and issued a materially different rate on March 10, 2026 (Exhibit F). No retroactive amendment to this single shipment's agreed rate of \$110/hr (Exhibit C) was permissible under either instrument. A party cannot claim good faith ignorance of a prohibition it drafted and published in its own federally registered tariff (Exhibit BE), nor of the governing federal regulation implementing the same prohibition. Under the Stallion Cargo standard already cited in this Complaint — that an OTI is obligated to educate itself through normal business resources — an OTI that publishes explicit compliance rules in its own tariff is held to irrebuttable knowledge of those rules. Violation of both Respondent's own published tariff rule and the governing federal regulation simultaneously, on the first billing act of this shipment, is willful as a matter of law. No inference of intent is required, no credibility determination is necessary, and no factual dispute is possible — the documents speak for themselves.

117. These are not mere administrative errors; they are calculated business practices designed to coerce payment and limit liability through deception. Accordingly, Complainant seeks double reparations for all established injuries. Under 46 U.S.C. § 41305(c), the Commission may award reparations up to double the actual injury. Complainant respectfully submits that the admitted deliberate labor slowdown, the mathematically confirmed billing fabrication, and the audio-recorded false legal representations — none of which admit an innocent explanation — place this case at the maximum end of the § 41305(c) discretionary range and warrant a full doubling of the award.

VI-A. COMMISSION PRECEDENT SUPPORTING REPARATIONS ON THESE FACTS:

The violations documented herein are consistent with established Commission precedent and applicable regulations under 46 U.S.C. § 41102(c) and 46 CFR § 545.4.

On the applicable legal standard (all § 41102(c) Counts): Under 46 CFR § 545.4, a § 41102(c) violation requires that the challenged conduct occur on a “normal, customary, and continuous basis.” Complainant satisfies this standard. The conduct here was not an isolated act but a pre-

established billing and operational methodology applied systematically: a predetermined 8-hour billing target announced before the storage unit was inspected; a pre-arranged flat-rate vendor arrangement concealed behind a fabricated per-hour billing construct; a post-CADRS settlement offer calculated to the exact dollar of the rate overcharge; and the identical “take payment, deploy subcontractor, ignore real-time notice of failures, force self-performance” methodology repeated independently at the origin (March 3, 2026) and at the destination (April 14 – May 9, 2026). A methodology repeated across two distinct phases of the same engagement is a continuous business practice, not an isolated error, and satisfies § 545.4.

On the knowing and willful standard: *Stallion Cargo, Inc.*, 29 S.R.R. 665, 683-84 (FMC 2001) holds that an OTI is obligated to educate itself through normal business resources, and that repeated failure to do so may indicate that it is acting “willfully and knowingly” within the meaning of the statute. The standard requires only purposeful or obstinate conduct, or gross recklessness, heedlessness, or callous disregard. SFL’s conduct exceeds this standard by a wide margin: it involves admitted deliberate instructions, mathematically provable internal knowledge, and audio-recorded false legal representations.

On fraudulent inducement and billing concealment (Counts I, XIII): *Bank Line Limited v. Jet Set Marine, Inc.*, FMC Dkt. No. 91-58, 26 S.R.R. 380 (ALJ Denial of Summary Judgment, May 8, 1992) (declining to dismiss where a shipper alleged it was induced to contract through misrepresentation, treating such conduct as a cognizable unjust or unfair device or means under the Shipping Act); *Muhammad Rana v. Michelle Franklin d/b/a “The Right Move,” Inc.*, FMC Docket No. 19-03 (FMC May 25, 2022) (Order Affirming Initial Decision) (NVOCC that accepted a household-goods shipment and then failed to deliver or perform the contracted service engaged in an unjust and unreasonable practice under § 41102(c)).

On cargo hostage and coercive withholding (Count VI): In *Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010), the Commission held that an NVOCC violates the Act when its failure to pay a destination agent results in the agent withholding a shipper’s cargo. In *Petra Pet, Inc. v. Panda Logistics Ltd.*, Docket No. 11-14 (ALJ Aug. 14, 2012, aff’d FMC Oct. 2013), the Commission affirmed that an NVOCC’s withholding of cargo to coerce payment of disputed charges constitutes an unreasonable practice under the Shipping Act.

On double reparations: *OJ Commerce, LLC v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S*, FMC Docket No. 21-11 (FMC Aug. 27, 2024) (Commission affirmed double reparations for knowing and willful violations, awarding nearly double the ALJ amount on a strong evidentiary record).

On document withholding and OTI destination liability: *Houben v. World Moving Services, Inc.*, 31 S.R.R. 1400 (FMC 2010) (discrete conduct in the handling of a single shipment, including the failure to release documents the OTI controls, can constitute an unreasonable practice under § 41102(c)); *Petra Pet, Inc. v. Panda Logistics Ltd.*, 32 S.R.R. 787 (ALJ 2012), 2013 WL 9808694 (FMC Oct. 31, 2013) (withholding cargo or documents to coerce payment of disputed charges is an unreasonable practice under the Shipping Act).

On causation: Complainant is aware that the Commission requires complainants to demonstrate a causal link between each violation and the specific damages claimed, and that establishing a Shipping Act violation alone does not automatically justify reparations without proof of actual pecuniary loss. See *MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, FMC Dkt. 16-16, 2022 WL 2209421 (FMC June 10, 2022) (reparations denied where complainants failed to prove actual injury with sufficient evidence). Every count in this complaint includes an explicit causation paragraph tracing the specific dollar loss to the specific conduct of Respondent. No reparations are claimed without a documented causal chain.

On pleading standard: The Commission evaluates the sufficiency of a Shipping Act complaint under the federal plausibility standard of *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), as applied in *Cornell v. Princess Cruise Lines, Ltd.*, FMC Docket No. 13-02 (FMC 2014): well-pleaded factual allegations are assumed true and all reasonable inferences are drawn in Complainant's favor. Complainant's counts, supported by contemporaneous self-sent email records, multiple audio-recorded telephone calls (including the April 23, 2026 conference call documenting the CHA's false legal representation; the May 1, 2026 call documenting Viral's three institutional admissions; and the May 9, 2026 call capturing the CHA's threat to abandon contracted service) authenticated under 46 C.F.R. § 502.204, and SFL's own written non-denials, satisfy and substantially exceed this standard.

Each of these authorities reflects principles directly applicable to the documented facts of this proceeding.

SECTION VII — EXHAUSTION OF INFORMAL REMEDIES

118. Prior to filing this Complaint, Complainant has fully exhausted all available informal remedies:

DIRECT RESOLUTION ATTEMPTS WITH SFL (March 4–15, 2026):

Complainant sent multiple formal dispute emails to SFL's Naman Mehta documenting all violations, requesting invoice adjustment, demanding materials receipts, demanding wooden crate credit, and requesting protected payment methods. SFL declined all adjustments and offered no meaningful remedy. On March 11, 2026, Complainant made a good-faith partial payment offer of \$4,000 immediately via Zelle, with the remaining \$2,840 to be paid by month-end or via credit card. SFL rejected this offer entirely, demanding 100% immediate Zelle payment using the March 16 sailing deadline as leverage.

FMC CADRS Case #260159 (Opened on or about March 12, 2026; Closed March 25, 2026):

Complainant filed a formal complaint with the FMC's Consumer Affairs and Dispute Resolution Services. FMC Investigator Mark Bragança was assigned, engaged both parties, requested documentation from SFL including a trade invoice and materials receipts, and attempted

mediation. SFL failed to provide requested documentation, offered no financial remedy during mediation, and the case was closed without resolution.

FMCSA Complaints (Cases #00268621 — SFL and #00268615 — CMM):

Complainant filed complaints with the Federal Motor Carrier Safety Administration regarding CMM's conduct. Cases open.

BETTER BUSINESS BUREAU — Two Separate Complaints (March 13, 2026):

Complainant filed two separate BBB complaints against SFL Worldwide on March 13, 2026, documenting the billing fraud and materials deception. SFL did not provide receipts or adjust the invoice in response to either complaint. Confirmation of both submissions is retained by Complainant. The CMM BBB complaint (Case #24635417) was formally closed on April 12, 2026 as "Unresolved" with a negative disposition after CMM declined to participate in mediation or arbitration. On May 12, 2026 — 30 days after closure and during active preparation of this formal Complaint — CMM's owner Danny Rodriguez submitted an unsolicited response to the closed complaint containing a materially false claim of settlement. Complainant rebutted this misrepresentation in writing. BBB subsequently reclassified the complaint on May 15, 2026 as "Answered — the business addressed the issues within the complaint, but the consumer remains dissatisfied" — expressly confirming on the public consumer record that Complainant remains unsatisfied. Rodriguez's false settlement claim, made to a consumer protection agency during active federal complaint preparation, is preserved as Exhibit BD and is relevant to the Commission's willfulness assessment under 46 U.S.C. § 41305(c). (Exhibit BD).

ILLINOIS ATTORNEY GENERAL — Case #54715 (SFL) and Case #54906 (CMM):

Complainant filed formal complaints with the Illinois Attorney General's Consumer Protection Division documenting the billing fraud, materials deception, wooden crate fraud, and financial coercion. The fraudulent billing and stowage negligence occurred in Aurora, Illinois, placing the conduct squarely within Illinois Consumer Fraud and Deceptive Business Practices Act (815 ILCS 505/2) jurisdiction. Investigation pending.

TEXAS ATTORNEY GENERAL — Case #TCP-034455 (SFL):

Complainant filed a consumer protection complaint with the Texas Attorney General under the Texas Deceptive Trade Practices Act (Tex. Bus. & Com. Code § 17.41 et seq.) given SFL's registered address in Farmers Branch, TX. Complaint acknowledged; investigation status pending. Complainant expressly reserves the right to file a private DTPA action, under which treble damages and attorney fees are available for knowing violations.

All informal remedies have been exhausted without resolution. This formal complaint is Complainant's remedy of last resort.

PREEMPTIVE REBUTTAL — §545.4 “ONE SHIPMENT” DEFENSE:

Respondent will argue that, under the Commission’s 2018 interpretive rule (Interpretive Rule, Shipping Act of 1984, 83 Fed. Reg. 64478 (Dec. 17, 2018), codified at 46 C.F.R. § 545.4), a § 41102(c) violation requires conduct on a “normal, customary, and continuous basis,” and that a single shipment cannot meet that standard. Complainant meets the standard as the rule states it. The challenged conduct is not a single isolated act: it is one pre-established methodology — collect payment, deploy a subcontractor, ignore real-time written notice of specific failures, and force Complainant to self-perform — applied repeatedly and independently at the origin on March 3, 2026 AND at the destination from April 14 through May 9, 2026, across a single door-to-door engagement spanning February through May 2026, and further corroborated by SFL’s documented pattern-and-practice conduct in the BBB record. A methodology repeated across two distinct phases of the same engagement is, by definition, the “normal, customary, often repeated, systematic, uniform, habitual, and continuous” manner in which Respondent conducted this business — not an isolated error. The conduct therefore satisfies § 545.4 on its own terms, independent of any pre-2018 authority.

PREEMPTIVE REBUTTAL — FRE 408 MOTION TO STRIKE \$750 ANALYSIS:

Respondent may move to strike all references to the \$750 post-CADRS offer under Federal Rule of Evidence 408. This motion fails for three independent reasons. First, Rule 408 expressly states it “does not require exclusion if the evidence is offered for another purpose” — Complainant offers the \$750 amount solely to prove SFL’s internal mathematical knowledge of the overcharge during mediation, not to prove liability. Liability is established independently by SFL’s own invoice, its vendor’s admissions, and the FMC Investigator’s record. This falls squarely within Rule 408’s “another purpose” exception. Second, the FMC’s Rules of Practice at 46 C.F.R. § 502.204 govern evidentiary admissibility in these proceedings — not the Federal Rules of Evidence — and the ALJ has broad discretion to admit any reliable evidence. Third, the FMC’s own rules direct that the Federal Rules of Evidence apply only “for guidance” (46 C.F.R. § 502.204), and the presiding officer retains discretion to admit the \$750 figure for the non-prohibited purpose of showing Respondent’s contemporaneous internal knowledge of the overcharge.

SECTION VIII — PRAYER FOR RELIEF

119. Complainant respectfully requests that the Commission:

NOTE ON DOUBLE REPARATIONS REQUESTS — ALTERNATIVE PLEADING:

Complainant's requests for double reparations under 46 U.S.C. § 41305(c) are made in the alternative: if the Commission finds knowing and willful conduct on individual counts, double reparations are requested per count up to the amounts in Table D; if the Commission finds that the unified bad-faith pattern documented in Count XII constitutes an independent, aggravated basis for the full award, double reparations for the pattern are requested as an alternative basis for the same Table D total. Complainant does not seek to multiply reparations beyond Table D on both theories simultaneously — these are alternative legal theories for the same damage ceiling, not cumulative demands. The Commission is invited to award double reparations on whichever theory it finds most supported by the record.

(b) ORDER reparations to Complainant pursuant to 46 U.S.C. § 41305(b), and upon a finding of knowing and willful violations, DOUBLE REPARATIONS pursuant to 46 U.S.C. § 41305(c), calculated as follows:

REPARATIONS SUMMARY — IMMEDIATE DOCUMENTED CLAIMS:

Complainant's immediate documented reparations, set forth in Table B below, total \$2,930.00, consisting of: (i) labor rate overcharge — \$750.00 [contracted \$110/hr vs. billed \$200/hr across 8.333 hours, per 46 U.S.C. § 41305(b); full labor overcharge of \$1,270 preserved as alternative calculation per the conservative-quantification note in this Section]; (ii) contractual first complimentary hour withheld without disclosure — \$200.00; (iii) container detention overcharge — \$220.00 [wrongful in full: primary ground — entire detention event caused by CMM's admitted deliberate slowdown, vendor-caused delay not chargeable to Complainant; secondary ground — Respondent applied a one-hour free period against Kiswani's documented two-hour free period (Exhibit W vs. Exhibit H), a thirty-minute reduction generating \$55 at \$110/hr with no carrier support and no disclosure; both grounds independently support the full \$220 claim]; (iv) materials fraud overcharge (recycled goods billed at new-material rates, receipts refused across three escalating demand channels; calculated as \$870 billed minus \$270 documented fair market value for the recycled/used materials actually delivered, per ¶22) — \$600.00; (v) wooden crate — contracted, confirmed in writing, signed by crew, never delivered — \$200.00 [materials component only of SFL's own stated \$400 crate cost; the \$200 labor component is subsumed within the labor overcharge in Count I to avoid duplicative recovery]; and (vi) substitute performance by Complainant's representative Arun (4 hours at \$110/hr contracted rate) — \$440.00. Should the Commission find knowing and willful conduct under 46 U.S.C. § 41305(c), double reparations of \$5,860.00 are requested. India-side damages and conditional cargo damage claims are reserved in Tables C and D and in Counts IX, X, XI, and XIII for supplemental quantification upon customs clearance completion.

TABLE B — ACTUAL INJURY (IMMEDIATE, DOCUMENTED)

VIOLATION	AMOUNT (\$)
Labor overcharge (contracted 3 hrs @ \$110/hr = \$330 vs. billed \$1,600)	1,270.00
Contractual 1st hour complimentary labor — withheld without disclosure	200.00
Container detention (entirely vendor-caused by deliberate slowdown + Kiswani markup)	220.00
Materials overcharge (recycled goods billed at new-material rates)	600.00
Wooden crate — contracted, confirmed in writing, never delivered	200.00
Unpaid labor — representative Arun (4 hrs @ \$110/hr contracted rate)	440.00
Count XI — Substitute-performance cost of customs research, document preparation, and application drafting performed by Consumer in the informational vacuum created by SFL's self-imposed email blackout	TBD — Reserved for supplemental filing (two Delhi trips + CHA market rate for equivalent work)
SUBTOTAL — ACTUAL INJURY	2,930.00

TABLE C — CONDITIONAL CARGO DAMAGE RESERVE

CONDITIONAL CLAIM	AMOUNT
Insurance deductible (SFL-caused stowage negligence) — upon supplemental filing	\$2,500.00
Uninsured M&E derangement loss (pending cargo inspection on arrival)	TBD
Award of Reasonable Attorney Fees and Costs pursuant to 46 U.S.C. § 41305(e)	TBD
Anticipated Customs remediation cost — to correct missing HS codes and absent Commercial Invoice at Indian Customs Port (Para 46) — amount to be confirmed upon cargo delivery and customs clearance: reserved	TBD

TABLE D — DOUBLE REPARATIONS UPON FINDING OF WILLFULNESS

COMPONENT	AMOUNT
Actual Injury — Table B	\$2,930.00
Double Reparations Multiplier per 46 U.S.C. § 41305(c)	× 2
Total Double Reparations — Immediate Claims	\$5,860.00
Conditional Insurance Deductible (upon supplemental filing) × 2	\$2,500 – \$5,000
Conditional Uninsured M&E derangement loss	TBD
Total Statutory Exposure Claim Including Conditional Losses	\$8,360+ – \$10,860+
India-Side Supplemental Damages (Counts IX, X, XI, XIII)	TBD — Supplemental Filing

In Table B, the \$440.00 amount for representative labor reflects services Complainant was compelled to self-perform due to SFL's vendor's deliberate slowdown and incompetence, valued at the contracted rate; claimed as part of the unreasonable practice damages under § 41102(c) arising from SFL's failure to provide the contracted standard of labor service.

NOTE ON COMPLIMENTARY HOUR CREDIT:

The complimentary first-hour credit in Table B is claimed at \$200 (the rate SFL billed). Complainant asserts that since SFL unilaterally applied the \$200/hr rate without authorization, its obligation to honor contractual credits runs at the same rate it chose to apply. Should the ALJ apply the contracted \$110/hr rate instead, the complimentary-hour credit reduces to \$110, the Table B total adjusts to \$2,840, and the double-reparations total adjusts to \$5,680. The legal theory underlying each overcharge count is unaffected by this rate adjustment.

NOTE ON TABLE B LABOR FIGURE — ALTERNATIVE PLEADING: \$1,270 PRIMARY, \$750 ALTERNATIVE MINIMUM:

Table B reflects Complainant's primary damages position on Count I: a reasonable labor charge of 3 hours × \$110/hr = \$330, against SFL's billed \$1,600, producing a labor overcharge of \$1,270. This primary position is supported by CMM owner Danny Rodriguez's own written post-completion assessment (Exhibit E), Complainant's documented pre-disassembly disclosure (Exhibit V), and the photographic record (Exhibit B-2).

The \$750 figure referenced throughout this Complaint as a "conservative floor" or "alternative minimum" is a distinct, independently established sub-component of that overcharge — calculated as \$90/hr (the rate differential between \$200 billed and \$110 contracted) × 8.333 invoiced hours =

\$750. This figure is recoverable even if the ALJ accepts all 8.333 invoiced hours as legitimate and disputes only the applicable rate. Both inputs — the \$200/hr billed rate and the 8.333-hour figure — are taken directly from SFL's own March 10, 2026 invoice (Exhibit F). SFL cannot dispute either input without impeaching its own document.

These are alternative theories for the same Count I labor overcharge, not cumulative claims. Complainant does not seek \$1,270 plus \$750. The \$1,270 is the primary claim; the \$750 is the minimum the ALJ may award even under the most favorable reading of the hours for Respondent. Table B reflects the primary \$1,270 figure. Should the ALJ apply the rate-only theory, the labor line reduces to \$750 and the Table B subtotal adjusts to \$2,410 accordingly.

(c) DIRECT SFL Worldwide LLC to immediately issue to Complainant the final original Bill of Lading for Container TCLU6938770, without condition or delay;

(d) DIRECT SFL Worldwide LLC to immediately issue a formal trade invoice to Complainant, as previously requested by FMC Investigator Mark Bragança for Container TCLU6938770 that contains itemized cargo descriptions, declared valuations, and Harmonized Tariff Schedule (HTS) commodity codes for all items, as required for international shipment documentation, in place of the Service Invoice previously mislabeled as a “Trade Invoice”;

(e) STAY Count V (Negligent Stowage) pending cargo arrival and inspection in India, preserving Complainant’s right to file a supplemental submission on cargo damage and M&E derangement claims. Any Phase I reparations order issued on Counts I–VIII shall expressly provide that: (i) the order does not resolve and expressly preserves all claims arising under Counts IX, X, XI, and XIII; (ii) SFL’s payment of Phase I reparations does not constitute full satisfaction of any liability under this proceeding; and (iii) SFL’s payment of Phase I reparations shall not be pleaded by SFL as satisfaction, accord, or release of any Phase II claim;

(f) REFER this matter to the Commission’s Bureau of Enforcement for consideration of civil penalty proceedings against SFL Worldwide LLC (OTI #025184) for: (i) knowingly charging rates not reflected in any tariff or agreed rate; (ii) deliberate withholding of title documents from a shipper while producing the same to a federal investigator within two days; (iii) cargo hostage conduct using a sailing deadline and demurrage threats as financial leverage; (iv) bad faith participation in CADRS proceedings by calculating a minimum liability concession internally while offering nothing to the mediator for 13 days; and (v) fabrication of a non-existent legal prohibition on one audio-recorded call to prevent performance of a contracted service at the destination. Complainant further requests that the Bureau of Enforcement examine whether Respondent’s practice of announcing predetermined hour estimates before cargo is inspected reflects a systematic billing methodology applied across Respondent’s customer base, warranting investigation beyond this single shipment. This referral request is made pursuant to 46 C.F.R. § 502.282 and is not intended to delay, stay, or affect the private reparations proceeding under 46 U.S.C. § 41305. The Bureau of Enforcement referral may be processed independently and concurrently with the private reparations adjudication; Complainant does not request that the private reparations proceeding be stayed pending enforcement review.

BOND SATISFACTION NOTICE:

Complainant further notifies Respondent and the Commission that, pursuant to 46 CFR § 515.23, SFL Worldwide LLC, as a licensed OTI operating as both an NVOCC and an Ocean Freight Forwarder, is required to maintain surety bonds totaling \$125,000 — \$75,000 as a U.S.-based NVOCC and \$50,000 as an Ocean Freight Forwarder — as a condition of its license. Should the Commission issue a Reparation Order and Respondent fail to satisfy that Order within the time prescribed, Complainant intends to seek satisfaction of the full judgment directly through Respondent's OTI surety bond. Complainant places Respondent's bonding company on constructive notice through this public filing that the conduct documented herein — including admitted deliberate labor slowdown, flat-rate billing concealment, and cargo hostage tactics — is the subject of active federal adjudication before this Commission.

BOND ALLOCATION NOTE — NVOCC vs. OFF CAPACITY:

For bond satisfaction purposes, the damages in this Complaint are allocated as follows between SFL's NVOCC and Ocean Freight Forwarder capacities (as defined in ¶2A above): (a) NVOCC Bond (No. SU48064, \$75,000) — Counts I through VI (origin-service billing fraud, materials fraud, crate non-delivery, detention overcharge, negligent stowage, and cargo hostage conduct) arise from SFL's NVOCC role as the party that booked and controlled the container, directed the origin vendor, and issued billing in NVOCC capacity; (b) OFF Bond (No. 612405911, \$50,000) — Counts VII through XIII (Bill of Lading withholding, documentation failures, and destination customs clearance abandonment) arise from SFL's Ocean Freight Forwarder capacity as the party responsible for customs documentation, destination coordination, and cargo delivery. Both bonds are available to satisfy any Reparation Order this Commission issues, allocated to the respective phase of service from which each count arises.

(g) NOTE for the record that SFL Worldwide LLC has received simultaneous complaints from: the Illinois Attorney General under the Illinois Consumer Fraud and Deceptive Business Practices Act (815 ILCS 505/2), which independently provides for treble damages and attorney fees upon a finding of knowing violations — with the fraudulent billing occurring in Aurora, Illinois, placing the conduct squarely within that Act's jurisdiction; the Texas Attorney General under the Texas Deceptive Trade Practices Act (Tex. Bus. & Com. Code § 17.41 et seq.), which similarly provides for treble damages and attorney fees; FMCSA (Cases #00268621 and #00268615); and three BBB complaints — all arising from this same shipment. The pending Illinois and Texas state actions represent independent, parallel exposure to treble damages that exists regardless of the outcome of this proceeding, and Respondent's counsel is respectfully placed on notice of the cumulative statutory exposure across all pending jurisdictions; and

(h) GRANT such other and further relief as the Commission deems just and appropriate.

(h-1) NOTE ON STATUTE OF LIMITATIONS: All claims in this Complaint arose from a single shipment booked February 12, 2026, loaded March 3, 2026, and invoiced March 10, 2026. The earliest claim accrued no earlier than February 12, 2026. This Complaint is filed within three

years of the earliest accrual date and is fully within the limitations period of 46 U.S.C. § 41301(a). No claim is time-barred.

(i) ATTORNEY FEES AND COSTS — 46 U.S.C. § 41305(e): Pursuant to 46 U.S.C. § 41305(e), Complainant respectfully requests an award of reasonable attorney fees and costs in the event Complainant prevails in this action. Complainant is presently proceeding pro se but expressly reserves the right to retain counsel at any stage of these proceedings, including adjudication and enforcement phases. Complainant further notes that the substitute-performance costs of legal research, document preparation, customs work, and personal travel performed by Complainant in place of SFL's contracted services are separately claimed as reparations under 46 U.S.C. § 41305(a) within Counts IX and XIII and are not subsumed within this attorney fees request. These costs will be awarded once only upon supplemental quantification — the alternative pleading across two counts reflects different causal theories, not cumulative recovery

(j) AWARD DOUBLE REPARATIONS — 46 U.S.C. § 41305(c): Pursuant to 46 U.S.C. § 41305(c), Complainant respectfully requests that the Commission exercise its discretion to award reparations up to double the amount of actual injury upon a finding that violations were committed knowingly and willfully. As set forth in Table D above and in the Basis for Double Reparations (Section VI, Paragraphs 57–59), Complainant respectfully submits that the evidence of record — specifically the admitted intentional labor slowdown; the Respondent's conscious decision to dispatch an unseaworthy container after formal written notice; and Respondent's presentation of a mislabeled Service Invoice to a Federal Investigator — establishes knowing and willful conduct as a matter of record, undisputed fact.

(k) INTEREST — 46 U.S.C. § 41305(a): Complainant requests an award of interest on all reparations, to be calculated at the rate prescribed by 46 C.F.R. § 502.253 from March 15, 2026 (the date of payment under protest for origin-side claims), until the date the order for reparations is satisfied. For India-side claims, interest is claimed from the respective dates of injury for each count pursuant to 46 U.S.C. § 41305(a).

(l) RECOMMEND to the Commission's Bureau of Enforcement that it consider whether conditions on SFL Worldwide LLC's OTI License No. 025184 renewal are warranted to prevent the billing fabrication and document withholding practices documented herein from continuing to harm future shippers, as a supplement to the Bureau of Enforcement referral requested at paragraph (f) above.

(m) DIRECT SFL Worldwide LLC to produce for the Commission's record all written and electronic communications: (i) between SFL Worldwide LLC and Chicago Marathon Movers (CMM) / Danny Rodriguez from February 23, 2026 through final resolution — including emails, text messages, payment records, and internal notes relating to Shipment #28015003, Container TCLU6938770, or Complainant Aman Kaushik — specifically including SFL's actual payment records to CMM, which are needed to verify or refute CMM's 'significant loss' claim and establish the full scope of SFL's billing extraction from Complainant's \$7,840 payment; and (ii) between SFL Worldwide LLC US operations and SFL India operations personnel — including Viral,

Mamta Hazarika, Afreen Athaniyaa, and Loken Singh — from February 10, 2026 through final resolution, relating to Complainant's shipment reference 241344279976, including but not limited to all internal communications regarding the ToR condonation application, customs declaration preparation, email correspondence policy, and CHA appointment and performance.

(n) COUNT IX: Award reparations in the amount of all storage, demurrage, and ground rent charges at ICD Tughlakabad attributable to SFL's 25-day inaction, plus all customs duty assessed as a result of delayed or denied ToR status, plus any additional customs duty assessed as a result of the CHA's failure to file a CBIC-compliant declaration with documented values prior to Bill of Entry filing, plus Complainant's substitute-performance costs — all reserved for supplemental quantification upon customs clearance outcome — plus interest at commercial rates from the date of injury under 46 U.S.C. § 41305(a);

(o) COUNT X: Award reparations in the amount of the destination-service component of Complainant's contracted payment — specifically the portion of the \$7,840 total payment attributable to customs clearance coordination, ToR application management, and destination delivery services that SFL disclaimed liability for and failed to perform — reserved for supplemental quantification upon customs clearance completion, plus interest at commercial rates from the date of injury under 46 U.S.C. § 41305(a);

(p) COUNT XI: Award such reparations as the Commission finds appropriate for SFL's affirmative decision to cease written correspondence during active customs clearance proceedings, plus interest;

(q) COUNT XII: Award double reparations under 46 U.S.C. § 41305(c) for SFL's willful, pre-meditated, and financially calculated unified pattern of conduct documented across Counts I through XIII of this Complaint;

(r) COUNT XIII: Award reparations in the amount of: (i) the \$1,000 non-refundable advance deposit collected on February 23, 2026 under deliberate concealment of the Non-ToR customs status that SFL possessed full prior knowledge of; and (ii) all consequential damages flowing from the pre-booking misrepresentation — including customs duty, storage charges, and demurrage attributable to ToR delay or denial that would not have occurred had SFL's pre-booking assurance been accurate and timely disclosed — reserved for supplemental quantification upon customs clearance completion; plus interest at commercial rates from February 23, 2026 under 46 U.S.C. § 41305(a); double reparations on this Count are subsumed within the global Table D request at paragraph 61(j);

(s) GRANT such other and further relief as the Commission finds just and appropriate, including referral to the Bureau of Enforcement for investigation of SFL Worldwide LLC's fitness to hold OTI License No. 025184. In the event the Bureau of Enforcement finds systematic billing irregularities, Complainant respectfully requests the Commission consider whether conditions on OTI License No. 025184 renewal are warranted to protect future shippers from the billing fabrication, document suppression, and destination abandonment practices documented herein.

NOTE ON RELIEF SOUGHT:

Complainant seeks reparations and related relief expressly authorized under the Shipping Act of 1984 — specifically under 46 U.S.C. § 41305(b), (c), and (e), with interest as defined in § 41305(a). Complainant does not seek punitive damages. Complainant’s prayer for double reparations under § 41305(c) is a statutory remedy, not a punitive sanction, and is subject to the Commission’s discretion as set forth in the statute.

RESERVATION OF SUPPLEMENTAL CLAIMS:

The dollar amounts stated in this Prayer for Relief represent the minimum documented, immediately quantifiable losses and constitute a floor, not a ceiling, on Complainant’s total claim. Complainant expressly reserves the right to file a supplemental complaint upon cargo delivery and inspection to add: (a) M&E derangement losses arising from Respondent’s documented failure to strap, secure, or properly stow the cargo; (b) moisture or atmospheric corrosion damage arising from Respondent’s failure to implement the written, pre-acknowledged Moisture Control Protocol, for which SFL’s Naman Mehta received product-specific written notice on February 25, 2026; (c) customs duties and fees contingently arising due to Respondent’s documentation failures; (d) all India-side storage, demurrage, and CHA fees reserved in Counts IX and XIII damages; and (e) any additional damage discovered upon opening sealed cartons. None of these supplemental claims are waived by the filing of this Complaint.

Complainant notes for the record that Item 188 is absent from the Household Goods Descriptive Inventory — the numbered list jumps from Item 187 directly to Item 189 with no explanation. Complainant raised this discrepancy with SFL in writing on April 14, 2026. SFL provided no response or correction. This is an additional documentation deficiency under Count VII. SFL’s failure to respond to this documented discrepancy constitutes an adoptive admission under FRE 801(d)(2)(B) that the omission was known to SFL — relevant to the accuracy of the packing list upon which customs valuation will be based.

SECTION IX — CONDITIONAL RESERVATION: CARGO DAMAGE AND M&E DERANGEMENT

120. Container TCLU6938770 arrived at Nhava Sheva, Mumbai on May 12, 2026, carrying the following high-value, damage-sensitive cargo, all of which was unsecured with zero industrial lashing, strapping, or bracing:

ITEM	ESTIMATED REPLACEMENT VALUE (\$)
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LG C1 65-inch OLED TV	2,800
Engineering Workstation	4,000
Floor Standing Speakers	3,600
Celestron Professional Telescope	3,750
Other Sensitive Electronics	5,000+
Total Electronics at risk	19,150+

Every item listed above is unsecured in the container — with zero industrial lashing, strapping, or bracing — as documented in Exhibit B and formally noticed to SFL in writing before sailing. The absence of any securing device, combined with SFL’s refusal to re-work the container after formal written notice, places the entire above inventory at foreseeable and uninsured risk of mechanical and electrical derangement.

121. Complainant’s marine insurance policy (Policy #7661288000185, Lakeland Insurance Services) contains a \$2,500 deductible and expressly excludes mechanical and electrical derangement. Complainant put SFL on formal written notice of both the deductible and the M&E exclusion before the container sailed. SFL’s supervisor was unavailable for multiple days following receipt of this notice, causing deliberate delay until the corrective window closed permanently when the container sailed on or about March 16, 2026.

122. If any insured cargo damage occurs:

— Complainant will be responsible for the \$2,500 deductible regardless of the insurance outcome.

— SFL’s documented negligent stowage is the direct cause of the risk that the deductible exposure represents.

— Complainant reserves the right to claim the \$2,500 deductible from SFL as reparations in a supplemental filing.

123. If any M&E-class damage occurs:

— The insurer will likely deny the claim under the M&E exclusion, consistent with standard marine insurance practice when no derangement rider is purchased.

— Because SFL was formally notified of this specific risk before sailing, refused to re-secure the load, and refused to accept written liability — SFL is the direct proximate cause of any uninsured M&E loss.

— The replacement value of unsecured electronics at risk, as itemized above, is approximately \$19,150+ — representing the foreseeable uninsured loss SFL knowingly created by refusing to re-secure the container after formal written notice.

— Complainant reserves the right to file a supplemental complaint for the full uninsured replacement value of any M&E-damaged items, plus the \$2,500 deductible, upon cargo arrival and assessment.

123A. MOISTURE CONTROL PROTOCOL — RESERVED PENDING CARGO INSPECTION:

Prior to the loading date, Complainant provided SFL with a written Moisture Control Protocol specifying the placement of silica gel desiccant packs inside every carton containing electronics and sensitive equipment. On February 25, 2026, Complainant sent SFL’s Naman Mehta a direct written communication identifying the specific silica gel product — with a Walmart product link — explaining its purpose and confirming the quantity required (Exhibit Z). Naman Mehta responded to this email chain on March 2, 2026 — constituting personal, documented acknowledgment of the silica gel requirement before move day. Whether CMM’s crew placed these packets inside the sealed cartons cannot be verified until the cargo is opened upon delivery. Complainant expressly reserves the right to supplement this Complaint with photographic evidence of Moisture Control Protocol breach upon cargo inspection. Should M&E derangement or moisture damage be found in conjunction with absent silica gel packs, such finding constitutes an independent additional violation of 46 U.S.C. § 41102(c), arising from the same pattern of willful non-compliance with Complainant’s written, pre-acknowledged packing requirements — for which SFL received personal, product-specific written notice more than five days before loading.

124. All rights regarding cargo damage, M&E derangement, and deductible recovery are expressly preserved and are not waived by the filing of this Complaint.

MASTER SUPPLEMENTAL RESERVATION

All claims reserved in this Complaint — including but not limited to M&E derangement, moisture damage, insurance deductible recovery, India-side customs duty, ICD storage and demurrage, substitute-performance costs, and any additional cargo damage or customs penalties — shall be asserted in a single Supplemental Statement of Damages, to be filed within 90 days of the later of: (a) final customs clearance of Container TCLU6938770; or (b) final resolution of any pending insurance claim relating to cargo in Container TCLU6938770. All individual reservation statements throughout this Complaint are subject to this Master Reservation and are not intended to establish independent filing deadlines or separate supplemental proceedings. None of the reserved claims are waived by any filing made under this Complaint or by the passage of time prior to the triggering events described above.

SECTION X — VERIFICATION AND DECLARATION UNDER PENALTY OF PERJURY

[Filed pursuant to 28 U.S.C. § 1746 and 46 C.F.R. § 502.62; notarization not required per FMC Secretary's Office correspondence of May 7, 2026.]

125. I, Aman Kaushik, Complainant in this proceeding, declare under penalty of perjury under the laws of the United States of America (28 U.S.C. § 1746) that the foregoing is true and correct to the best of my knowledge, information, and belief.

126. I further declare that:

(a) All factual statements in this Complaint are based on my personal knowledge, my direct communications with Respondent SFL Worldwide LLC, its US and India operations personnel including Viral, Mamta Hazarika, Afreen Athaniyaa, Naman Mehta, and Loken Singh, its sub-vendor Chicago Marathon Movers, and the CHA appointed by SFL — Minesh Shah of LAC Relocation, and documents in my possession that I am prepared to submit as exhibits;

(b) All quoted text attributed to SFL or Chicago Marathon Movers is taken directly from written email correspondence and official documents in my possession;

(c) All contemporaneous call records referenced in this Complaint were prepared by me within 35 minutes to several hours of the calls they document, in each case on the same calendar day as the call or within hours of midnight where a call occurred in the late evening, self-sent to my own email address as time-stamped records, and are authenticated as business records under FRE 803(6) and as electronically stored information under 46 C.F.R. § 502.204;

(d) The audio recordings referenced in this Complaint — specifically the April 23, 2026 conference call with Viral and CHA Minesh Shah, the May 1, 2026 telephone call with Viral, and the May 9, 2026 telephone call with CHA Minesh Shah — were made while I was physically located in Rohtak, Haryana, India, under one-party consent permissible under Indian law (Information Technology Act 2000, Section 65B; Indian Evidence Act);

(e) I have not misrepresented any fact material to this Complaint;

(f) The payments made via Zelle on March 14 and March 15, 2026 were made under documented economic duress, with written protest expressly preserved, and do not constitute voluntary acceptance of the disputed invoice amounts;

(g) I have exhausted all available informal remedies prior to filing this Complaint; and

(h) This Complaint is filed as a Formal Complaint under 46 C.F.R. § 502.62 pursuant to Complainant's election communicated to the FMC Office of the Secretary on April 23, 2026, and in accordance with the FMC Secretary's Office's formatting instructions of May 7, 2026.

(i) Exhibits BB, BC, and BD are true and accurate printouts of publicly posted records on the Better Business Bureau's public consumer portal (bbb.org), captured by Complainant with the URL, date, and page title visible. These records are admissible as business records of the BBB under FRE 803(6) and as public records under the FMC's broad evidentiary rules at 46 C.F.R. § 502.204.

(j) The photographs comprising Exhibit B were taken by Complainant's representative immediately before the container was sealed on March 3, 2026, using a personal mobile device. The date, time, and device metadata are intact and available for production. These photographs have not been altered or edited in any way.

(k) The photograph comprising Exhibit B-2 was taken on March 3, 2026 by the CMM crew themselves during the loading operation at the storage facility, using a personal mobile device. The photograph was transmitted to Complainant through SFL's correspondence chain and is produced in the form received, without alteration by Complainant. Complainant makes no representation regarding metadata integrity beyond the form in which the photograph was received.

(l) OMNIBUS EXHIBIT AUTHENTICATION: I, Aman Kaushik, declare under penalty of perjury under 28 U.S.C. § 1746 that each of the exhibits identified in the Exhibit List of this Complaint (Exhibits A through BD) is a true and correct copy of the original document described therein, received or sent by me on the date indicated, retained in my original records in the form produced. No exhibit has been altered, redacted, or modified from its original form. Where exhibits consist of self-sent contemporaneous records, each was prepared by me on the same calendar day as the events described, or in the case of late-evening calls, within hours of midnight on that same night, transmitted to my own email address as time-stamped records, and has remained unaltered in my email archive since the date of transmission. This omnibus authentication declaration covers all exhibits filed with or incorporated by reference in this Complaint and is offered in satisfaction of any foundational authentication requirement under 46 C.F.R. § 502.204.

Executed on: May 20, 2026

Signature: _____



Aman Kaushik

Complainant, Pro Se

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CERTIFICATE OF SERVICE

NOTE ON FILING FEE: This Complaint is accompanied by a request that the Commission waive or defer the formal-complaint filing fee prescribed by 46 C.F.R. § 502.62(a)(6) for good cause, based on Complainant's documented financial hardship (Exhibit R: Caterpillar Inc. involuntary-termination letter dated January 31, 2026; medical summary). Complainant is presently without income following involuntary termination and post-surgical medical limitations and respectfully requests that the Office of the Secretary advise whether the fee may be waived or deferred; Complainant will remit the fee as directed if waiver is not granted.

Complainant has filed this Formal Complaint with the Office of the Secretary, Federal Maritime Commission, and respectfully requests that the Secretary serve Respondent SFL Worldwide LLC at its principal place of business, 3364 Garden Brook Drive, Farmers Branch, TX 75234, pursuant to 46 C.F.R. § 502.113(a). Complainant will provide courtesy notice to Respondent by electronic mail to SFL - info@sflworldwide.com, Naman - naman@sflworldwide.com, Loken - loken@sflworldwide.com, and Madhu Sudhan M. - madhu@sflworldwide.com contemporaneously with filing, but formal service is to be effectuated by the Office of the Secretary in accordance with 46 C.F.R. § 502.113(b).

Signature: _____



Aman Kaushik, Complainant Pro Se

EXHIBIT LIST

Overview: Exhibits are organized alphabetically below. Exhibits A through R relate primarily to origin-side Counts I–VIII and Section V (bad faith pattern). Exhibits S–Z relate to origin-side pre-move representations and cargo insurance. Exhibits AA-1 through AA-15 relate to India-side Counts IX–XIII. Exhibits BB–BD relate to CMM’s post-complaint BBB conduct.

Notice Regarding Electronic Evidence: Pursuant to the Commission’s Rules of Practice and Procedure, Complainant identifies herein all relevant evidentiary materials. Certain exhibits consisting of digital audio recordings (Exhibits AA-4, AA-9, AA-10) and photographs are preserved in their original digital format and are available for immediate production upon formal discovery request by Respondent or order of the Presiding Officer. Complainant reserves the right to supplement this record with additional forensic metadata or transcriptions as the proceeding advances.

Exhibit A: Financial Coercion Evidentiary Report (Prepared by Complainant, March 12, 2026)

Exhibit B: Photograph of Container TCLU6938770 Interior Before Sealing (March 3, 2026) — shows void space, zero straps, no bracing; directly contradicts SFL’s “nearly full” defense

Exhibit C: Original SFL Quote / Booking Confirmation for Shipment #28015003 — shows \$5,150 total; \$110/hr labor rate, first hour free; Check/Wire/Zelle payment methods; Included vs. Excluded destination services

Exhibit D: Complete Email Chain: Strapping and Stowage Dispute — includes Complainant’s formal written notice of M&E risk and insurance gap before container sailed; SFL’s refusal to re-secure or accept liability; SFL’s “traveling supervisor” delay tactic

Exhibit E: Chicago Marathon Movers Email (Danny Rodriguez, March 5, 2026, forwarded by SFL) — contains admission: “If this had been a simple transfer from an organized storage locker, the job likely would have taken closer to 3 hours”

Exhibit F: SFL Final Invoice (March 10, 2026) — self-incriminating language: “recycled boxes x67”; shows \$200/hr rate vs. quoted \$110/hr; shows \$870 materials with no receipts; shows \$220 container detention; Service Invoice mislabeled as “Trade Invoice”

Exhibit G: Chicago Marathon Movers Work Order / Job Sheet — shows 9:40 AM recorded start time, directly contradicted by CMM’s own admission of 9:55 AM actual arrival due to personal fuel/coffee stop. Also shows the planned start time — 8:30-9:00 AM

Exhibit H: Complete Email Chain: Labor Dispute (March 4–15, 2026) — full documentation of billing dispute, 82% rate increase, partial payment rejection, credit card refusal, Zelle-only mandate, demurrage and rollover threats, payment under protest email

Exhibit I: BBB Complaint #1 against SFL Worldwide: Labor and Billing Dispute (Filed March 13, 2026)

Exhibit J: BBB Complaint #2 against SFL Worldwide: Negligent Stowage (Filed March 13, 2026)

Exhibit K: FMCSA Complaint #00268621 Confirmation — SFL Worldwide

Exhibit L: FMCSA Complaint #00268615 Confirmation — Chicago Marathon Movers

Exhibit M: Illinois Attorney General Complaint Confirmations (Case #54715 — SFL Worldwide; Case #54906 — Chicago Marathon Movers)

Exhibit N: Texas Attorney General Complaint Confirmation (Case #TCP-034455)

Exhibit O: FMC CADRS Case #260159 — Closure email from Mark Bragança dated March 25, 2026 (no formal closure letter issued; email constitutes the closure record)

Exhibit P: Written Summary of March 19, 2026 Telephone Call with Danny Rodriguez (CMM Owner) — emailed to Rodriguez, CC'd to FMC Investigator Bragança and Naman Mehta; documents flat-rate admission, deliberate slowdown admission, 3-hour job acknowledgment, and SFL non-payment; never denied or disputed by either party. Also CMM owner Rodriguez's subsequent defamatory characterizations of Complainant transmitted to FMC Investigator Bragança

Exhibit Q: Draft Bill of Lading for TCLU6938770 — transmitted by FMC Investigator Bragança (NOT by SFL directly); confirms SFL withheld B/L from Complainant while producing it to federal investigator within approximately two days of his request

Exhibit R: Fee Waiver Supporting Documentation — Caterpillar Inc. termination letter dated January 31, 2026; medical summary showing financial hardship and surgical history

Exhibit S: SFL Post-CADRS Settlement Offer Email (Naman Mehta to Complainant, March 26, 2026) — \$750 offer sent within 5 hours of CADRS closure; conditioned on global release form prior to cargo inspection; demonstrates implicit admission of rate overcharge and deliberate CADRS stonewalling

Exhibit T: Complainant's Formal CADRS Submissions Including Disputed Line Items and Materials Receipt Demand

Exhibit U: Zelle Payment Records — \$1,000 (February 23, 2026), \$3,500 (March 14, 2026), \$3,340 (March 15, 2026), totaling \$7,840.00; March 14 and 15 payments marked “PAID UNDER PROTEST — FMC CADRS #260159”

Exhibit V: Pre-Booking Inventory and Disassembly Disclosure Email (Aman Kaushik to Naman Mehta, February 10, 2026) — itemized table with disassembly status and dimensions; five photographs of pre-disassembled furniture attached

Exhibit W: Kiswani Container Trucking Delivery Ticket (March 3, 2026) — third-party document recording truck arrival time and two-hour free period; directly contradicts SFL's invoice free-time calculation and establishes Kiswani markup

Exhibit X: Packing Protocol for Movers — written pre-move instructions transmitted to SFL/CMM before March 3, 2026; specifies wooden crate requirement for LG C1 65” OLED TV, industrial lashing, bubble wrap requirements; signed by loading crew on March 3, 2026

Exhibit Y: Moisture Control Protocol — written pre-move desiccant placement instructions transmitted to SFL/CMM before March 3, 2026; specifying silica gel requirements for ocean transit protection; signed by loading crew on March 3, 2026

Exhibit Z: Silica Gel Pre-Move Communication — Email from Complainant to Naman Mehta, February 25, 2026, identifying specific silica gel desiccant product with Walmart product link; Naman Mehta reply email dated March 2, 2026 in same chain — establishing personal, documented pre-move acknowledgment of silica gel requirement.

Exhibit AA-1: Contemporaneous call memo — Mamta Hazarika (SFL Worldwide), April 21, 2026, approximately 2:26 PM IST; prepared within 35 minutes and self-sent at 3:01 PM IST; documents Mamta's commitment to provide CHA contact by April 22 (not honored)

Exhibit AA-2: Naman Mehta “Important Notice” email — March 2, 2026 — SFL's own formal written acknowledgment of Non-ToR status; sent eight days after non-refundable deposit and one day before loading

Exhibit AA-3: Contemporaneous call memo and Complainant’s formal written email — Viral and CHA conference call, April 21, 2026; documents CHA's first false legal representation on pre-arrival filing prohibition and acknowledgment of ₹10,000 per day (~ \$105 USD/day) storage and ₹7,50,000 (~ \$7800) duty risk

Exhibit AA-4: Contemporaneous call memo and audio recording — Viral and CHA conference call, April 23, 2026; audio recording preserved in original format on Complainant's device with cloud backup; documents second false legal representation and CHA verbal acknowledgment of storage and duty financial risks

Exhibit AA-5: Contemporaneous record — CHA Minesh Shah call, April 30, 2026; documents broken commitment (d), blank document signature request, and undisclosed sub-delegation

Exhibit AA-6: Formal Notice of Delay email — Complainant to Mamta Hazarika, Viral, Afreen Athaniyaa, Naman Mehta, April 20–21, 2026; documents written offer to travel to ICD Tughlakabad personally despite medical disability

Exhibit AA-7: LAC Relocations document request email — May 2, 2026 — showing Mumbai passport courier instruction; documents passport routing error

Exhibit AA-8: Complainant's documentation error email — May 7, 2026 — documents Bahrain origin authority letters, unedited template condonation letter, and generic customs declaration list

Exhibit AA-9: Audio recording preserved on Complainant’s device with cloud backup — Viral phone call, May 1, 2026; Complainant's formal email to Viral at 5:46 PM IST; documents Viral's three admissions: zero paperwork initiated, no knowledge of cargo electronics, SFL will not answer emails

Exhibit AA-9A: Formal Notice — CHA Non-Performance & Pre-Arrival Preparation Failure email, Complainant to Viral, Naman Mehta, Mamta Hazarika, Afreen Athaniyaa, and Loken Singh, May 1, 2026 at 6:35 PM IST — second formal notice on the same day; documents CHA non-performance, demands three alternative remedial actions, and gives explicit written notice of contractual and financial liability; received and unanswered by five SFL officers

Exhibit AA-10: Audio recording AND May 9, 2026 formal written record email — audio recording of CHA Minesh Shah call captures verbatim the threatened service abandonment and incorrect duty assessment; recording is preserved in original format on Complainant's device with cloud backup; documents broken commitments (f) and (g), CHA's threatened service abandonment, CHA's incorrect duty assessment on monitors and speakers

Exhibit AA-11: SFL email chain confirming explicit refusal to maintain written correspondence — May 1, 2026 (cross-reference Exhibit AA-9)

Exhibit AA-12: Contemporaneous call record of Mamta's 11:15 AM call on May 18, 2026 (about ONE line DTHC charges)

Exhibit AA-13: Email thread — Complainant's CMC inquiry to SFL dated May 18, 2026, and Mamta Hazarika's written response dated May 18, 2026

EXHIBIT AA-14: Complainant's Personal Appearance at ICD Tughlakabad, New Delhi — April 22, 2026: Six photographs taken between 15:41 and 16:06 IST on April 22, 2026, documenting Complainant's personal appearance at the Office of the Deputy Commissioner of Customs (Import), Inland Container Depot, Tughlakabad, New Delhi-110020. The photographs show: (1) the facility's exterior entrance sign confirming location; (2) the ICD operational yard; (3) the nameplate of Deputy Commissioner Manish Deo Mishra, I.R.S.; (4) a handwritten routing note directing Complainant through the internal chain of authority; (5) the office door of Additional Commissioner Rakesh Bhadadiya, I.R.S.; and (6) the nameplate of Commissioner Parmod Kumar, I.R.S. Three photographs carry GPS coordinates consistent with ICD Tughlakabad. All six carry original EXIF timestamps authenticated under FRE 901(b)(9). This exhibit establishes Complainant's personal appearance at the Commissioner's office on April 22, 2026 — the day after Complainant's fifth unanswered written demand to SFL for pre-arrival ToR filing — and corroborates that processing was refused solely for lack of the Bill of Lading then in SFL's possession.

Exhibit AA-15A: CBIC Notification No. 14/2026-Customs (N.T.) dated 01.02.2026 — Baggage Rules 2026 Annexure-I and Annexure-II — cited in Count IX-K to establish absence of any enumerated entry for standalone computer monitors or passive speaker units.

Exhibit AA-15B: Section 46(3) of the Customs Act, 1962, as amended by Finance Act, 2017 — establishing the statutory right to file a Bill of Entry up to 30 days before vessel arrival, directly contradicting the CHA's false claim that pre-arrival filing is legally prohibited.

Exhibit AA-15C: Baggage Rules 2016, Rule 6 and Appendix (Transfer of Residence table including column (4) condonation powers) — establishing the Commissioner's discretionary

power to condone delay, with no timing restriction on when a condonation application may be filed.

Exhibit B-2: Photograph of storage unit loading configuration on March 3, 2026 — shows ground-level single-unit setup with container parked directly adjacent; crew working in open-air parking lot with zero stair or multi-floor carry requirement; directly contradicts any claim that operational complexity justified extended crew hours. Photograph taken by Chicago Marathon Movers crew on March 3, 2026 and transmitted to Complainant through SFL Worldwide's communication channel — constituting CMM's own contemporaneous photographic record of the loading configuration

Exhibit BB: Chicago Marathon Movers Inc. (Danny Rodriguez) — BBB Public Response, May 12, 2026 — unsolicited response 30 days after “Unresolved” negative disposition; contains: (a) confirmation SFL was “third-party broker”; (b) admission of “changing scope requests”; (c) false settlement claim; (d) “absorbed significant loss” claim contradicted by March 19 flat-rate admission

Exhibit BC: Complainant's March 20, 2026 BBB Rebuttal — seven-point written rebuttal containing specific factual allegations CMM never denied across two response opportunities; constitutes adoptive admissions binding on SFL under FRE 801(d)(2)(D)

Exhibit BD: BBB Complaint #24635417 — documentation package including: (a) April 12, 2026 formal closure notice — closed as 'Unresolved' with negative disposition after CMM declined mediation; and (b) May 15, 2026 reclassification notice — reclassified as 'Answered — the business addressed the issues within the complaint, but the consumer remains dissatisfied' following CMM's false May 12 settlement claim and Complainant's rebuttal; both closures on the permanent public consumer record confirm Complainant's dissatisfaction

Exhibit BE: SFL Worldwide LLC FMC Tariff No. 001 (Org. No. 025184-001), Rule 35 — Negotiated Rate Arrangements, effective November 4, 2014, accessed May 27, 2026 via Distribution Publications Inc. (dpiusa.com), the FMC-registered tariff publisher for Respondent. Offered to establish: (a) Respondent's published awareness of NRA compliance requirements; (b) Rule 35(e)'s explicit prohibition on post-receipt rate modification; and (c) that Respondent's February 12, 2026 written quote (Exhibit C) constitutes a valid NRA whose \$110/hr rate Respondent was prohibited from modifying after March 3, 2026 cargo receipt

END OF FORMAL COMPLAINT

Aman Kaushik v. SFL Worldwide LLC — Formal Complaint under 46 C.F.R. § 502.62

Federal Maritime Commission, Washington, D.C.